

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24 & 30				1. REQUISITION NUMBER F369146-25-2000019		PAGE 1 OF 151	
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER 36C78625R50104	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Ralph Crum				b. TELEPHONE NUMBER (No collect calls)	
						8. OFFER DUE DATE / LOCAL TIME 08/25/2025 15:00 PT	
9. ISSUED BY NATIONAL CEMETERY ADMIN (786) NATIONAL CEMETERY ADMIN DEPT OF VETERANS AFFAIRS-CENTRAL CO 5105 RUSSELL RD QUANTICO, VA 22134		CODE 36C786		10. THE ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ HUBZONE SMALL BUSINESS ☐ ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM ☒ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ EDWOSB ☐ 8(A) NAICS: 561730 SIZE STANDARD: \$9.5 Million			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS 0 Days: 0.00 % 0 Days: 0.00 % 0 Days: 0.00 % 0 Days: 0.00 %		13a. THIS CONTRACT IS RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. RATING	
15. DELIVER TO RIVERSIDE NATIONAL CEMETERY (901) DEPT OF VETERANS AFFAIRS (901) RIVERSIDE NATIONAL CEMETERY 22495 VAN BUREN BLVD RIVERSIDE, CA 92518		CODE 369146		16. ADMINISTERED BY NATIONAL CEMETERY ADMIN (786) NATIONAL CEMETERY ADMIN DEPT OF VETERANS AFFAIRS-CENTRAL CO 5105 RUSSELL RD QUANTICO, VA 22134			
17a. CONTRACTOR/OFFEROR		CODE		18a. PAYMENT WILL BE MADE BY TUNGSTEN http://www.tungsten-network.com/customer-campaigns/veterans-affairs/		CODE NCA-VACO	
Telephone No.							
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM					
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES <i>(Use Reverse and/or Attach Additional Sheets as Necessary)</i>			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Grounds maintenance contract for Riverside National Cemetery. Base year plus four option years. Please see performance work statement and instructions to offerors for vendor site visit information and how to submit a proposal.						
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Govt. Use Only)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED	
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED	
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.				☐ 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5) INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF THE CONTRACTING OFFICER (TYPE OR PRINT) Ralph Crum		31c. DATE SIGNED	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY <i>(Print)</i>		
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		42b. RECEIVED AT <i>(Location)</i>		
		42c. DATE REC'D <i>(YY/MM/DD)</i>		42d. TOTAL CONTAINERS

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Section 1 - Continuation Sheet

Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
0001	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
Description: TURF & GRASSES MAINTENANCE					
Period of Performance: 09/15/2025 - 09/14/2026					
Reference Line: F369146-25-2000019 - 0001					
Pricing Options: Base					
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
0002	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
Description: IRRIGATION SYSTEM SERVICES					
Period of Performance: 09/15/2025 - 09/14/2026					
Reference Line: F369146-25-2000019 - 0002					
Pricing Options: Base					
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
0003	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
Description: POND SERVICES					
Period of Performance: 09/15/2025 - 09/14/2026					
Reference Line: F369146-25-2000019 - 0003					
Pricing Options: Base					

Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
0004	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
Description: DRAINAGE SYSTEM MAINTENANCE					
Period of Performance: 09/15/2025 - 09/14/2026					
Reference Line: F369146-25-2000019 - 0004					
Pricing Options: Base					
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
0005	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
Description: TRASH & DEBRIS REMOVAL					
Period of Performance: 09/15/2025 - 09/14/2026					
Reference Line: F369146-25-2000019 - 0005					
Pricing Options: Base					
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
10001	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
Description: TURF & GRASSES MAINTENANCE					
Period of Performance: 09/15/2026 - 09/14/2027					
Reference Line: F369146-25-2000019 - 10001					
Pricing Options: 0001					
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
10002	See Description Below PSC: S208	12.000000	MO		

Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
	LANDSCAPING/ GROUNDSKEEPING SERVICES				
	Description: IRRIGATION SYSTEM SERVICES				
	Period of Performance: 09/15/2026 - 09/14/2027				
	Reference Line: F369146-25-2000019 - 10002				
	Pricing Options: 0002				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
10003	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
	Description: POND SERVICES				
	Period of Performance: 09/15/2026 - 09/14/2027				
	Reference Line: F369146-25-2000019 - 10003				
	Pricing Options: 0003				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
10004	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
	Description: DRAINAGE SYSTEM MAINTENANCE				
	Period of Performance: 09/15/2026 - 09/14/2027				
	Reference Line: F369146-25-2000019 - 10004				
	Pricing Options: 0004				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
10005	See Description Below PSC: S208	12.000000	MO		

Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
	LANDSCAPING/ GROUNDSKEEPING SERVICES				
	Description: TRASH & DEBRIS REMOVAL				
	Period of Performance: 09/15/2026 - 09/14/2027				
	Reference Line: F369146-25-2000019 - 10005				
	Pricing Options: 0005				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
20001	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
	Description: TURF & GRASSES MAINTENANCE				
	Period of Performance: 09/15/2027 - 09/14/2028				
	Reference Line: F369146-25-2000019 - 20001				
	Pricing Options: 0001				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
20002	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
	Description: IRRIGATION SYSTEM SERVICES				
	Period of Performance: 09/15/2027 - 09/14/2028				
	Reference Line: F369146-25-2000019 - 20002				
	Pricing Options: 0002				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
20003	See Description Below PSC: S208	12.000000	MO		

Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
	LANDSCAPING/ GROUNDSKEEPING SERVICES				
	Description: POND SERVICES				
	Period of Performance: 09/15/2027 - 09/14/2028				
	Reference Line: F369146-25-2000019 - 20003				
	Pricing Options: 0003				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
20004	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
	Description: DRAINAGE SYSTEM MAINTENANCE				
	Period of Performance: 09/15/2027 - 09/14/2028				
	Reference Line: F369146-25-2000019 - 20004				
	Pricing Options: 0004				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
20005	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
	Description: TRASH & DEBRIS REMOVAL				
	Period of Performance: 09/15/2027 - 09/14/2028				
	Reference Line: F369146-25-2000019 - 20005				
	Pricing Options: 0005				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
30001	See Description Below PSC: S208	12.000000	MO		

Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
	LANDSCAPING/ GROUNDSKEEPING SERVICES				
	Description: TURF & GRASSES MAINTENANCE				
	Period of Performance: 09/15/2028 - 09/14/2029				
	Reference Line: F369146-25-2000019 - 30001				
	Pricing Options: 0001				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
30002	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
	Description: IRRIGATION SYSTEM SERVICES				
	Period of Performance: 09/15/2028 - 09/14/2029				
	Reference Line: F369146-25-2000019 - 30002				
	Pricing Options: 0002				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
30003	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
	Description: POND SERVICES				
	Period of Performance: 09/15/2028 - 09/14/2029				
	Reference Line: F369146-25-2000019 - 30003				
	Pricing Options: 0003				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
30004	See Description Below PSC: S208	12.000000	MO		

Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
	LANDSCAPING/ GROUNDSKEEPING SERVICES				
	Description: DRAINAGE SYSTEM MAINTENANCE				
	Period of Performance: 09/15/2028 - 09/14/2029				
	Reference Line: F369146-25-2000019 - 30004				
	Pricing Options: 0004				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
30005	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
	Description: TRASH & DEBRIS REMOVAL				
	Period of Performance: 09/15/2028 - 09/14/2029				
	Reference Line: F369146-25-2000019 - 30005				
	Pricing Options: 0005				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
40001	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
	Description: TURF & GRASSES MAINTENANCE				
	Period of Performance: 09/15/2029 - 09/14/2030				
	Reference Line: F369146-25-2000019 - 40001				
	Pricing Options: 0001				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
40002	See Description Below PSC: S208	12.000000	MO		

Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
	LANDSCAPING/ GROUNDSKEEPING SERVICES				
	Description: IRRIGATION SYSTEM SERVICES				
	Period of Performance: 09/15/2029 - 09/14/2030				
	Reference Line: F369146-25-2000019 - 40002				
	Pricing Options: 0002				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
40003	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
	Description: POND SERVICES				
	Period of Performance: 09/15/2029 - 09/14/2030				
	Reference Line: F369146-25-2000019 - 40003				
	Pricing Options: 0003				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
40004	See Description Below PSC: S208 LANDSCAPING/ GROUNDSKEEPING SERVICES	12.000000	MO		
	Description: DRAINAGE SYSTEM MAINTENANCE				
	Period of Performance: 09/15/2029 - 09/14/2030				
	Reference Line: F369146-25-2000019 - 40004				
	Pricing Options: 0004				
Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
40005	See Description Below PSC: S208	12.000000	MO		

Number	Supplies or Services	Max. Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)
	LANDSCAPING/ GROUNDSKEEPING SERVICES				
	Description: TRASH & DEBRIS REMOVAL				
	Period of Performance: 09/15/2029 - 09/14/2030				
	Reference Line: F369146-25-2000019 - 40005				
	Pricing Options: 0005				

DIGNITY CLAUSE

Respect for Headstones and Markers in National Cemeteries, Handling of Markers and Headstones

1. Every action by contractor personnel at a national cemetery must be performed with the special care, reverence, dignity, and respect that acknowledges the cemetery as the final resting place that commemorates the service and sacrifice that service members, Veterans and their families made for our Nation. Critically important is the awareness required of the Contractor employees of the remains buried in the grounds where the work is performed. The utmost care must be given to these remains and the headstones and flat grave markers that mark those gravesites and memorialize the service of individuals.
 - a. Contractors cannot walk, stand, lean, sit or jump on headstones or markers. Nor can they drive over them.
 - b. No tools, equipment or other items will be placed or leaned on headstones or markers.
 - c. Use care not to scratch or damage markers in any manner.
 - d. Contractor shall be responsible for replacing damaged headstones and markers and for restoring turf damaged during performance of this work.
 - e. Additionally, should any activity result in the exposure and/or damage to any remains, container for remains (e.g., casket or urn), or outer burial container, the contractor must contact the COR, Director/Assistant Director, or Contracting Officer (CO) for guidance.
2. Any doubts as to proper procedures shall be brought to the attention of the COR, Director/Assistant Director, or CO for guidance or resolution. While the COR and/or Cemetery Director may give guidance regarding the dignity clause, compliance, and performance, only the CO can authorize changes to the contract terms and conditions.
3. The contractor is required to discuss the guidance with employees and/or subcontractors and have each employee sign a statement of compliance and deliver the signed statement to the COR before work may begin.

(END)

Contract Guarantee Minimum/Maximum Aggregate Value

The guaranteed minimum amount for the life of the contract is \$8,000.00.

The maximum aggregate value of the contract, inclusive of the Five One-Year ordering periods, shall not exceed \$9,500,000.00.

The Government does not guarantee that it will place any orders under this contract more than the guaranteed minimum amount.

PERFORMANCE WORK STATEMENT
Grounds Maintenance – *Riverside* National Cemetery

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PERFORMANCE WORK STATEMENT

Grounds Maintenance – Riverside National Cemetery

1. GENERAL INFORMATION:

1.1 Background: The Department of Veterans Affairs, National Cemetery Administration, honors Veterans with a final resting place and lasting memorials that commemorate their service to our nation. There are approximately 155 National Cemeteries in 41 states that receive visitors, hold ceremonies and conduct committal services on an ongoing basis. Because of the special significance and attention our National Cemeteries receive from the public, strict adherence to specifications is essential.

Riverside National Cemetery is the largest and busiest cemetery managed by the National Cemetery Administration. It was established in 1976 through the transfer of 740 acres from March Air Force Base, which during World War II was called the U.S. Army's Camp William G. Haan. The cemetery was dedicated and opened for burials November 11, 1978. An additional 181 acres was transferred by the Air Force in 2003.

The dramatic, meandering landscape features a central boulevard with memorial circles, lakes, indigenous-styled committal shelters, and a memorial amphitheater.

Monuments and Memorials

Riverside National cemetery is the home of the Medal of Honor Memorial and one of four sites recognized as a National Medal of Honor Memorial Site. The Medal of Honor Memorial, whose walls feature the names of all medal recipients, is located at the third traffic circle in the cemetery. It was dedicated in 1999.

The Fallen Soldier/Veterans' Memorial, erected in 2000, is dedicated to all service members who gave the ultimate sacrifice for their country. The dramatic bronze structure topped by a lifeless soldier is located near the lake at the entrance to the cemetery.

A carillon was donated by the American Veterans (AMVETS) in 2000.

The Prisoner of War/Missing in Action National Memorial was designated as a national memorial by the U.S. Congress in 2004 through Public Law 108-454. The memorial was dedicated on September 16, 2005. Vietnam veteran Lewis Lee Millett, Jr., sculpted the bronze statue which depicts an American serviceman on his knees with hands bound by his captors. The statue is surrounded by black marble pillars that evoke imprisonment.

The Gold Star Families Monument was dedicated January 28th, 2023. The entry view depicts the centerpiece standing tall in the midst of a five-pointed golden star. The centerpiece features four distinct panels of striking black granite, forming a half crescent, two-sided monument. In the heart of the centerpiece, a hollow cutout cast the shadow of a hero who is no more; a tribute to the beloved service member who willingly gave up his/her life as a sacred testament to the American values of Life, Liberty, and Freedom. The front of the Gold Star Families Monument has these words in brilliant, raised bronze lettering; “A Tribute To Those Who Made The Ultimate Sacrifice For Our Freedom, And Those They Left Behind.”

1.2 Objective: The basic service objective is to maintain the cemeteries’ esteemed grounds with care resulting in aesthetically pleasing landscape, care for burial sections, and memorial sites to honor those who have served our nation.

1.3 Scope of Work: Description of Service: This requirement is a non-personal services contract in which the contractor shall provide all personnel, materials, equipment, and maintenance necessary to ensure that grounds maintenance and improvement services are performed at for Riverside National Cemetery RNC located in Riverside, California hereby known as “the Cemetery”. The Contractor shall provide all labor, equipment, materials, and supervision of its employees to perform the service requirements under this contract for Riverside National Cemetery. Service requirements include:

- Turf and Grass Maintenance
- Irrigation System Services
- Pond Services
- Drainage System Maintenance
- Trash & Debris Removal

1.4 Period of Performance: The contract shall be a twelve (12) month base year plus four (4) twelve-month option years if exercised.

1.5 Place of Performance:

Riverside National Cemetery RNC
Cemetery Address –
22495 Van Buren Blvd. Riverside, CA 92518

1.6 Type of Contract: The Government will award a hybrid fixed price Indefinite Delivery, Indefinite Quantity (IDIQ) contract consisting of services subject to the Service Contract Act (SCA) and construction efforts subject to the Davis Bacon Act (DBA). Multiple tasks and/or

delivery orders incorporating this PWS will be issued based on the Governments requirements, each incorporating SCA or DBA components as applicable to their terms and conditions.

1.7 Operational Information:

- 1.7.1.1 Quality Control:** The Contractor shall develop and maintain an effective quality control program to ensure services are performed in accordance with this PWS. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The Contractor's quality control program is the means by which he assures himself that his work complies with the requirement of the contract. At a minimum, the Contractor shall develop quality control procedures that address the Performance Requirements identified in Quality Assurance Surveillance Plan (QASP). After acceptance of the quality control plan, the Contractor shall receive the contracting officer's acceptance in writing of any proposed change to his QC system. The Quality Control Plan (QCP) shall be submitted with the proposal in draft form. A formal QCP shall be delivered within 30 days after contract award and within five (5) working days following each update. The QCP and any proposed update is subject to approval by the Contracting Officer prior to implementation. The formal QCP and all updates shall be provided to the Contracting Officer and COR electronically.
- 1.7.1.2 Quality Assurance:** The Government will monitor the Contractor's performance under this contract using the Quality Assurance Surveillance Plan (QASP). All work performed under this contract will be subject to inspection at all times by the Government.
- 1.7.1.3 Progress Meetings:** The Contracting Officer may require the Site Manager to virtually meet with the Contracting Officer, Contracting Officer Representative (COR), and other Government personnel as deemed necessary. Written minutes of such meetings may be recorded by the Government and signed by the Site Manager and the Contracting Officer or COR and distributed within five (5) workdays after the meeting. The Contractor may request a meeting with the Contracting Officer or COR when the Contractor believes such a virtual meeting is necessary. Written minutes of such meetings may be recorded by the Contractor and signed by the Site Manager and the Contracting Officer or COR and distributed within five (5) workdays after the meeting. In either case, if the Contractor does not concur with any portion of the minutes, recorded by the Government or the Contractor, such non-concurrence shall be provided in writing to the Contracting Officer within two (2) calendar days following receipt of the minutes.
- 1.7.1.4 Normal Hours of Operation:** The Contractor shall perform work during the hours of 8:00 AM – 4:30 PM (local time) Monday through Friday at the Cemetery. Funerals and ceremonies occur regardless of weather conditions. The Contractor is responsible for access to all work areas during these hours. The Cemetery is open to the public daily from sunup to sun down and Memorial Day from 6:00 AM to 7:00 PM. The Government facility may be closed to the public, at times, due to local or national emergencies, administrative closings, or similar

Cemetery directed facility closings, as authorized. *Normal burial services start from 9am to 3:30pm.*

1.7.1.5 Recognized Federal Holidays: The following is a list of the Federal holidays:

January	New Year's Day
January	Martin Luther King Jr.'s Birthday
February	Washington's Birthday
May	Memorial Day
June	Juneteenth
July	Independence Day
September	Labor Day
October	Columbus Day
November	Veterans Day
November	Thanksgiving Day
December	Christmas

When a holiday falls on Sunday, the following Monday will be observed as a Federal Holiday. When a holiday falls on a Saturday, the preceding Friday will be observed as a Federal Holiday by U.S. Government Agencies. Also included would be any day specifically declared by the President of the United States of America as a Federal Holiday.

1.7.1.6 Other than Normal Hours of Operation: At the Contractor's request, and with the written permission of the COR, work may also be permitted to be scheduled for weekends and Holidays. The Government must not compensate the Contractor for any alternate work schedules needed for the Contractor to complete all contract work within the specified project duration. No work will be permitted during Memorial Day or Veteran's Day weekend activities. Notwithstanding, if any work under this contract will be required outside of the VA's normal working hours (8:00 a.m. to 4:30 p.m. Monday through Friday), the Contractor must request for a deviation in writing to the COR at least 24 hours in advance.

The Contractor could be expected to provide personnel support outside normal hours of operation as needed, typically including holidays, special events or ceremonies, and during certain weather events, to support the Cemetery mission as authorized by the COR. The Site Manager or the Alternate Site Manager shall be available

after normal duty hours or on working holidays to serve as the central point of contact for Contractor operations.

- 1.7.1.7 Interference with Government Operations:** Performance of work by the Contractor personnel under the terms of this contract shall not interfere with regularly scheduled Government operational activities.
- 1.7.1.8 Security Requirements:** Contractor personnel or any representative of the Contractor entering the Cemetery shall abide by all security rules and regulations. The Contractor shall maintain a current list of all individuals working onsite. The Contractor shall maintain a list of all vehicles onsite, whether company-owned or employee-owned private vehicles.
- 1.7.1.9 Physical Security:** The Contractor shall safeguard all Government property provided for Contractor use by securing Government facilities, equipment and materials at the close of each work period.
- 1.7.1.10 Cemetery Access:** The Contractor shall be responsible for ensuring that all personnel authorized to perform work under this contract obtain cemetery access. Within ten (10) workdays after contract award, the Contractor shall submit to the Contracting Officer and COR the names of ALL personnel working under this contract. Changes of the Contractor personnel list shall be submitted to the COR and CO in writing within 24 hours of the change taking place. All Contractor employees shall have on them, at all times, positive, photographic identification.
- 1.7.1.11 Key/Lock Control and Reporting:** The Contractor shall be responsible for keys/locks provided by the Government. Keys/locks shall not be duplicated by Contractor personnel, nor used by unauthorized Contractor personnel. The Contractor shall develop and implement procedures to ensure that keys/locks issued to the Contractor by the Government are safeguarded. The Contractor developed procedures covering key/lock control shall be included in the Quality Control Plan. Such procedures shall include turn-in of any issued keys/locks by personnel who no longer require access to locked areas.
- The Contractor shall report any occurrence of duplicated, misplaced, or lost keys/locks to the Contracting Officer and COR within 24 hours after discovery of occurrence and submit a written report to the Contracting Officer by close of business the next workday. The written report shall provide complete details relating to duplication, misplacement, or loss.
- In the event a key is duplicated, misplaced, or lost, all locks and keys for that system will be replaced at the discretion of the Government. The Contractor shall reimburse the Government for replacement cost of locks or rekeying required as a result of keys being duplicated, misplaced, or lost by Contractor or Contractor personnel. The Contractor shall also reimburse the Government for any government property lost or stolen as a result of unauthorized key duplication, misplaced key, or loss of key by the Contractor or Contractor personnel.

The Contractor shall prohibit the use of Government issued keys/codes by any persons other than the Contractor's employee, The Contractor shall prohibit the opening of locked areas by Contractor employees to permit entrance of persons other than Contractor employees engaged in the performance of assigned work in those areas, or personnel authorized entrance by the Contracting Officer.

- 1.7.1.12 Conservation of Utilities:** The Contractor shall instruct employees in utilities conservation practices. The Contractor shall be responsible for operating under conditions that preclude the waste of utilities, which include turning off the water faucets or valves.
- 1.7.1.13 Personnel:** The Contractor shall provide a work force possessing the skills, knowledge, and training satisfactorily perform the services required by this contract. Personnel performing work under this work statement shall remain employees of the Contractor and will not be considered employee of the Government.
- 1.7.1.14 Pesticide and/or herbicide application:** In addition to providing certification/license information, Report applications to the Riverside *County* Agriculture Commissioners Office when required by that office. All Contractor personnel shall be trained on environmental issues such as ground water contamination, wetland protection, and be consistent and fully compliant with all applicable Federal, State, County and City laws, ordinances, Right-to-Know laws, EPA guidelines, and regulations.
- 1.7.1.15 Pond management and Treatment:** A licensed aquatic biologist shall create a pond management plan identifying all maintenance activities and schedule of pond treatment applications throughout the year. Aquatic pesticides must be applied by licensed pesticide applicators in the state of California. Copies of the plan and all licenses shall be provided to the COR prior to initiation of contract and annually when an option year is authorized.
- 1.7.1.16 Conflict of Interest:** The Contractor shall not employ any person who is an employee of the United States Government, either military or civilian, if such employment would create a conflict of interest or be contrary to the policies. See Joint Ethics Regulation and the Standards of Ethical Conduct for Employees of the Executive Branch.
- 1.7.1.17 Conduct of Personnel:** The Contracting Officer may require the Contractor to remove from the job site, any employee working under this contract for reasons of misconduct, security, or found to be under the influence or alcohol drugs, or other incapacitating agents. Contractor shall remove violating Contractor employees from the federal premises immediately to protect Government interests and promote public safety. The removal from the job site or dismissal from the premises shall not relieve the Contractor of the requirement of providing sufficient personnel to perform the services as required by this contract.

1.7.1.18 Special Qualifications: The Contractor is responsible for ensuring all employees possess required state motor vehicle licenses for operating equipment and vehicles used in the execution of this contract. Anyone applying pesticides must be trained and certified in the appropriate pesticide applicator categories by the *state of California*. A pesticide technician is not a valid substitute for a state certified applicator. Use of any chemicals shall meet Environmental Protection Agency (EPA) Guidelines and State of California Law for licensed applicator requirements and shall not be used without prior review through a pre-application submittal and consent of the COR.

Site Manager: The On-site manager must have a minimum of two (2) years' experience as a direct supervisor of commercial Landscape Maintenance/Installation operations and be accredited by the Landscape Contractors Association, or equivalent accreditation program, (e.g., PLANET). They shall speak and write fluent English. Provide licenses/certificates regarding capabilities at time of contract award and annually when an Option Year is exercised. Site manager must have a working mobile phone with service on them at all times. The Contractor shall provide a Site Manager who shall be responsible for the performance of the work. The Site Manager shall have – degree, experience in scope and complexity. Skillset necessary for performing job requirements. The name of this person and an alternate who shall have full authority to act for the Contractor when the Site Manager is absent shall be designated in writing to the Contracting Officer. The alternate Site Manager shall have similar qualifications as the Site Manager, and the alternate can be a key personnel position other than the Site Manager. The Site Manager or alternate shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract, and either the Site Manager or his/her alternate will be on job site during normal operation hours.. The Site Manager may anticipate a call from the COR at least twice a day, before 7am and after 2pm. The Site Manager is to report daily with the COR prior to 7:00am when work is being performed. Additionally, the Site Manager or an alternate must be available to meet the COR onsite within 12 hours' notice, if requested by the COR. Also, the COR must be informed less than 24 hours in advance, anytime the Site Manager will be offsite for extended periods of time. One (1) resume and one letter of commitment from the individual proposed for: Site Manager.

1.7.1.19 Post Award Conference/Period Progress Meetings: The Contractor agrees to attend any post award conference convened by the Contracting Activity in accordance with Federal Acquisition Regulation Subpart 42.5. The Contracting Officer, COR, and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings, the Contracting Officer will apprise the Contractor of how the Government views the Contractor's performance and the Contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. The COR will take and publish the minutes on every meeting. These meetings shall be at no additional cost to the Government.

1.7.1.20 Contracting Officer Representative (COR): The COR will be nominated by the requiring activity and appointed by the Contracting Officer by separate letter. A copy of the COR's appointment letter will also be sent to the awarded Contractor, identifying the designated duties and limitations of the COR. The COR's designated duties will describe the level of responsibility and what technical or administrative aspects of the contract are to be monitored. The COR's oversight responsibilities are not limited to the QASP. Since all listed contract requirements or tasks are expected to be met by the contractor at all times, the COR is authorized to conduct oversight on any and all tasks or requirement and report observations to the Contracting Officer. The COR is not authorized to change any terms or conditions in the contract that pertain to cost, schedule, performance, quality, quantity, or other legal aspects of the resulting order.

1.7.1.21 Identification of Contractor Employees: All Contractor personnel attending meetings and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials. They must also ensure that all documents or reports produced by the Contractor are suitably marked as Contractor products or that Contractor participation is appropriately disclosed.

1.7.1.22 Phase In/Phase Out: To minimize any decreases in productivity and to prevent possible negative impacts on additional services, the Contractor shall have personnel on board, during the phase in/phase out periods. The phase in period will begin on the first business day after the contract is awarded. During the phase in period, the Contractor shall become familiar with performance requirement sin order to commence full performance of the services on the contract start date, submit lists of employees working under this contract, and move and stage all needed equipment, materials, and supplies onto the designated contractor area at **Riverside National Cemetery**. It is expected that this task will take no less than two weeks and no more than four weeks.

2. Definitions & Acronyms

2.1 Definitions: (See the "Glossary" of the National Cemetery Administration, Operational Standards and Measure Guidebook for a list of cemetery-specific definitions.)

2.1.1 Animal: any living that is not human being or a plant.

2.1.2 Backflow Preventer: A device which prevents any fluid from back-siphoning into the source water such as hydrants, spigots, pipes, or other water sources. Contractor shall ensure such devices are employed whenever watering, filling water or pesticide mix tanks, or mixing pesticides or any other product with water.

2.1.3 Clean: Free of all foreign matter.

2.1.4 Cleaning Agents: Products and substances (usually liquids, pastes, powders, sprays, or granules) used to remove dirt and detritus, including dust, stains, oxidation on surfaces.

- 2.1.1.5 Cleaning Equipment: Devices, tools, and machines designed for specific cleaning tasks, including pads and cloths.
- 2.1.1.6 Contract Administrator: The official Government representative delegated authority by the Contracting Officer to administer a contract. This individual is normally a member of the appropriate Contracting/Procurement career field and advises on all technical contractual matters.
- 2.1.1.7 Contracting Officer's Representative (COR): A representative from the requiring activity appointed by the Contracting Officer to perform surveillance and to act as liaison to the Contractor.
- 2.1.1.8 Crown Raising: The removal of the lower branches of a tree to provide clearance for buildings, signs, vehicles, pedestrians and vistas, also known as "limbing up" and "lifting". Do not "limb up" coniferous trees.
- 2.1.1.9 Crown Thinning: The selective removal of dead, diseased, broken or weakly attached branches (Crown Cleaning) and: the removal of branches to increase light penetration and air movement through the crown; thinning towards the branch tip to reduce the wind-sail effect of foliar clumps in the crown; and thinning to relieve the weight of heavy limbs. Only 25 percent of a tree's leaf area can be removed at any one time.
- 2.1.1.10 Crown Cleaning: The selective removal of dead, diseased, broken or weakly attached branches. This constitutes regular landscape maintenance pruning that will correct small growth problems before they become larger, more costly problems.
- 2.1.1.11 Crown Reduction: Pruning to reduce the size of the tree.
- 2.1.1.12 Cycle: The completion on one unit of work, from beginning to end, that involves a give distance or length of time (For example, picking up all trash once a week, or an edging of all curbs along all Cemetery roads).
- 2.1.1.13 Deadwood Pruning: Pruning to remove deadwood and/or broken branches that pose a potential risk that could result in personal injury or property damage. This category is used for any tree with broken, hanging, dead, or otherwise potentially dangerous limbs or those trees with a significant number of dead branches that require removal.
- 2.1.1.14 Decomposed Granite: Fine, crushed, screened, naturally friable granite rock, 1/4-inch minus material to match existing. Gradation as determined by ASTM C 136 with 50 to 100 percent passing the No. 4 sieve, with 5 to 18 percent passing the No. 200 sieve. Approved material: 'Gail's Gold' decomposed granite as available from Gail Materials, Tel.: (951)667-6106; (or equivalent material as approved by the COR).
- 2.1.1.15 Defective Service: A service output that does not meet the standard of performance associated with it in the PWS.
- 2.1.1.16 Deliverable: Anything that can be physically delivered but may include non-manufactured things such as meeting minutes or reports.
- 2.1.1.17 Drip Zone Assembly: Assembly consisting of remote control valve, drip filter, drip pressure regulator, unions, shut-off valve, nipples, pipe, and valve box or vault.
- 2.1.1.18 Evapotranspiration: The combined loss of water from soil through evaporation and plant transpiration.
- 2.1.1.19 First Interment Area: Areas within the burial sections where the government is actively assigning new gravesites and conducting new interments.
- 2.1.1.20 Foreign Matter: Dirt, marks, stains which can be removed with reasonable cleaning effort and appropriate cleaning agents and equipment. Feces of all types.
- 2.1.1.21 Full Sun Areas: Areas receiving more than 5 hours of direct sunlight per day.

- 2.1.1.22 Government Furnished Equipment (GFE): Equipment in the possession of, or directly acquired by, the Government and subsequently made available to the Contractor.
- 2.1.1.23 Government Furnished Property (GFP) or Government Property (GP): Property in the possession of, or directly acquired by, the Government and subsequently made available to the Contractor.
- 2.1.1.24 Ground cover: Low growing plants growing over an area of ground. Ground covers include grasses, shrubs, and herbaceous plants.
- 2.1.1.25 Grounds and Boundaries: All developed land including turf, walks, beds, planter beds, drainage ditches, roads, steps, plazas, and parking lots within the property line of the Cemetery.
- 2.1.1.26 Headstone: include flat markers. The term headstone is synonymous with marker.
- 2.1.1.27 "Hot Spot": An isolated patch of turf as evident by dry soil, hydrophobic soil, and brownish or yellowing leaf color.
- 2.1.1.28 Inorganic Mulch: Decomposed granite, path fines, gravel, pebbles, cobblestones, riprap, boulders, artificial bark mulch.
- 2.1.1.29 Irrigated Turf: Lawn that has permanent irrigation system installed.
- 2.1.1.30 Height of Turf: Height, if not readily obvious, shall be determined by the COR (in the presence of the Site Manager) by measuring the height of the turf plants with a yardstick in four locations – randomly selected by the COR – within the burial section or Highly Prominent area in question. The COR will then determine the average height of those measurements.
- 2.1.1.31 Irrigation Hours: Period of time during which landscape irrigation is permissible and does not interfere with visitation and cemetery operations; typically, between 4:30pm and 8:00am.
- 2.1.1.32 Master Valves: Mainline remote control valves controlling flow of water to mains. Master valves may be normally open supplying water under pressure to mains, or normally-closed shutting off water under pressure to mains when not irrigating.
- 2.1.1.33 Mulch Bed: Any area containing primarily organic and/or inorganic mulches.
- 2.1.1.34 Non-irrigated Turf: Low Maintenance Lawn, Slow-Growth Area, "Green" Burial Section. Lawn that does not have a permanent irrigation system installed and is allowed to go dormant during extremes of heat and cold.
- 2.1.1.35 Non-pressure Piping: Lateral line pipe that is not under water pressure until the control valves are opened. Pipe that is typically downstream of the control valve.
- 2.1.1.36 Organic Mulch: Decorative tree bark, compost, nut shells.
- 2.1.1.37 Overseeding: The practice of seeding another species over an existing stand to produce viable turf when the existing stand has become dormant.
- 2.1.1.38 Part Sun Areas: Areas receiving less than 5 hours of direct sunlight per day normally due to shade from tree canopies.
- 2.1.1.39 Pest: Any plant or animal detrimental to humans or human concerns including weeds, fungi, molds, vertebrates, and invertebrates.
- 2.1.1.40 Pesticide: Includes herbicides, insecticides, horticultural oils, fungicides, poisonous baits, and fumigants.
- 2.1.1.41 Planting Bed: Any area planted with trees, shrubs, and ground covers.
- 2.1.1.42 Posting Signs: Industry standard warning signs stating that a pesticide application has been applied.

- 2.1.1.43 Performance Work Statement: The PWS is a detailed set of verifiable performance or quality standards for everything the Contractor is required to perform or produce. Performance-based statements of work (referred to as a PWS) are the preferred method of stating needs in terms of performance outputs. A performance-based statement of work structures all aspects of an acquisition around the purpose of the work to be performed and does not dictate how the work is to be accomplished. It maximizes Contractor control of work processes and allows for innovation in approaching various work requirements.
- 2.1.1.44 Pressure Piping: Mainline and submain pipe that is constantly under water pressure. Pipe that is typically upstream of the control valve.
- 2.1.1.45 Outlets: Sprinkler heads, drip emitters, drip flush valves, drip air relief valves, including pipe risers and swing joints.
- 2.1.1.46 Polished: Smooth and shiny as a result of being rubbed. Free of oxidation.
- 2.1.1.47 Quality Assurance Surveillance Plan (QASP): An organized written document specifying the surveillance methodology to be used for surveillance of Contractor performance.
- 2.1.1.48 Quality Assurance: A procedure or set of procedures taken by the Government to ensure that services under development (before work is complete, as opposed to afterwards) meets specified requirements of the PWS.
- 2.1.1.49 Quality Control: A procedure or set of procedures implemented by the Contractor to ensure that the performed service adheres to and meets the requirements of the PWS.
- 2.1.1.50 Reasonable Cleaning Effort: Commercially reasonable amount of time and expenditure of physical effort needed to clean an element utilizing commercially available equipment and products designed specifically for that task.
- 2.1.1.51 Remote Control Valve Assembly: Assembly consisting of remote-control valve, unions, shut-off valve, nipples, pipe, and valve box or vault.
- 2.1.1.52 Removal: The transport of identified material, such as trash and debris, from the area it was found to a place of final repository. All trash will be removed and transported in a manner that prevents spillage on the streets or adjacent areas and deposited – such as a dumpster or the Cemetery grounds soils area. Organic waste will be put in the soil areas. Trash will be put in the dumpsters.
- 2.1.1.53 Routine Pruning: Regular maintenance to reduce the development of future problems or correct minor problems that could increase if not corrected. This primarily includes trees with minor amounts of deadwood less than two inches in diameter or with correctable structural problems. Trees with growth patterns that will eventually obstruct or interfere with understory plant growth and health, pedestrian or vehicular traffic clearance, and lines of sight are also included in this category.
- 2.1.1.54 RTF: Rhizomatous Tall Fescue. Turf-type tall fescue which produces rhizomes, underground stems that penetrates laterally through the soil to spread the plant while sending shoots up to the soil surface, forming a new plant.
- 2.1.1.55 Submaster Valves: Submain remote control valves controlling flow of water to submains. Master valves may be normally open supplying water under pressure to submains, or normally closed shutting off water under pressure to mains when not irrigating.
- 2.1.1.56 Training Pruning: Prune young or small trees less than 20 feet in height in order to reduce the development of future structural problems. Trees with growth patterns that will eventually obstruct or interfere with understory plant growth and health, pedestrian or vehicular traffic clearance, and lines- of-sight are also included in this category.
- 2.1.1.57 Stabilizer: A water-based polymer or organic powdered binder solidifying emulsion specifically manufactured to harden decomposed granite. The solidifying emulsion shall not

alter the gravel color. A copy of the manufacturer's product sheets and instructions for application shall be furnished to the COR for approval.

- 2.1.58 Topsoil: ASTM D 5268; natural or cultivated surface-soil layer containing organic matter and sand, silt, and clay particles, conforming to USDA classification for Loam or Sandy Loam; friable, pervious, and compatible in texture with the existing soil to prevent a perched water table; ECe less than 3 mmhos/cm; a minimum of 2 percent/maximum of 10 percent organic material content; pH range between 6 and 8; reasonably free of subsoil, clay lumps, gravel, rocks and other objects more than 13 mm (1/2-inch) in any dimension; and free of weeds, roots, and other extraneous materials harmful to plant growth.
- 2.1.59 Trash and Debris: Any item, material or foreign object not permanently attached to or planted within the grounds and boundaries. Items include – but are not limited to – fallen twigs and branches that are under ten (10) inches in diameter at their widest point, paper products, cigarette butts, glass and metal products, plastic and any other synthetic item, plus loose rock and stone three (3) inches in diameter or greater that are not the apparent result of an interment within the past 30 days. Not included are stains, loose soil, smaller stones, or leaves. Exception: Loose soil, smaller stones and leaves are included when part of blowing off a roadway or walk, and when performing a clean-up prior to a major ceremony.
- 2.1.60 Trash & Debris: Any item, material or foreign object not permanently attached to or planted within cemetery grounds and boundaries. Items include, but are not limited to leaves, needles, flowers, seedpods, twigs, branches of all sizes, feces, paper products, cigarette butts, gum, glass and metal products, plastic and any other synthetic items, gravel, asphalt, concrete, loose rock and stones over two inches (2") in diameter, and soils that are a result of interment operations.
- 2.1.61 Turf: Turfgrass, grass, lawn. Any ground cover consisting primary of cultivated turfgrass species, such as perennial ryegrass and tall fescue.
- 2.1.62 Valves: Backflow prevention devices, isolation valves, pressure regulating valves, automatic valves, hydrometers, master valves, air and vacuum release valves, remote control valves, blow-off valves, hose bibs, quick couplers.
- 2.1.63 Vegetation: All plant material including weeds.
- 2.1.64 "Water-Wise" burial section is an interment area with a ground surface consisting of non-living groundcover material such as a mineral mulch. The mineral mulch is typically a crushed aggregate surfacing such as decomposed granite, or other COR-approved 1/4-inch minus crushed aggregate material.
- 2.1.65 Water-wise cemetery is surfaced with a layer of sand or mineral-based ground cover, (e.g., decomposed granite).
- 2.1.66 Weed: Any non-desirable plant material, including escaped and invasive ornamental plants
- 2.1.67 Wildflowers: Annual and perennial flowering ground cover plants grown by sowing seeds.
- 2.1.68 Windrows of Turf Clippings: Any accumulation of turf clippings which cover or block sunlight from reaching the newly mowed or trimmed turf area.

2.2 Acronyms:

AM	ante meridiem
CO	Contracting Officer
COR	Contracting Officer Representative
EMS	Environmental Management System
e.g.	for example
EA	Each
FY	Fiscal Year

IAW	In accordance with
i.e.	that is
IPM	Integrated Pest Management
JB	Job
JER	Joint Ethics Regulation
lbs	pounds
MO	Months
mph	miles per hour
NCA	National Cemetery Administration
NIOSH	National Institute of Occupational Safety and Health
OSHA	Occupational Safety and Health Act
OPT	Option
PWS	Performance Work Statement
PM	post meridiem
QTY	Quantity
QC	Quality Control
QASP	Quality Assurance Surveillance Plan
SSD	Security and Safety Directorate
SWPP	Stormwater Pollution Prevention Plan
SF	Square Feet
TE	Technical Exhibit
VA	Department of Veteran's Affairs

3. Government Furnished Property, Equipment, and Services

- 3.1 **General Information:** The Government will provide the property and services listed below. The Contractor shall not use the property or services provided by the Government for any purpose other than in the performance of this contract. All requests for Government furnished property and services shall be approved by the COR and Contracting Officer in writing.
- 3.2 **Facilities:** The Government shall furnish a parking and staging area for vehicles and equipment with no guarantee of security for the designated area or any assurances of utilities or phone lines. A temporary storage area for tree branches, sticks, and leaves will be provided. Maintenance of equipment must be conducted offsite (no hazardous materials), unless light routine repairs are needed, such as changing flat tires, blade sharpening, etc.
- 3.3 **Equipment:** The Government will provide a roll-off dumpster for trash.
- 3.4 **Utilities:** Water will be available at various areas as designated by the COR through in-ground water sources throughout the cemetery. Electric, gas, or phone lines are not guaranteed for the Contractor in designated staging areas. The Contractor shall instruct employees in utilities conversation practices. The Contractor shall be responsible for operating under conditions that preclude the

waste of utilities. If abuse or waste is suspected, the Government reserves the right, at any time during the contract performance period, to provide utilities to the Contractor on a fee-for-use basis.

3.5 **Floral Vases:** Floral vases for public use and stocking by the Contractor.

4. Contractor Furnished Items, Services & Requirements

4.1 **General Information:** The Contractor shall furnish all supplies, equipment, facilities, and services required to perform work under this contract that are not listed under Section 2 of this PWS. The Contractor shall also provide transportation and permits necessary to perform the requirements of this contract. This does not include the Government furnished dumpster for trash, as described in 3.3 of Government Furnished Property.

4.1.1 **Equipment Guidelines:** The Contractor's equipment shall be commercial grade equipped with protective and safety features that is in good repair, and clean. The Contractor shall submit, to the Contracting Officer, and equipment list which includes, but is not limited to, quantities and descriptive data for all equipment prior to its use on CEMETERY grounds. The Contractor shall inform the Contracting Officer, in writing, of any equipment list changes prior to implementing the changes. The equipment and supplies the Contractor uses shall not cause damage to ground areas, headstones, monuments, walkways, trees, or any other part of the landscape. It is expected that the Contractor will take preventative measures when entering soft grounds with equipment, such as the use of boards, to prevent ruts.

4.1.2 **Comprehensive Grounds Management Plan:** A comprehensive Grounds Management Plan (GMP) submitted to the COR within 30 workdays following contract award. The GMP shall identify every task, frequency, and planned duration required under this contract. Changes to the plan must be approved by the COR prior to implementation and prior to any updates. Pesticide and fertilizer applications must include a legend indicating the specific product, application rate (quantity and active ingredient per acre or 1000 square feet).

4.1.3 **Weekly Work Plan:** Weekly electronic notification to the COR Team outlining the work planned during the following workweek no later than noon on the final workday of each week. The plan shall include sufficient detail by day and area to allow meaningful quality control by the Contractor and quality assurance by the COR Team.

4.1.4 **Completed Work Report:** Weekly electronic notification to the COR Team detailing what work was completed during the workweek no later than 3:00 p.m., on the final workday of each week. The report will detail all work completed, by day and area during the week, including specifics regarding marker settings, alignments, et cetera.

- 4.1.5 **Pesticide Dispersal Equipment:** The Contractor shall furnish pesticide dispersal equipment without visible deterioration or leaks in any component and shall operate the equipment IAW the manufacturer's recommendations. All pesticide tanks of powered dispersal equipment shall be clearly and plainly labeled "Contaminated with Pesticides." All tanks of powered pesticide equipment dispersal equipment shall also have a license decal that is attached in a conspicuous location and contains an identification number and the name of the issuing agency.
- 4.1.6 **Compost, Soil Amendments, Fertilizer List:** A list of all proposed compost, soil amendments, fertilizers with the proposal and the following samples and/or reports for review and approval by the COR and Pacific District Agronomist within ten (10) workdays after contract award. Changes must be approved by the COR prior to use.
- 4.1.7 **Vehicles:** The Contractor shall provide vehicles for the performance of services on this contract. Contractor and Contractor employees shall abide by all speed limitations while operating a vehicle at the Cemetery. The speed limit at the Cemetery is 15 mph on cemetery roads and 10 mph when passing pedestrians. The Contractor shall be responsible for all maintenance and repair of Contractor furnished vehicles.
- 4.1.8 **Vehicle Safety Equipment:** Contractor vehicles used to transport herbicides shall house a National Institute of Occupational Safety and Health (NIOSH) approved spill and decontamination kit and shall be equipped with a fire extinguisher which has an ABC rating with minimum capacity of pounds.
- 4.1.9 **Communication Devices:** Any employees performing during outside of normal operating hours (as authorized by the COR) shall also be available to communicate during those times. The Contractor shall be available by mobile phone 24 hours a day, 7 days a week in the event they need to be contracted regarding an emergency, significant weather event, etc. All cost related to providing wireless communication devices are the responsibility of the Contractor.
- 4.1.10 **Standards of Employee Conduct & VA Regulations:** Contractor and contractor personnel shall be required to adhere to the following standards of dress and conduct while performing work in the National Cemetery. These standards and regulations are enforceable under Title 38, U.S.C. Section 218. Contractors, and all contractor personnel, shall follow all US Department of Veterans Affairs, National Cemetery Administration, and Riverside National Cemetery *environmental* protection standards, policies and procedures, including, but not limited to, the NCA Environmental Management System and Green Purchasing policies.

Contractor and contractor's employees shall be required to wear uniforms displaying the name of the company the employee's name, and status. Outer wear (including jackets, coats, hats, rain gear, etc.) must also comply with above. The contractor's employees shall be fully clothed at all times, to include long slacks or pants and shirt, buttoned up from neck

to waist. Clothing shall be clean each day. Any soiled clothing should be cemetery work-related that day. T-shirts and/or tank tops as outer garments are prohibited. Garments displaying a "message" or "slogan" other than the Contractor's business attire are prohibited. Other clothing in question shall require the Director's written approval.

Contractor and contractor employees will maintain personal hygiene. Shoes/boots will have no holes or loose soles. Steel-toed shoes will be required in accordance with OSHA. All required uniforms and personal protective equipment will be provided by the Contractor-to-contractor personnel.

Contractor and contractor personnel shall show proper reverence during committal service and other cemetery ceremonies. Contractor and contractor personnel shall not engage in loud or boisterous behavior, use profane or abusive language nor use personal radios. Due to the sensitive mission of the Cemetery, Contractor and Contractor employees shall exercise courtesy and respect while within the cemetery. If inquiries are received from visitors, they are to assist visitor to the best of their ability.

Possession of weapons is prohibited. Enclosed containers, including tool kits, shall be subject to search. Violations of VA regulations may result in citation answerable in the United States (Federal) District Court, not a local district, state, or municipal court. 4.1.8

- 4.1.11 **Use of Cemetery Facilities:** The Government will not be responsible for any loss, damage, or theft of contractor items. Contractor shall be responsible for acceptable standards of housekeeping and custodial maintenance of Department of Veterans Affairs' facilities used by contractor's employees that are acceptable to the COR and in accordance with National Cemetery Administration Operational Standards and Measures (Version 5.1, July 2014 or the most current version).

All contractor personnel operating motorized vehicles/equipment on government property must possess a valid state driver's license. Contractor and contractor personnel may park privately owned vehicles in the area designated for parking by the COR. It is the responsibility of the Contractor to ensure his employees park in the appropriate designated parking areas. The Cemetery will not invalidate or make reimbursement for parking violations of the Contractor or contractor's personnel under any circumstances. The Government is not responsible for any damage, theft or vandalism to privately owned vehicles parked on cemetery property. All Contractor employees park on cemetery property at their own risk. The Contractor shall observe all traffic, parking, directional signs and regulations when using the cemetery's roadways. The Cemetery will not invalidate or make reimbursement for parking violations of the Contractor's employees under any conditions.

- 4.1.12 **Storage Facilities:** The Government will not furnish any building(s) at the cemetery site for use by the Contractor to store supplies, equipment, etc. The Government will provide the

Contractor with a fenced storage yard to store supplies, tools and equipment directly related to the implementation of this contract. However, the Government will not be responsible for any damage to or loss of the Contractor's equipment and supplies, or items belonging to Contractor's personnel stored on the Government's premises. The Contractor shall provide any storage buildings/lockers at their own expense. Storage buildings/lockers shall be in presentable condition. Conex boxes shall be painted to blend into the natural landscape. Equipment and supplies stored by the Contractor shall be maintained in a neat and orderly fashion.

- 4.1.13 **Restrooms:** Contractor and contractor employees shall not be allowed to use cemetery staff or public restrooms. Contractor must provide adequate, COR- approved, restroom facilities for their personnel. A septic system hook-up is available for a contractor-provided office trailer as approved by the COR. Contractor shall be fully responsible for maintenance and repairs to septic system and leach fields if used for their benefit.
- 4.1.14 **Materials Storage Area:** Other landscape materials (compost, mulch, topsoil, sand, gravel, etc.) may be stored within the Contractor's fenced storage yard as approved by the COR. The contractor is responsible for Stormwater Pollution Prevention Plan (SWPP) and erosion prevention control measures related to the stockpiling of these materials in accordance with local, state and federal regulations.
- 4.1.15 **Hazardous Materials Storage:** The Contractor shall request the approval of the COR if the Contractor desires to store any hazardous materials at the Cemetery. If approval is granted the Contractor is responsible for safely storing any chemicals, pesticides, herbicides, cleaning solutions, flammable materials, etc. on site in properly ventilated hazardous materials lockers in accordance with all federal, state and county laws and regulations and manufacturers recommendations. Each locker shall be rated for the storage of the specific material(s) housed inside and shall be Cal-OSHA compliant. The lockers are subject to inspection by NCA, federal, state and local authorities. Items stored within the lockers shall be maintained in a neat and orderly fashion.

The Contractor shall provide, as part of their offer, a list of tools and equipment to be used during the course of the contract, for the approval of the Government. Ten (10) days after contract award, and every year thereafter, the Contractor shall verify in writing that this equipment is in safe operating condition. The Contractor shall comply with all Federal, State, City, County, and local laws and regulations regarding the use of Personal Protective Equipment (PPE) for all contract personnel. All Personal Protective Equipment is provided by the Contractor.

The Contractor shall be responsible for maintaining fire extinguishers and other safety equipment. SDS or Safety Data Sheets (formerly known as MSDS or Material Safety Data Sheets) are required for all chemicals, pesticides, herbicides and cleaning solutions. The Contractor shall provide master file of SDS sheets to the COR. The contractor shall also maintain a file of all SDS sheets wherever these materials are stored. Should the storage

yard should become unusable, the Contractor will be given a minimum of 60 days to find storage off the cemetery grounds. The Contractor shall then be responsible for delivering and removing all necessary equipment and supplies on a daily basis. Inability to use the storage yard will in no way alter the contract.

- 4.1.16 **Cell phone usage:** Contractor's personnel should refrain from using cell phones for non-contract work related business while in public areas. This includes, but is not limited to, calls, texting, and internet related functions. Any cell phone use while operating vehicles/equipment is strictly prohibited. The use of headphones/ear buds by Contractor and Contractor's personnel is prohibited.
- 4.1.17 **Inspection of Cemetery Facilities:** The Contractor shall perform no less than weekly inspections of the entire cemetery to ensure that National Shrine Standards are met. During this inspection, any deficiencies noted within the scope of the contract will be corrected as soon as practicable. Items that need correcting outside the scope of the contract will be reported to the Contracting Officer or COR. The Contractor will be required to submit inspection reports and work accomplished to the COR weekly on Fridays. The inspection forms will be provided to the Contractor by the COR.
- 4.1.18 **Safety & Training:** The Contractor shall also be responsible for training and safety precautions for Contractor employees performing work under these specifications. OSHA standards shall be observed by the Contractor in all work performed. Appropriate safety equipment shall be furnished by the Contractor-to-Contractor personnel and shall be used as prescribed by OSHA standards, including hard hats, safety shoes, safety glasses, gloves and hearing protection devices. The following OSHA and NFPA standards and codes are to be adhered to: National Fire Protection Association (NFPA): 10-1998 Standard for Portable Fire Extinguishers. Occupational Safety and Health Administration (OSHA) 29 CFR 1910 Safety and Health Regulations for Personal Protection, Safety Color Codes, Portable Power Tools, Electrical Safety and Portable Electric Equipment. Contractor should maintain free and unobstructed access to facility emergency services and for fire, police and other emergency response forces in accordance with NFPA 241.

The Contractor shall be fully licensed to purchase and apply pesticides as required by Federal, State, City, and County, laws and regulations. The Contractor shall fully comply with all applicable Federal, State, City, and County, laws and regulations. The Contractor shall provide, as part of their offer, a list of tools and equipment to be used during the course of the contract. The Contractor shall verify in writing that this equipment is in safe operating condition.

The Contractor shall comply with all Federal, State, City, and County regulations regarding the use of Personal Protective Equipment (PPE) for all contract personnel. All Personal Protective Equipment is provided by the Contractor. Contractor's employees shall wear all required safety equipment such as goggles or face shield, hearing protection, hard hats,

respirators, if required, and uniforms identifying them as an employee of the Contractor. The Contractor shall be responsible for providing and maintaining fire extinguishers, and other safety equipment for Spill Prevention Control Countermeasures (SPCC). Contractor shall have a Spill Control and Countermeasure Plan (SCCP).

Contractor shall be responsible for maintaining a hazardous chemical list for all chemicals entering the Cemetery. The Contractor must keep all employee training records on site and available for review by the COR. SDS (Material Safety Data Sheets) are required on-site for all chemicals, pesticides, herbicides, and cleaning solutions. Contractor shall be responsible for maintaining monthly fuel tank inspection reports and shall have records available for review by local authorities during site safety inspections. The Contractor shall be responsible for training and safety precautions prescribed by OSHA standards.

The Contractor shall be responsible for safely storing any chemicals, pesticides, herbicides, cleaning solutions, and other hazardous materials in accordance with manufacturers printed instructions. Contractor shall maintain a binder with SDS (Safety Data Sheets) for all chemicals, pesticides, herbicides and cleaning solutions stored and used on site stored in the maintenance area with telephone numbers of poison control centers to call in case of an accident. The Governments Environmental Management System Coordinator will make periodic inspection on the storage of hazardous chemicals, etc. Contractor shall take corrective action immediately to remedy any deficiencies with safeguards to protect personnel and the environment.

4.1.19 Protection & Clean Up: The Contractor shall leave all work areas free of debris and in the same condition as before the work commenced. The Contractor shall take all necessary precautions to protect monuments, headstones, markers, vegetation, and structures as appropriate, in the immediate work area(s). The Contractor shall not use any herbicide in either granular or liquid form that will stain or discolor any headstones and will notify the COR of all materials scheduled for use on mineral mulch before any application. Contractor shall be responsible for cleaning cemetery structures, headstones, monuments, and roadways that are soiled or stained because of Contractor's performance. The Contractor shall wash-down with water all soiled or stained structures, headstones, and monuments at the end of each workday. No unapproved hazardous chemicals are to be used at any time on Government property. The Contractor shall bear all costs associated with washing and cleaning. Any such washing/cleaning shall be brought to the immediate attention of the Contracting Officer Representative (COR) prior to washing/cleaning.

4.1.20 Maintenance During Cemetery Functions: The Contractor shall coordinate a work schedule with the COR(s) daily to ensure that no work is being performed at the immediate site of a scheduled interment. These daily meetings are also an opportunity for the Contractor to ask questions and ensure he/she understands the off-limit areas, which may vary, depending on the event. The Contractor is solely responsible for ensuring that no contract work causes any funeral, service, ceremony, procession or visitation to be delayed, altered, or otherwise

impacted in such a way that the dignity or security of the event is compromised. The Contractor is solely responsible for staying abreast of all such upcoming events and when in doubt, he/she must ask the COR(s) for information/details.

The Contractor shall meet with the COR at the end of each day to determine work completed and ensure that work is on schedule. In the absence of the COR, the Contractor shall meet with an Alternate COR.

Contractor personnel shall not operate motorized equipment or conduct other commercial activities within the designated area during interment services. The COR will set the designated area. The COR or his/her representative shall furnish the Contractor with a schedule of all interments and/or ceremonies no later than 8:30 am on the date of the scheduled interment, and a minimum of three (3) days before any ceremonial events. Note: To cause the least possible interference with cemetery activities, contract personnel will stop (cease) all work in areas where burials are taking place. As a general "rule-of-thumb", work shall not take place within 1,000 feet of an ongoing committal service or ceremony. The Site Manager shall re-direct work throughout the rest of the Cemetery so that productive use of labor and equipment is assured, and downtime is avoided. If the Contractor fails to re-direct employees away from an event in a timely fashion, the COR may then do so.

Performance Evaluation Meeting: The issuance of a Contract Discrepancy Report (CDR) may be cause for the scheduling of a meeting among the Contractor, Contracting Officer, and the COR to evaluate Contractor performance of the contract. A mutual effort will be made to resolve all problems identified. The Government will prepare written minutes of the meeting. The Contractor, Contracting Officer, and the COR will sign minutes of the meeting(s). Minutes of the meeting (s) will be signed by the Contractor, Contracting Officer, and the Contracting Officer Technical Representative. Should the Contractor not concur with the meeting minutes, he/she will state in writing to the Contracting Officer within ten calendar days any areas he/she does not concur and explain the reasons for non-concurrence. The Contracting Officer will review and consider the reasons submitted for the Contractor's non- concurrence and make a decision. The Contracting Officer will notify the Contractor of the decision in writing within ten calendar days.

- 4.1.21 **Actions:** Normally, the COR will verbally advise or give a written inspection report to the Contractor of discrepancies the first time they occur and ask the Contractor to correct the problem. A notation will be made on the COR checklist of the date and the time the deficiency was discovered and the date and time the Contractor was notified.

When the Contractor is not meeting the limits of satisfactory performance, a CDR will be issued to the Contractor. The seriousness of the failures should govern whether to issue CDR at the end of the period, or as soon as the limits of satisfactory performance are exceeded.

When a CDR is issued for a service, the Contracting Officer (CO) must deduct from the periodic payment, a percentage of that payment. If the Contractor does not achieve satisfactory performance by the end of the next period or agreed suspense date, another CDR will be issued, and the appropriate amount deducted from the periodic payment. A third CDR will be the cause for a Cure Notice. However, the Contracting Officer may issue a Cure Notice at any time he/she deems appropriate. Depending on the overall performance of the Contractor, an unsatisfactory reply to the Cure Notice should require a Show Cause letter to be issued, followed by consideration of termination of the contract.

- 4.1.22 Superintendent & Crew Foreman:** The Contractor shall provide a superintendent and a crew foreman who shall each have a minimum of two (2) years' experience as a direct supervisor of commercial Landscape Maintenance/Construction operations. Both the superintendent and the crew foreman shall speak fluent English. The superintendent and/or the crew foreman shall be on-site at all times.

The superintendent will be responsible for the following: Directing, overseeing, and coordinating the work involved on a daily basis in accordance with this Statement of Work, the daily Interment Schedule, and the Cemetery Grounds Management Plan. Staying abreast of all upcoming cemetery functions including special holiday events, burial activities and floral regulations. Ensuring that grounds maintenance work does not cause any burial, committal service, ceremony, funeral procession or visitation to be delayed, altered, or otherwise impacted in such a way that the dignity, security, or safety of the event or visit is compromised.

- 4.1.23 Changes to the Performance Statement of Work:** Any changes to this Statement of Work shall be authorized and approved only through written correspondence from the Contracting Officer. The Contractor shall contact the Contracting Officer on all matters pertaining to administration. Only the Contracting Officer is authorized to make commitments or issue changes, which will affect the price, quantity, or delivery terms of this contract. A copy of each change will be kept in a project folder along with other products of the project. Costs incurred by the contractor through the actions of parties other than the Contracting Officer shall be borne by the contractor.

- 4.1.24 Communication & Coordination of Work with COR:** Communication with the COR is strongly encouraged. Burial activities shall take precedence over grounds maintenance activities. Work activity and noise other than that required for the interment services cannot disturb burial ceremony. Trucks and workmen are prohibited from passing through the service area during this period. During the burial section grooming process, the crew foreman shall communicate daily with COR, to ask questions and ensure he/she understands the off-limit areas, which will vary depending upon event.

NCA Pacific District (PCD) Performance Work Statement (PWS)

- Category 1: Gravesite Maintenance
- Category 2: Turf and Grasses Maintenance
- Category 3: Tree, Shrub & Planting Bed Maintenance
- Category 4: Irrigation System Services
- Category 5: Pond Services
- Category 6: Drainage System Maintenance
- Category 7: Trash & Debris Removal

5. SPECIFIC CONTRACTOR TASKS AND ASSOCIATED DELIVERABLES

- 5.1 BASIC SERVICES:** The Contractor shall provide all labor, equipment, materials (unless otherwise specified), and supervision of its employees to perform turf and grounds maintenance and improvement services. Compile and submit a detailed Grounds Management Plan (GMP) within the first 30 workdays following contract award. The Contractor may be asked to provide a quote from time to time. All quotes shall be detailed, itemizing materials and labor. There is no guarantee the Contractor will perform any of the repairs they recommend or quote. Services required include Riverside National Cemetery Gravesite Maintenance; Turf & Grasses Maintenance; Tree, Shrub & Planting Bed Maintenance; Irrigation System Services; Pond Services; Drainage System Maintenance; Trash & Debris Removal NCA Standards shall control and supersede any inconsistency, conflict, or ambiguity with PCD Operating Procedures.

5.2 TURF & GRASS MAINTENANCE

CLIN 0001 – Qty 12 Months

Subject to SCA and Commercial Provisions/Clauses

General Requirements:

- Turf Renovation
- Turf Maintenance – Fertilization
- Turf Maintenance – Pest Control
- Turf Maintenance – Mowing, Trimming & Edging

5.2.1 TURF RENOVATION

- 5.2.1.1** Work consists of ground preparation and seeding/sodding of areas of the cemetery where the turf is thin, has died, has become infested, or otherwise is in need of renovation. (See Appendix for approximate square-feet of turf that will need renovation each year.)
- 5.2.1.2** Non-irrigated turf areas must be prepared and re-seeded twice yearly as needed to restore a healthy stand of turf that is generally free of weeds.
- 5.2.1.3** The Contractor must be responsible for the removal and disposal of any weeds, dead turf, and must use quality topsoil and compost/seed topper in performance of the seeding]/sodding.

- 5.2.1.4 All newly dug or refilled graves must be re-planted with turf by seed/sod.
- 5.2.1.5 Turf damaged by the process of Flat Headstone Raise & Realignment must be repaired as per "Seeding of Individual Gravesites".
- 5.2.1.6 The finished grade of each gravesite must conform to the height and alignment specifications as expressed in "Headstone Setting and Realignment" section of this contract.
- 5.2.1.7 Definitions:
- 5.2.1.8 Turf: Turfgrass, grass, lawn. Any ground cover consisting primary of cultivated turfgrass species, such as perennial ryegrass and fescue.
- 5.2.1.9 Overseeding: The practice of seeding another species over an existing stand to produce viable turf when the existing stand has become dormant.
- 5.2.1.10 Irrigated Turf: Lawn that has permanent irrigation system installed.
- 5.2.1.11 Non-irrigated Turf: Low Maintenance Lawn, Slow-Growth Area, "Green" Burial Section. Lawn that does not have a permanent irrigation system installed and is allowed to go dormant during extremes of heat and cold.
- 5.2.1.12 RTF: Rhizomatous Tall Fescue. Turf-type tall fescue which produces rhizomes, underground stems that penetrates laterally through the soil to spread the plant while sending shoots up to the soil surface, forming a new plant.
- 5.2.1.13 Full Sun Areas: Areas receiving more than 5 hours of direct sunlight per day.
- 5.2.1.14 Part Sun Areas: Areas receiving less than 5 hours of direct sunlight per day normally due to shade from tree canopies.
- 5.2.1.15 Topsoil: ASTM D 5268; natural or cultivated surface-soil layer containing organic matter and sand, silt, and clay particles, conforming to USDA classification for Loam or Sandy Loam; friable, pervious, and compatible in texture with the existing soil to prevent a perched water table; ECe less than 3 mmhos/cm; a minimum of 2 percent/maximum of 10 percent organic material content; pH range between 6 and 8; reasonably free of subsoil, clay lumps, gravel, rocks and other objects more than 13 mm (1/2-inch) in any dimension; and free of weeds, roots, and other extraneous materials harmful to plant growth.
- 5.2.1.16 USDA. United States Department of Agriculture.
- 5.2.1.17 ASTM. American Society for Testing and Materials.

5.2.2 TURF RENOVATION - Irrigated Turf

- 5.2.2.1 VEGETATION REMOVAL:
- 5.2.2.2 Apply herbicide in a minimum of two applications. Do not turn off the irrigation system until just before the first application of the herbicide. Do not mow the area before application of herbicide. This will allow the turf/weeds to absorb the maximum amount of herbicide.
- 5.2.2.3 While the turf is still actively growing, the entire vegetated area must be sprayed with a non-selective herbicide (Glyphosate derivative). Application rate must be at the maximum label recommended rate for the complete elimination of the existing turfgrass and weeds. Product label instructions must be followed for elapsed time before moving to the next procedure to allow the herbicide to fully affect the plant material (approximately 10 to 14 days).

- 5.2.2.4 After the elapsed time for burn out, the area must then be irrigated to encourage growth of any remaining plant material. When there is sufficient re-growth, the area will be retreated with the non-selective herbicide, again following the product label directions for time to elapse for the herbicide to fully affect the plants.
- 5.2.2.5 Power rake or verticut the entire area to loosen residual plant debris. Remove plant debris and dispose of as indicated for green waste in a legal manner.
- 5.2.2.6 SOIL PREPARATION
- 5.2.2.7 Soil Testing: (See requirements of "TURF MAINTENANCE – FERTILIZATION".)
- 5.2.2.8 Soil Amendment: Follow the recommendations on the soils report for the amendment of topsoil through the incorporation of compost, lime, gypsum, and fertilizers (i.e., macro and micro-nutrients). Obtain soils report from COR for the burial section(s) in which the work is to be executed. Where no soils report is available for a specific burial section, follow the recommendations for the nearest section. Fertilizers containing nitrogen must have minimum of 50% of nitrogen formulated as "slowly available nitrogen" or slow-release form.
- 5.2.2.9 Prior to supplying the compost, soil amendments and fertilizers, submit the following for the approval of the COR and the Pacific District Agronomist:
 - 5.2.2.10 One-half (1/2) cubic-foot sample of compost, and certification letter from the supplier attesting that compost is U.S. Composting Council Certified
 - 5.2.2.11 Laboratory analysis of proposed soil amendments per the soils report, (i.e., lime, gypsum, etc.) and rate of application in pounds per 1000 square-feet.
 - 5.2.2.12 Composition and laboratory analysis of fertilizer (i.e., N:P: K plus micronutrients) and rate of application in pounds per 1000 square-feet.
 - 5.2.2.13 Regardless of the recommendations of the soils report, add 1 cubic-yard of compost per 1000 square-feet to the soil. Incorporate the compost and other soil amendments uniformly to a depth of 6 to 8 inches by rototilling.
- 5.2.2.14 SODDING:
- 5.2.2.15 Sod: Sod must be produced from stolons and State-certified. The composition of the grass species in the sod must match existing grass species and cultivars. The sod must be certified weed and pest-free. The grass must be a blend of three regionally adapted cultivars.
- 5.2.2.16 Prior to delivery of sod, the COR must inspect the work area. Any discrepancies in the ground preparation must be corrected prior to the laying of sod in the work area.
- 5.2.2.17 Prior to installation of the sod, the COR must have the right to inspect and to assess the condition and quality of the proposed sod. The COR must have the right to reject poor quality sod before installation. The Contractor must warranty the sod for one (1) year from date of Final Acceptance.
- 5.2.2.18 The sod must be cut as thinly as possible (3/4 to 1 inch) to allow for faster rooting and must be cut and delivered to the work site the same day of installation. Contractor must make all necessary arrangements to protect delivered sod from excessive drying and wind damage.
- 5.2.2.19 Sod must be laid expeditiously without interruption, until the work area is completely sodded. Sod must meet elevations of existing adjacent turf.

- 5.2.2.20 Sod must be laid perpendicular to the direction of the slope with seams staggered and tightly matched, and then tamped lightly or rolled to ensure firm contact with the soil with no air gaps.
- 5.2.2.21 Sod placement must match existing adjacent grades. Sod must be cut and fitted around all markers, headstones and other objects.
- 5.2.2.22 Sod must be kept continually moist until it is well rooted and able to survive with routine irrigation scheduling.
- 5.2.2.23 Gaps between sod slabs must be filled with fine, washed, river sand or 50:50/sand: compost mixture. Place soil/compost along any temporary exposed edges of sod to keep the edges from drying out.
- 5.2.2.24 Any substitution of sod type must be specifically approved by the COR and Pacific District Agronomist in writing.
- 5.2.2.25 Begin mowing new turfgrass when the leaf blades reach one inch above normal recommended mowing height. Mow at desired maintenance height (See "Turf Maintenance—Mowing, Trimming & Edging"). Never remove more than 1/3 of the total foliage length.
- 5.2.2.26 Continue watering and mowing until the new turfgrass is well-established. If weeds germinate with the turfgrass, do not treat with herbicides until the turfgrass has been mowed at least three times. Then eliminate the weeds by using appropriate post-emergent herbicides in accordance with procedures specified under "Turf Maintenance – Pest Control", (and as indicated in NCA Handbook 3410—Integrated Pest Management Procedures for VA National Cemeteries).
- 5.2.2.27 SODDING OF INDIVIDUAL GRAVESITES
- 5.2.2.28 Prepare sod bed for re-sodding of second interment gravesites within five (5) working days and designate every Tuesday as a re-sodding day after the burial. Prepare sod bed as indicated for "Turf Renovation – Irrigated Turf" beginning with "Soil Preparation," unless noted otherwise. Cemetery average six (6) second interment gravesites a day, 30 a week, and 120 a month.
- 5.2.2.29 Finish grade of graves must be backfilled with topsoil below the adjacent gravesites allowing for thickness of sod to replant gravesite. Verify sod thickness with supplier.
- 5.2.2.30 Apply 18:24:12 (N:P: K) granular starter fertilizer at 5 lbs. per 1000 sq-ft. using a calibrated spreader.
- 5.2.2.31 Plant areas with Sod. The composition of the grass species in the sod must match the existing grass species and cultivars. The sod must be certified weed and pest-free. The grass species must be a blend of three regionally adapted cultivars and must match surrounding turf variety in color and texture.
- 5.2.2.32 Thoroughly hand water to maintain moist soil conditions until turf is re-established.
- 5.2.2.33 Hand mow new turf with walk-behind mowers until established to prevent damage from riding mowers.
- 5.2.2.34 ESTABLISHMENT

- 5.2.2.35 Care for turf by watering, mowing, and fertilizing until a healthy stand of turf is established.
- 5.2.2.36 Hand mow with walk-behind mowers until turf is established to prevent damage from riding mowers.
- 5.2.2.37 SATISFACTORY TURF
- 5.2.2.38 Turf installations must meet the following criteria as determined by COR:
- 5.2.2.39 Satisfactory Sodded Turf: At end of 30 days, a healthy, well-rooted, even-colored, viable turf has been established, free of weeds, open joints, bare areas, and surface irregularities, with coverage exceeding 95 percent over any 10 sq. ft. (0.92 sq. m) and bare spots not exceeding 5 by 5 inches (125 by 125 mm).
- 5.2.2.40 Satisfactory Seeded Turf: At end of 30 days, a healthy, uniform, close stand of grass has been established, free of weeds and surface irregularities, with coverage exceeding 90 percent over any 10 sq. ft. (0.92 sq. m) and bare spots not exceeding 5 by 5 inches (125 by 125 mm).
- 5.2.2.41 GUARANTEE
- 5.2.2.42 The Contractor, coordinating with the COR, must be responsible for mowing, trimming, and ensuring all new turf areas are automatically irrigated, and maintained in a healthy and vigorous condition.
- 5.2.2.43 The Contractor must, at his own expense, replace any turf which has died or been damaged within 30 days of being installed.
- 5.2.2.44 Healthy turf must be re-established within 30 days on all grave re-openers during the growing season.
- 5.2.2.45 Seeded turf on grave re-openers not established with 30-days must be replanted immediately by sod.

5.2.3 TURF MAINTENANCE – FERTILIZATION

- 5.2.3.1 Contractors are responsible for maintaining the turf area of the cemetery and the immediate area surroundings of the cemetery in a healthy condition by proper application of fertilizers and soil amendments and soil conditioners indicated in soil tests for each burial section and as described herein.
- 5.2.3.2 For Water-Wise cemeteries, apply results of soil tests to fertilization of planting beds.
- 5.2.3.3 FERTILIZER REQUIREMENTS
- 5.2.3.4 Fertilizer: Apply Phosphorus, Potassium and micronutrient components of fertilizer based on the results and recommendations of soil reports. Apply Nitrogen component from slowly available nitrogen sources as indicated below.
- 5.2.3.5 Apply at least 5 to 6 pounds of actual Nitrogen per 1,000 square feet per year with 30% to 50% of the Nitrogen from controlled-release sources and organic sources. To avoid salt burn limit single application of Nitrogen to 1.5 to 2.0 pounds per 1000 square-feet with: no

more than 1.0-pound water-soluble Nitrogen, and 0.5 to 1.0 pound of controlled-release Nitrogen.

- 5.2.3.6 The fertilizer for cool season grasses must be split into 4 or more applications every year March/April, May, September and November. Apply first application after initial heavy flush of spring growth has subsided. (Apply one to two weeks prior to Memorial Day and Veterans Day to “green-up” the lawn.) The fertilizer must be uniformly applied with an accurately calibrated spreader.
- 5.2.3.7 The fertilizer for warm season grasses must be split into 5 applications every year: January, March, May, August and September. The fertilizer must be uniformly applied with an accurately calibrated spreader.
- 5.2.3.8 Maintain soil pH at an optimal level between 6.3 and 6.8 for cool season turfgrass; and between 6.5 and 7.5 for warm season turfgrass through the application of pH adjusters.
- 5.2.3.9 Lime: When pH below 6.5 in soil tests indicates a need for lime, apply lime at the rate and frequency indicated in those tests. For single applications, apply lime in fall immediately after soil aerification. Split applications if report requires more than 50 pounds per 1000 square feet to be applied to correct soil ph. Use a pelletized product for ease of application.
- 5.2.3.10 Elemental Sulfur: When pH above 7.0 in soil tests indicates a need for elemental sulfur, apply elemental sulfur at the rate indicated in those tests. Limit sulfur applications to 5 pounds per 1000 square-feet every 5 to 6 weeks during the active growing season until the total recommended amount of product has been applied. Use a pelletized product for ease of application.
- 5.2.3.11 Gypsum: When soil tests indicate a need for gypsum, apply gypsum at the rate and frequency indicated in those tests. Provide applications in the spring and fall immediately after soil aerification. Split applications if report requires more than 50 pounds per 1000 square-feet to be applied to correct soils. Use a pelletized product for ease of application. Product must be derived from: Calcium Sulfate and consist of: Calcium (Ca) 21.00%; Sulfur (S) 16.00%; and Gypsum ($\text{CaSO}_4 \bullet 2\text{H}_2\text{O}$) 60.00%.
- 5.2.3.12 Humates: Where soil tests indicate soil organic matter less than 6%, apply humates at the manufacturer’s recommended rates of 750 lbs. per Acre indicated on their printed instructions. Time of application must be immediately after soil aerification. Use a pelletized product for ease of application. Product must be derived from mined Gypsum and have a guaranteed minimum analysis: Calcium Sulfate dihydrate ($\text{CaSO}_4 \bullet 2\text{H}_2\text{O}$) 35.00%; Calcium (Ca) 7.00%; Sulfur (S) 5.00%, plus Humic Acids 1.5% derived from Leonhardite.

5.2.4 FERTILIZER EQUIPMENT AND SUPPLIES

- 5.2.4.1 Provide all required chemicals, fertilizers, soil amendments and any other supplies as indicated in the “Turf Application Schedule”.
- 5.2.4.2 Provide all necessary personnel, applicators, hoses and other equipment. Water will be furnished by the Government at no cost to the Contractor.

5.2.5 SOIL TESTING

- 5.2.5.1 Test soils during the base year and every year thereafter before the spring fertilizer application. Soil tests must be conducted by a qualified, independent soils and plant laboratory, university laboratory, or an Agricultural Extension recognized by the State Department of Agriculture, with the experience and capability to conduct the testing indicated and that specializes in types of tests to be performed. Soil laboratories affiliated with vendors are not permitted.
- 5.2.5.2 Provide soil reports and recommendations for each distinct geographic region in the cemetery in each testing year. Soil extractions must be performed in accordance with standard guidelines for agricultural soil sampling and under the observation of the COR. Soil samples must be taken from areas within the cemetery that will properly represent the soil conditions. The soil test reports must clearly identify the cemetery section(s) from which the samples were taken to assist the contractor in the application of specific soil amendments. The soil reports must clearly identify the "crop" (i.e., turf species) and whether the recommendations are for maintenance of existing turf, or planting of new turf. For each soil sample submitted to the laboratory, a minimum of 10 soil extractions must be taken. Extractions may be taken using a standard 12-inch soil core sampler.
- 5.2.5.3 See the following link for instructions on how to determine areas to be samples and how to take soil samples: General Information (al-labs-west.com)
- 5.2.5.4 The Contractor must provide a copy of each soil test results and recommendations to the COR and Pacific District Agronomist for approval prior to the fertilizer and amendment purchase.
- 5.2.5.5 Provide soil analyses in the form of a graphical report showing:
- 5.2.5.6 Soil composition (USDA particle size analysis indicating percentages of sand, silt and clay).
- 5.2.5.7 Percent organic matter.
- 5.2.5.8 Macro and micronutrient fertility tests as determined by ph.
- 5.2.5.9 Salinity (ECe).
- 5.2.5.10 Nitrate nitrogen, ammonium nitrogen, phosphate phosphorous, potassium, calcium, magnesium, soluble copper, zinc, manganese, iron saturation extract, boron and sodium analyses.
- 5.2.5.11 Exchangeable Sodium Percentage (ESP).
- 5.2.5.12 Cation exchange capacity (CEC).
- 5.2.5.13 Sodium Absorption Ratio (SAR).
- 5.2.5.14 Soil Infiltration Rate Testing.
- 5.2.5.15 Report suitability of tested soils for plant growth: Based upon the test results, the laboratory must provide recommendations for fertilizers and soil amendments to be applied for the maintenance of healthy turf. For turf renovation, the recommendations of the soil testing must provide soil preparation amendments for planting of new turf.
- 5.2.5.16 State recommendations for macro and micronutrients in pounds per 1,000 square foot or tons per acre, as necessary to correct soil nutrient deficiencies.
- 5.2.5.17 State recommendations for soil amendments to be added in pounds per 1,000 square foot or tons per acre to adjust soil pH to within the optimal range for turfgrass health.

- 5.2.5.18 State recommendations for soil amendments to be added in pounds per 1,000 square foot or tons per acre to correct soil salinity problems where ECe is greater than 4.0 dSm⁻¹ and ESP is less than 15%.
- 5.2.5.19 State recommendations for soil amendments to be added in pounds per 1,000 square foot or tons per acre to improve soil permeability and increase soil infiltration rates.
- 5.2.5.20 For Turf Renovation: state recommendations for compost to be added in cubic yards per 1000 square feet to adjust soil organic matter content of the soil to a minimum of 4 and maximum of 6 percent.

5.2.6 VERIFICATION

- 5.2.6.1 List dates for fertilizer applications on the Cemetery Grounds Management Plan. The actual date of application must be reported to the COR no later than 5 working days after completion of work.
- 5.2.6.2 Submit to the COR and Pacific District Agronomist for approval, laboratory analyses and compositions of each soil amendment and each fertilizer intended for use on the cemetery prior to procuring those products.
- 5.2.6.3 Submit to the COR and Pacific District Agronomist a spread sheet listing each burial section in the cemetery and indicating each fertilizer composition (i.e., N:P: K plus micronutrients), and soil amendment (i.e., lime, gypsum, elemental sulfur) to be applied in each burial section corresponding to the recommendations of the soils reports. The spread sheet will list each product's manufacturer, trade name and application rate in pounds of product per Acre or 1000 square feet.
- 5.2.6.4 Documentation of compliance with the soil test application rate must be provided to the COR within 5 working days of fertilizer/soil amendment application. Examples of suitable documentation include purchase order; invoice; or delivery documents.

5.2.7 TURF MAINTENANCE – PEST CONTROL

- 5.2.7.1 GENERAL REQUIREMENTS
- 5.2.7.2 Contractors must be responsible for maintaining the turf area of the cemetery and the immediate area surroundings of the cemetery in a healthy condition by proper application of fertilizers, and chemicals (to control weeds, diseases, and invertebrate and vertebrate pests). Turf in high visibility areas must be at least 90 percent pest and disease free.
- 5.2.7.3 Conduct pest control in accordance with requirements as stated in NCA Handbook 3410 – Integrated Pest Management Procedures for VA National Cemeteries.
- 5.2.7.4 For Water-Wise cemeteries, “pest control” must provide weed and pest free burial sections and planting beds.
- 5.2.7.5 DEFINITIONS:
- 5.2.7.6 Pest is defined as any plant or animal detrimental to humans or human concerns including weeds, fungi, molds, vertebrates, and invertebrates.
- 5.2.7.7 An animal is any living thing that is not a human being or a plant.

- 5.2.7.8 A pesticide is herbicide, insecticide, fungicide, and poisonous baits.
- 5.2.7.9 SAFETY/REGULATORY REQUIREMENTS:
- 5.2.7.10 All application methods of must be in strict accordance with manufacturer, Department of Environmental Protection and all federal, state and local laws.
- 5.2.7.11 All applications must be made in accordance with manufactures label instructions to ensure proper rate and timing of application. Ten (10) workdays prior to any scheduled application, the Contractor shall provide to COR, a copy of product label for each chemical used, the amount and application rate, and appropriate supporting Safety Data Sheets (SDS) sheets in accordance with the Globally Harmonized System of Classification and Labelling of Chemicals (GHS).
- 5.2.7.12 Contractor shall keep a record of all pesticides applied and shall submit to the COR within five (5) working days after application a fully completed "Pesticide Application Data Sheet" for review and approval, with a copy sent to the Pacific District Agronomist. (See Attachment F.) The COR will train the Contractor in the proper use of this form. Records will show type, amount, application area, and weather conditions.
- 5.2.7.13 Report herbicides/pesticide use to the County Ag Commissioners Office's when required by local jurisdictions.
- 5.2.7.14 Contractor personnel applying pesticides must possess a current, valid, state-issued, commercial pesticide/herbicide application license. Provide a copy of the license to the COR. The Contractor must be responsible for any damage resulting from the application of any fertilizer, herbicide or pesticide treatments.
- 5.2.7.15 Train employees on environmental issues such as ground water contamination, wetland protection, poison control, and be consistent and fully compliant with all applicable Federal, State, County and City laws, ordinances, Right-to-Know laws, EPA guidelines, and regulations.
- 5.2.7.16 Prevent the public and cemetery employees from accidentally becoming exposed to pesticides during an application or from encountering treated areas after the application has been made. Contact the Agricultural Commissioner's office for instructions on restricted entry intervals and posting. In compliance with these instructions, provide the required safety warning devices, barricades and signage at all work sites to eliminate hazards from public visitors and cemetery employees.
- 5.2.7.17 Prior to fertilizer and/or pesticide application, the contractor shall at a minimum, post appropriate flags or markers in all areas to be treated for a period of 24 hours after a fertilizer and/or pesticide treatment has been applied accompanied by a sign informing the public of the time and date of the chemical application. Remove all flags and signs upon expiration of the 24-hour period.
- 5.2.7.18 In addition to, or in compliance with instructions from the Agricultural Commissioner's office on posting, prior to an herbicide application, the Contractor shall provide and install signage that clearly states the following: "CAUTION - HERBICIDE APPLICATION IN PROGRESS."
- 5.2.7.19 The signage shall be COR-approved and shall be uniformly spaced along all perimeters of the application area, and at all regular points of public entry, and shall remain standing for 24

hours after application is complete. If the herbicide has a restricted entry interval, the signage shall be removed by the Contractor within 24 hours after the expiration of the restricted-entry interval. The Contractor is responsible for the removal and disposal of all signage, warning devices, etc.

- 5.2.7.20 The contract work shall not jeopardize the safety of any persons or jeopardize the protection any plant material or property within the cemetery. Contractor shall not make turf applications, particularly those involving hazardous materials, when people are present in or passing by any such work area(s). Such work in Visually Prominent Areas and along major pedestrian routes, and in any area where a funeral or ceremony is taking place or will take place within 2 hours, shall be rescheduled by the Contractor to an earlier or later time, or to a time before or after cemetery visiting hours as determined by the COR.

5.2.8 WEED CONTROL - GENERAL:

- 5.2.8.1 Control weeds throughout the cemetery year-round, using Contractor-provided herbicides with emphasis given to Visually Prominent Areas. The result shall be that 100 percent of Visually Prominent Areas (interment sections,) shall be 98 percent weed free. Ninety-eight percent weed free means that the population of weeds is very widely scattered and visually insignificant when the total expanse of the cemetery turfgrass is observed. The weeds in no way distract from the visual attractiveness of the landscape.
- 5.2.8.2 Make applications in accordance with manufacture's label instructions to insure proper rate and timing of application. Provide and apply liquid broadleaf herbicide no earlier than 6 hours before anticipated rainfall to allow herbicide sufficient time to be absorbed into plant tissue to maximize the herbicide's full potential. Any rainfall that is received within this six-hour time frame after the application will require the Contractor to treat all turf areas a second time at no additional cost to the Government.
- 5.2.8.3 Control weed growth and disease in turf by means of mowing, trimming and pesticide application or any other method approved by the COR. The person in charge must possess current, valid, state-issued license to use pesticides. Broadcast applications of pesticides for weeds shall be accomplished in the spring and the fall. Spot treatments of pesticides for weed control shall occur monthly unless noted otherwise.
- 5.2.8.4 Follow herbicide manufacturers' precautions on maximum applications per year for both spot and broadcast applications. Do not apply herbicides which will inhibit the germination of grass seeds. Follow herbicide manufacturers' precautions for timing use of product on interseeded/overseeded turf. Do not apply herbicides on overseeded/interseeded turf until turf has been mowed two times, or four weeks after emergence (whichever is longer) before making a post-emergence application. Weed control products shall be compatible with interseed/overseed present on the cemetery and shall not damage the turf either by misapplication or inappropriate product selection.
- 5.2.8.5 Coordinate Turf Herbicide Applications with special programs for the control of invasive weed pests such as Bermuda grass and Kikuyu grass.
- 5.2.8.6 Grass Weed Pre-Emergent: Apply grass pre-emergent herbicide in granular form when treating for annual bluegrass, crabgrass, dallisgrass, goosegrass, johnsongrass, Bermuda

grass, kikuyu grass, and any other target weed species present at manufactures recommended rate allowable for the species of turfgrass and region of the country. Apply pre-emergent one to two weeks prior to the anticipated seed germination when soil temperatures register between 50 to 55°F for 3 consecutive days. Apply a second sequential application of the same product 8 to 10 weeks following the first application. Apply pre-emergent with calibrated spreading equipment. The Contractor is solely responsible for damage to headstones or any other structures, and newly seeded turfgrass caused as a result of any pre-emergent application or herbicidal treatment. Alternate between herbicide products containing atrazine, dithiopyr, pendimethalin, and prodiamine to reduce herbicide resistance.

- 5.2.8.7 Annual Bluegrass (*Poa annua*) Control: To limit annual bluegrass germination during winter, apply pre-emergent herbicides listed above in late summer or early fall when soil temperatures drop below 70°F. Repeat application in early spring. In addition to the pre-emergent herbicide application, apply post-emergent herbicide spot applications of ethofumesate, foramsulfuron, pronamide, sulfosulfuron, and trifloxysulfuron to young annual bluegrass plants. Successful control will be measured as cemetery turf with less than 10 percent annual bluegrass weeds.
- 5.2.8.8 Broadleaf Weed Control: Apply broadleaf herbicides with calibrated measured spraying equipment (not a hose end sprayer). The chemical must address issues of various broadleaf weed types which include dandelion, white clover, bristly oxtongue, speedwell, bristly mallow, California burclover, filaree, chickweed, curly dock, yellow wood-sorrel, black medic, plantain, spurge, prickly lettuce, purslane, and other target weed species present. Applications must be timely and at the proper dosage so that perennial weeds do not go to seed. Utilize both broadcast applications and spot-applications of chemicals to turf areas throughout the cemetery as appropriate for the degree of weed pressure. Use three-way herbicide products containing triclopyr; 2,4-D; and dicamba. Tank mix with MCPP or MCPA to increase spectrum of control.
- 5.2.8.9 Grass Weed Control: Apply grass weed herbicides with calibrated measured spraying equipment (not a hose end sprayer). Applications must be timely and at the proper dosage so that grass weeds do not go to seed. Utilize both broadcast applications and spot-applications of chemicals to grass weeds in turf areas throughout the cemetery as appropriate for the degree of weed pressure. Alternate between herbicide active ingredients to reduce herbicide resistance. For example, apply triclopyr in the spring, and quinclorac in the summer to reduce herbicide resistance. Tank mix with MSMA or fenoxaprop to increase spectrum of control.
- 5.2.8.10 Sedge Weed Control: Apply sedge weed herbicides with calibrated measured spraying equipment (not a hose end sprayer). The chemical must address issues of various weeds which include green killings, annual sedge, purple nutsedge, yellow nutsedge, and aquatic sedges. Applications must be timely and at the proper dosage so that grass weeds do not go to seed. Spot-apply chemicals throughout the cemetery where infestations are evident, particularly in moist and low-lying areas prone to poor drainage. Tank mix with adjuvant per manufacturer's printed instructions. Reapply 4 to 6 weeks per manufacturer's printed

instructions. Alternate between herbicides products containing halosulfuron, imazosulfuron, and sulfosulfuron to reduce herbicide resistance.

- 5.2.8.11 Fungi: Employ IPM methods for reduction and treatment of fungi such as improving drainage through aeration and thatch removal; and proper mowing, fertilization and irrigation techniques to eliminate the conditions favorable for the growth of fungus. Application of fungicides is generally not required.

5.2.9 VERTEBRATE PEST CONTROL:

- 5.2.9.1 Establish a treatment plan to control Vertebrate Pests within the developed cemetery grounds throughout the calendar year for approval of COR. This schedule shall be incorporated into the Grounds Management Plan.
- 5.2.9.2 Vertebrate Pests include, but are not limited to gophers, moles, voles, mice, rats, ground squirrels, rabbits, skunks, raccoons, wild pigs, badgers, geese, coots, and snakes and other target pests present. Control pests by trapping, elimination of their food source, or other effective methods. Trapping must be performed by licensed professionals permitted to trap the target pest. Shooting of animals will not be authorized. Comply with U.S. Fish and Wildlife laws and regulations, and state Fish and Game Code with regard to baiting and trapping of animal pests. Dispose of or relocate animal pests in accordance with federal, state and local laws.
- 5.2.9.3 If soil is disturbed by these pests, fill holes/ruts with topsoil or other COR-approved material, tamp and re-grade. Areas of repair include both turf and planting beds. Cut and remove damage to turf areas to provide clean edges, and replant with sod per "Turf Renovation.". When mowing, mark off and avoid newly sodded areas until the turf is established. Repair planting beds to original condition, including re-establishing grades, re-planting, re-mulching, and repairs to irrigation systems.
- 5.2.9.4 Within 10 calendar days from start of the contract period, conduct a complete inspection of the cemetery grounds and document all vertebrate pest damage using Attachment 'G' "Vertebrate Pest Inspection Sheet" or other COR-approved document. Provide this completed document to the COR. Within 15 calendar days from the start of the contract period the Contractor must have treated with bait, and/or set traps to eliminate the pests. With 20 calendar days from the start of the contract period the Contractor must have correctly repaired the areas damaged from pest activity with matching turf. The document shall identify the following: Pest Species, Location (ID Number, Section, and Headstone) of all treatments. Provide this document to the COR each week and identify work that took place within the previous seven days.
- 5.2.9.5 Approximately 30 days after the start of the contract period, and every 15 days thereafter as required, the COR will inspect the cemetery grounds to determine if the vertebrate pest damage has been reduced to an acceptable level. Also at that time, the COR will determine if the damaged turf has been repaired to an acceptable level. (Acceptable is defined as 90% of vertebrate pests are eliminated).

- 5.2.9.6 Inspect for pest damage at least weekly. If any additional signs of pest damage are found set baits and/or traps the day of discovery. Document and report the inspections to the COR on a weekly basis.
- 5.2.9.7 Inspect each irrigation equipment valve box for soil spoils from pest activity. Remove soil from irrigation valve boxes and install 1/2-inch square by 16-gauge galvanized steel mesh under and up sides of box to prevent pest intrusion. Secure mesh to sides of box with galvanized steel fasteners.
- 5.2.9.8 Geese control: Control geese through a combination of proven methods to discourage geese from settling on the cemetery prior to geese molting. Once geese have molted, they will not be able to fly and will be impractical to remove from the cemetery. Initiate control measures as soon as geese are present. In spring install temporary grid wires over ponds; apply geese-repellent, employ the service of dogs under supervision of human handlers to chase away geese; post predator decoys; and allow grass at borders of ponds to temporarily grow to 10 to 14 inches in height and 24 to 36 inches in breadth to discourage geese from entering and exiting ponds. Remove control measures when geese have retreated from the site, or as approved by the COR.

5.2.10 INVERTEBRATE PEST CONTROL:

- 5.2.10.1 Control pests that include but are not limited to insects (all life cycle stages), and spiders by insecticides, biological controls or other effective methods. Insect pests include but are not limited to: Grubs, Ants, Crane Fly, Wasps.
- 5.2.10.2 Establish a treatment plan to control invertebrate pests identified within the developed cemetery grounds throughout the calendar year for approval of COR. Incorporate this schedule into the Grounds Management Plan.
- 5.2.10.3 Treat turf areas in the cemetery in accordance with the approved schedule with a broadcast application of granular herbicide effective in the control of invertebrate pest species present on the cemetery. The frequency of application must be in accordance with the manufacturer's printed instructions for the control of the target pest species.
- 5.2.10.4 In addition to broadcast applications, provide spot-application of pesticides directly to pest nests on monthly or on an as-needed basis as approved by the COR.
- 5.2.10.5 Acceptable level of control is defined as 90% of invertebrate pests are eliminated.
- 5.2.10.6 Keep buildings free of wasps and their nests with particular attention given to the skylights on the Committal Shelters, entries to PIC and Admin. Bldg., and under ledges on Columbarium walls.
- 5.2.10.7 North American honeybees must be live trapped and relocated by a specialist in bee keeping.

5.2.11 FERTILIZER AND PESTICIDE APPLICATION:

- 5.2.11.1 Apply turf applications with appropriate calibrated spreading and spraying equipment. Uniformly distribute liquid and pellet surface applications within the cemetery's defined area of coverage. Apply herbicides under calm wind conditions to eliminate any potential

- for wind drift. Comply with pesticide label precautions to where surface run-off is likely to occur or near a water source.
- 5.2.11.2 Use an appropriate non-staining, green-colored, marker dye compatible with the herbicide being applied for spot applications of herbicide.
 - 5.2.11.3 Use surfactants and adjuvants with herbicides to improve herbicidal activity or application characteristics when recommended by herbicide manufacturer.
 - 5.2.11.4 List each turf application and planned application date within the Grounds Management Plan. Applications must be provided in accordance with manufacturers label instructions to ensure proper rate of active ingredient (ai) and timing. Apply Fertilizers, Herbicides, and Soil Conditioners in accordance with NCA Standards and as indicated herein.
 - 5.2.11.5 Do not dispose of, rinse, mix nor store any herbicide containers/bags on cemetery premises, unless authorized in advance by the COR. Do not keep or store herbicide application equipment or agricultural chemicals on the cemetery premises when applications are not in progress.
 - 5.2.11.6 Thirty (30) days after completion of the application, jointly inspect the pesticide application with the COR and assess results. In areas where results are less than acceptable* re-perform the application at no additional cost to the Government. (*Acceptable is defined as 90% of target pest species are eliminated).
 - 5.2.11.7 Take precautions to prevent damage to the cemetery, in any manner, including headstones, monuments, shrub and flower beds, trees and other structures during maintenance operations. Current replacement costs for headstones, other cemetery structures or property damaged by the work under this contract will be deducted from the contract price.
 - 5.2.11.8 Do not use any pesticide or fertilizer in either granular or liquid form that will stain or discolor any headstones. Notify the COR of all materials scheduled for use on turf before beginning any turf application. Clean cemetery structures, headstones, monuments, and roadways that are soiled or stained as a result of the application.
 - 5.2.11.9 Wash-down with water all soiled or stained structures, headstones, and monuments at the end of each workday. Do not use hazardous chemicals at any time on Government property. Bear all costs associated with washing and cleaning. Notify the COR of any such soiling or staining of structures prior to washing/cleaning.

5.2.12 TURF MAINTENANCE – MOWING, TRIMMING & EDGING

- 5.2.12.1 SCOPE
- 5.2.12.2 Turf must be maintained at a height within one-inch range of that which is professionally recommended for the turfgrass type appropriate for the geographic region. Optimally, the height is no more than half an inch above that range. Turf surrounding a headstone must be trimmed to the recommended height. There must be no signs of “grass burns” caused by mowers. There must be no signs of turf being “scalped” by string trimmers.
- 5.2.12.3 The Contractor must be responsible for mowing, trimming and edging all grass within the cemetery and any grass outside perimeter enclosure walls and fences. This encompasses

both irrigated turf grass, and non-irrigated grasses/lawns within the developed area of the cemetery.

5.2.12.4 Vegetation in visually prominent areas within the undeveloped areas of the cemetery must be mown to present a well-maintained appearance. All other vegetation within the undeveloped areas of the cemetery must be mown to prevent fire hazard.

5.2.12.5 EQUIPMENT

5.2.12.6 Riding mowers may be used if they are not operated within 2 inches of headstones, monuments, tree trunks or other vertical elements unless coordinated by the COR.

5.2.12.7 Thirty-inch (30") deck or smaller commercial walk-behind mowers must be used to mow along curb edges, small spaces, and areas too steep to mow with riding mowers.

5.2.12.8 Mowers with decks larger than Seventy-two inches (72") must be comprised of multiple "contour" cutting units to prevent scalping of turf.

5.2.12.9 Brush mowers with rotary cutters, or flail crop shredders will be used to clear vegetation in buffer areas and undeveloped areas of the cemetery. Deck size as required to perform task.

5.2.12.10 Commercial-grade power trimmers and power edgers will be used to trim grass from around headstones, monuments, curblines, walkways, etc. Power trimmers must be equipped with scalp-protectors.

5.2.12.11 Cutting blades on mowing and trimming equipment must be sharpened every 20 hours of use, at the minimum so that grass tips are cleanly cut, and not torn or damaged. Cutting heights of all mowing equipment must be set according to heights specified below. The height of grass is what is measured to get correct cutting height.

5.2.12.12 GENERAL REQUIREMENTS

Turf must be cut to maintain heights as set forth below:

<u>Cutting Height - Inches</u>	<u>Turf Grass Species</u>
1.0 to 1.5	Warm Season Turfgrass
3.0 to 3.5	Cool Season Turfgrass

5.2.12.13 Maintain turf in burial and public areas at a height within one inch range of that which is professionally recommended for the grass type by the State University Agricultural Extension. Optimally, the height must not be more than half an inch above that range and of consistent height throughout the sward. For example, the height of cool season turfgrass (e.g., perennial ryegrass, turf-type tall fescue, Kentucky bluegrass) should be maintained between 2.0 and 3.5 inches in height. In no circumstances must the turf be allowed to grow taller than 4.0 inches or to be cut lower than 3.0 inches. Cool-Season Turf that is cut lower than 2.0 inches must be repaired by Turf Renovation at no additional cost to the Government. Warm-Season Turf (e.g., Bermuda grass, zoysia grass, paspalum) should be maintained between 1.0 and 1.5 inches in height. In no circumstances must the turf be allowed to grow taller than 2.0 inches or to be cut lower than 1.0 inches. Turf that is cut

lower than 1.0 inches must be repaired by Turf Renovation at no additional cost to the Government.

- 5.2.12.14 Maintain non-irrigated vegetation in visually prominent areas of the cemetery by mowing. Maintain vegetation height at 4 to 6 inches. In no circumstances must the vegetation be allowed to grow taller than 6 inches.
- 5.2.12.15 Do not remove more than 1/3 of the grass leaf surface at anyone mowing.
- 5.2.12.16 Be familiar with and utilize different mowing patterns. Changing direction and patterns reduces turf wear providing a cleaner cut and avoids creating tire ruts in the turf areas.
- 5.2.12.17 Clean mowing and trimming equipment prior to entering the cemetery grounds. This will minimize the possibility of introducing weed contaminants to cemetery turf from areas outside the cemetery grounds. Contact the COR to inspect the equipment prior to unloading.
- 5.2.12.18 Clean mowing and trimming equipment prior to moving equipment from a turf area known to contain invasive weed infestation (e.g., kikuyu grass, Bermudagrass) to a turf area free of that weed infestation. This will minimize the spreading the weed infestations within the cemetery grounds. Contact the COR to inspect the equipment prior to proceeding from turf area to the next.
- 5.2.12.19 Provide one or more commercial-grade mowers that will be dedicated to mowing areas known to be infested with Kikuyu grass and/or Bermuda grass. The mower(s) shall be able to professionally mow all areas within the infested cemetery sections. These mowers shall be marked with a 12-inch-wide painted white stripe or decal from bumper to bumper to distinguish these mowers from the other mowers used on the rest of the cemetery.
- 5.2.12.20 Take the utmost care not to damage headstones, floral or commemorative items, structures, survey monuments, irrigation equipment, and trees while performing mowing, trimming and edging services. Repair or replace all damaged items caused by the Contractor to the satisfaction of the COR at no additional cost to the Government.
- 5.2.12.21 Remove and replace all floral and commemorative items, such as fresh cut flowers, wreaths, (and artificial flowers, and potted plants when allowed), to their proper gravesite during the course of performing mowing and trimming services. Remove floral and commemorative items in accordance with the cemetery's Floral Policy. (See Appendix A for Riverside National Cemetery Floral Policy) (See "Trash and Debris Removal".) Clean and replace floral vases inside the floral vase receptacles. Stack floral vases so they do not collect water.
- 5.2.12.22 Newly seeded and sodded turf will be present at newly interred gravesites, second interment gravesites, and renovated gravesite locations. New seedlings and sod must be hand mowed until it is fully established to the point where riding mowers will not cause damage to the turf.
- 5.2.12.23 Mow around trees in a manner that prevents "ringing pattern" around the tree and associated damage to turf. Take care not to disturb adjacent bark and rock mulch beds while mowing. Reposition mulch into their respective beds.
- 5.2.12.24 Vary mower wheel width patterns and mowing patterns after each mowing to prevent and avoid wheel rutting from occurring.

5.2.12.25 Trim un-mowed grass around headstones, monuments, and other vertical surfaces to keep the grass at the height standard for mown turf without scalping between stones or around stones. Scalped turf between headstones must be repaired as per "Turf Renovation" at no additional cost the Government and will require additional weed control measures to prevent weeds from populating these scalped zones.

5.2.12.26 Clean headstones, section markers, walkways, curbs, concrete bases, signs, and roads of grass clippings and leaves after mowing, weed-eating, edging, and trimming. Do not use leaf-blowers to move grass clippings into planting beds and rock gardens.

5.2.12.27 PROCEDURE

5.2.12.28 Frequency of Mowing, Trimming, & Debris Removal: Mow, trim and remove clippings as required (generally once every seven (7) days) to maintain the specified height for all turf in the developed cemetery. During periods of active growth, mowing may be required twice weekly as approved by the COR. Complete trimming around headstones and debris removal in conjunction with each mowing cycle.

5.2.12.29 Weather Conditions: There may be periods of excessive rainfall when the Contractor cannot access areas for mowing due to excessive wetness. The COR has the authority to stop work if weather conditions are such that work that day will do more damage than good to the Cemetery grounds. During these periods, the Contractor will be expected to ensure the grass is cut in less than a week's time once grass is suitable for mowing. During periods of fire danger (i.e., excessive heat and low humidity), cease mowing operations in non-irrigated buffer areas to avoid starting brush fires.

5.2.12.30 Mowing Timing: Do not mow wet turf. Do not mow turf under a layer of frost. The COR will determine when the frost has subsided enough to proceed. Coordinate with the irrigation schedule so mowing does not occur during the morning after to irrigation. Mowing cycle must be completed by Friday of each week.

5.2.12.31 Mowing Patterns: Crosscut the turf between headstones every other mowing cycle by mowing perpendicular to the gravesite rows, (i.e., Alternate between cutting parallel with and perpendicular to the gravesite rows). Cut turf in rows between headstones in the opposite direction from the preceding mowing cycle to prevent rutting.

5.2.12.32 Mowing Speed: Do not operate mowers at speeds that will leave tire marks when making sharp turns. In no case must mowers be operated at speeds exceeding the manufacturer's indicated speed for safe operation, or at speeds which cause damage to cemetery property.

5.2.12.33 Mower/Trimmer Maintenance: Conduct mower and trimmer maintenance in the designated maintenance yard, including refueling of equipment. Do not refuel equipment in cemetery burial sections.

5.2.12.34 Mowing: Cut turf within the cemetery burial sections at recommended height unless otherwise specified by the COR. Use rotary mowers with rear discharge mulching decks for mowing. The design of the mowing decks and speed of the mowing must be such that scalping is avoided. At no time is freshly mowed grass to be blown onto headstones. Areas will be mowed first, followed by the trimming operations.

- 5.2.12.35 Trimming: All turf areas that cannot be maintained by traditional mowing equipment shall be trimmed at the same height of the mown grass. Take great care to avoid contact with headstones, markers, signs, monuments, building walls, trees, shrubs, flowers, any other desirable plant materials, and any other structure than can be damaged by contact with the trimming device's cutting instrument. Scalping of the turf around a marker/headstone is unacceptable. Trimming will be accomplished free of scalping, rutting, bruising, and uneven and rough cutting. Streaks or irregularities, uneven cutting, plowing, or gouging of the soil is unacceptable. Scalping of the turf around a marker/headstone is unacceptable. Turf must not be shorter around headstones creating a "bowl" effect. Use string line gauge that will not damage headstones.
- 5.2.12.36 Flat Marker Edging: Trim turf around flat markers at 90 degrees (perpendicular to the face of the marker) to remove all grass/vegetation that is growing around or over the entire outside perimeter of the flat grave markers. The depth of the vertical cut at the edge of the flat markers shall be 1 inch minimum and the width of the cut shall not exceed 1/2 inch. There shall be a clean and neat vertical edge left around each flat marker. Metal blades shall not be used for flat marker edging. Use "stick" edgers with plastic blades to prevent damage to flat markers. Grasses must not be allowed to cover the headstone inscriptions at any time. Increase edging frequency to weekly as needed during high growth months. Pay particular attention to areas with grasses which spread by stolons such as Bermuda grass and Kikuyu grass. Remove debris from edging from the site on the same day as the edging event.
- 5.2.12.37 Edging: Edge turf at streets, curbs, walkways, mow bands, landscape borders, tree wells, and planting beds inside and outside cemetery grounds. Edging must provide a clear zone 1/2-inch wide by 1-inch minimum deep with all vegetation removed from joints and cracks. Use "stick" edgers with metal blades. Avoid damaging pavement. Remove debris from edging from the site on the same day as the edging event.
- 5.2.12.38 Removal of Turf Clippings: Immediately remove or disperse windrows and mats of grass clipping deposited on the turf to avoid turf damage. Remove clippings deposited on headstones and other monuments, section markers, concrete bases, roads, walks, plazas, beds, tree basins, or other non-turf grass areas the same day as the mowing event that produced them. Remove clippings deposited on sidewalks or at public visitor areas including at the Committal Shelter at same time mowing work is occurring. In specialty areas, collect clippings in bag attachments to the mowers, as approved by the COR. Remove and dispose clearly visible clumps of grass clippings and/or windrows of clippings, as a result of infrequent mowing. Isolate use of Rake-O-Vac type equipment to removal of windrows and mats of grass clippings to prevent wear and tear of turf and compacting of soils, unless coordinated by the COR. If inclement weather does not allow the grass trimmings to be collected while mowing, they must either be short enough to blend into the existing turf or raked and collected as soon as weather allows.
- 5.2.12.39 Removal of Grass Clippings and Soil: Immediately remove grass and/or soil splatter deposited onto headstones, section markers, and other structures the same day as the mowing and/or trimming event that produced them. Cleaning of headstones and structures

- soiled by mowing and trimming activities is incidental to the work and shall not be considered as "Headstone Cleaning and Maintenance" or "Structure Maintenance".
- 5.2.12.40 Memorial Day: Complete mowing, trimming, edging & debris removal work no later than close of business on the Thursday prior to Memorial Day to allow sufficient time for the placement of personal floral arrangements on individual graves and for the preparation of Memorial Day services at the cemetery. Contact COR one week before event for final schedule.
 - 5.2.12.41 Veterans Day (November 11): Complete mowing, trimming, edging & debris removal work for Veterans Day no later than two (2) workdays prior to the scheduled holiday. Contact COR one week before event for final schedule.
 - 5.2.12.42 Inspection: The COR will inspect mowing, trimming and edging a minimum of once a week (during the growing season).
 - 5.2.12.43 Verification: On Friday of each week, the Contractor shall submit to the COR cemetery site plan(s) indicating the areas and dates turf areas were mowed and trimmed. Use a different colored highlighter marker for each day.

5.2.13 CEMETERY VEGETATION CONTROL

- 5.2.13.1 Control vegetation within the cemetery and outside perimeter enclosure walls and fences to control excessive weed growth, reduce any fire hazard, and provide a properly maintained appearance.
- 5.2.13.2 The work areas include Irrigated and non-irrigated areas in developed and undeveloped lands within the cemetery property lines, and lands between the property lines and the public roadway.
- 5.2.13.3 Maintain vegetation height at no more than 6 inches throughout the year by means of mowing, brush clearing/weed abatement. Mowing frequency varies throughout the year corresponding with active plant growth. Minimum mowing frequencies are twice per month in the wet season, and once per month in the dry season.
- 5.2.13.4 In addition, maintain a five (5) foot fire break along both sides of the fence lines/property lines surrounding the developed and undeveloped area of the cemetery.
- 5.2.13.5 Work area does not include leased active agricultural fields on cemetery property.
- 5.2.13.6 Developed Cemetery: Maintain irrigated and non-irrigated vegetation in visually prominent areas of the cemetery by mowing. Maintain vegetation height at 4 to 6 inches or less from the ground. In no circumstances shall the vegetation be allowed to grow taller than 6 inches. Mow vegetation in developed and undeveloped areas of the cemetery, perimeter of fence lines, spoils area, and other areas as coordinated by the COR. Clear brush twice monthly during active growing season and monthly during the slow growth season. Removal of Brush Clippings: Immediately remove brush clipping on the same day of the mowing event that produced them. Transport clippings to the spoils area as coordinated by the COR.

- 5.2.13.7 Undeveloped Cemetery: Maintain Biennial Clearing of brush in the 700 acres undeveloped cemetery land beyond the developed areas, using brush hog clearing equipment to within 4-6 inches or less from the ground. Material and foliage left behind may remain in place to naturally decompose. Dust from brush clearing must be to a minimum not to reach outside the cemetery property.
- 5.2.13.8 Equipment: Brush mowers with rotary cutters, flail crop shredders, or string trimmers may be used to clear vegetation within both developed and undeveloped areas of the cemetery. Deck size as required to perform task.

5.2.14 PEST CONTROL

- 5.2.14.1 Applications must be provided in accordance with manufacturers label instructions to ensure proper rate of active ingredient (ai) and timing.
- 5.2.14.2 Time application of pesticides to coincide with lifecycle of insects emerging from and entering into the plants.
- 5.2.14.3 Submit pesticide manufacturer's data sheets and SDS sheets for approval of COR prior to application.
- 5.2.14.4 Apply pesticide soil drench to infested plants and topical bark spray once yearly and more frequently if insect infestation is evident to control target pests, such as borers, beetles, weevils, moths and their respective pupae.
- 5.2.14.5 Apply pesticide with soil injection equipment at rate, depth and spacing indicated in the manufacturer's printed instructions for control of the target insect. Use products containing imidacloprid or clothianidin or other neonicotinoids for soil injection. Use as topical spray only when pest is present.
- 5.2.14.6 Apply soil drench to Canary Island Palms for the control of South American Palm Weevil, *Rhynchophorus palmarum*.
- 5.2.14.7 Time application as coordinated by the Palm Tree Expert. See UC Riverside website: https://biocontrol.ucr.edu/south_american_palm_weevil.html
- 5.2.14.8 Apply horticultural oil to branches and leaves of plants infested with aphids, scale, thrips, mites, psyllids, and other insects which pupate over the winter. Apply oils in February before insect eggs hatch, and every 30 days until early summer.
- 5.2.14.9 Apply oils with high-pressure sprayer equipment at rate indicated in the manufacturer's printed instructions for control of the target insect.
- 5.2.14.10 Use horticultural oils to control aphids, scale, and thrips. Supplement horticultural oils with insecticides and/or biological controls.
- 5.2.14.11 Control ants at trees infested with aphids, scale, and thrips. Ants disrupt activities of natural predators.
- 5.2.14.12 See UC Davis IPM website:
<http://www.ipm.ucdavis.edu/PMG/PESTNOTES/pn7408.html>
- 5.2.14.13 Apply appropriate pesticides to branches and leaves of plants for control of aphids, scale, thrips and other insects when insect is present.
- 5.2.14.14 Palm Tree Pathogen Testing (Canary Island Palms)
- 5.2.14.15 Create a palm tree inventory of each palm tree on the site by providing a unique identifier for each tree. Use the GPS locations supplied with the Landscape

construction drawings as supplemental palm tree identifiers. Do not attach tags to trees.

- 5.2.14.16 Perform visual inspection for tell-tell signs of the presence of *Fusarium oxysporum* f. sp. *Canariensis* (*Fusarium* Wilt) fungus with each palm tree maintenance activity.
- 5.2.14.17 Test each palm tree annually for the presence of *Fusarium oxysporum* f. sp. *Canariensis* (*Fusarium* Wilt) fungus in plant tissue samples. Take samples from rachis tissue of fronds generated at the time of yearly pruning of fronds.
- 5.2.14.18 See Palm Tree Pruning for requirements for sterilization of pruning equipment.
- 5.2.14.19 Provide COR and Contractor with written report for each tree tested. Notify COR and Contractor immediately if *Fusarium* wilt is detected in any tree. Tag the tree with a yellow ribbon and provide an estimate to remove the tree by crane with as few cuts as possible. Protect adjacent trees and planting beds from airborne sawdust with plastic sheeting. Removal of the tree shall be under separate contract. No further pruning of infected trees is to be performed to avoid spread of the fungus to healthy trees.

5.2.15 PESTICIDE APPLICATION (GENERAL):

- 5.2.15.1 Post appropriate flags or markers in all treated areas for a period of 24 hours after a pesticide treatment has been applied accompanied by a sign informing the public of the time and date of the chemical application. Remove all flags and signs upon expiration of the 24-hour period.
- 5.2.15.2 Apply pesticides with pressurized spraying equipment at rate indicated in the manufacturer's printed instructions for control of the target insect.
- 5.2.15.3 Use surfactants and adjuvants with pesticides to improve insecticidal activity or application characteristics when recommended by pesticide manufacturer.
- 5.2.15.4 Contractor personnel applying applications must possess a current, valid State-issued pesticide application license. A copy of the license will be provided to the COR. The Contractor must be responsible for any damage resulting from the application of any pesticide treatment.
- 5.2.15.5 Train employees on environmental issues such as ground water contamination, wetland protection, and be consistent and fully compliant with all applicable Federal, State, County and City laws, ordinances, Right-to-Know laws, EPA guidelines, and regulations.
- 5.2.15.6 Report pesticide use to the County Ag Commissioners Office's when required by local jurisdictions.

5.3 IRRIGATION SYSTEM SERVICES

CLIN 0002 – Qty 12 Months

Subject to SCA and Commercial Provisions/Clauses

General Requirements:

- Irrigation System Maintenance
- Irrigation System Minor Repairs

5.3.1.1 IRRIGATION PUMP STATION

- 5.3.1.1.1 Provide an Irrigation Pump Station preventive maintenance plan for pressure booster pumps, jockey pumps, submersible pumps, electric motors, electrical switches, valves and filters based on manufacturer's Operations and Maintenance manuals. Prior to initiation of contract, submit a copy of this plan for COR approval. Any deviations from this plan must be approved by the COR. This service is designed to: provide efficient equipment operation; extend the life of the units; identify potential problems before major breakdowns occur; and reduce system down time. Where the pump station requires "spring start-up" and "winterization", the Irrigation Pump Station preventive maintenance plan must provide step-by-step instructions for decommissioning and recommissioning of the pump station.
- 5.3.1.1.2 Work must be performed by a qualified electrical and pump service technician in a mobile dispatched service truck. A pump service technician must be certified by the pump station manufacturer or have a minimum of 5 years' experience servicing pumps by the pump station manufacturer. Prior to initiation of contract, provide copies of documents and or certificates showing technicians meet this requirement to the COR.
- 5.3.1.1.3 Provide a minimum of four yearly service calls, plus one additional emergency (on-call) 3-hour visit per year. Schedule one service call in the late winter before pump service technicians become in high demand by agricultural users in the spring.
- 5.3.1.1.4 Provide the emergency service with 24 hours after notification.
- 5.3.1.1.5 Provide written service report to COR within 5 days of each visit, and alert COR of any recommended repairs above and beyond routine maintenance. Submit quote for repairs to COR.
- 5.3.1.1.6 Provide the following services on each piece of equipment listed below in accordance with the pump station manufacturer's printed Operations and Maintenance (O&M) Manuals. Obtain a copy of the O&M Manuals from the COR.
- 5.3.1.1.7 Visual inspection of pump station.
- 5.3.1.1.8 Evaluate pump station operation at various flows. Take voltage and current rating and compare to last report.
- 5.3.1.1.9 Check all safety shutdown features.
- 5.3.1.1.10 Confirm pump station is operating properly.
- 5.3.1.1.11 Check tightness on flange and motor bolts.
- 5.3.1.1.12 Check and verify PRV and High-Pressure Relief Valve operation. Adjust valves as required.
- 5.3.1.1.13 Check coupling alignment on pump(s).
- 5.3.1.1.14 Grease or oil motor bearing(s).
- 5.3.1.1.15 Change motor bearing oil once a year.
- 5.3.1.1.16 Check stuffing box for leakage.
- 5.3.1.1.17 Open wye-strainer blow-down valve to provide heat exchanger flush.

- 5.3.1.1.18 Inspect basket strainers, clean debris from interior and screens, check screen for wear, and reassemble.
- 5.3.1.1.19 Inspect and tighten all electrical connections in electrical panel.
- 5.3.1.1.20 Conduct Infrared Temperature Check (check electrical panels for hot spots, defective transformers and detect loose connections).
- 5.3.1.1.21 Inspect contactors for pitting and excessive wear.
- 5.3.1.1.22 Remove and clean diaphragm and pilots on safety relief valve.
- 5.3.1.1.23 Inspect Inverter and PLC and/or Starting Equipment.
- 5.3.1.1.24 Verify all surge devices are visually sound.
- 5.3.1.1.25 Check pressurized water tanks for leakage and pressure holding capabilities. Note flow from well (GPM), pump cut in (psi), pump cut out (psi), and tank pre-charge pressures (psi) on service record.
- 5.3.1.1.26 Verify all electrical connectors are at proper torque settings.
- 5.3.1.1.27 Verify electrical grounding of the motor armatures.
- 5.3.1.1.28 Clean/change all cooling filters and grills.
- 5.3.1.1.29 Remove all dirt and dust that has penetrated the unit interior, and that has accumulated on the processor board.
- 5.3.1.1.30 Clean station pumps, motors, control panel and associated components.
- 5.3.1.1.31 Clean pump house interior and/or clean pump station yards within the fenced enclosures of trash, dirt and debris.
- 5.3.1.1.32 Clear water intake structure of debris.
- 5.3.1.1.33 Provide written service report to COR within 5 business days of each visit.
- 5.3.1.1.34 Alert COR of any recommended repairs above and beyond routine maintenance. Submit quotes for repairs to COR.
- 5.3.1.1.35 Swap lead and stand-by pumps annually to provide for even wear and tear on the pumps.

5.3.1.2 PUMP STATION FILTERS

- 5.3.1.2.1 Provide routine maintenance for pump station filters per the Operations and Maintenance (O&M) Manual. Obtain a copy of the O&M Manual from the COR.
- 5.3.1.2.2 Contractor must be an authorized service provider of installed filtration system. Provide to the COR prior to initiation of contract, copies of documents and or certificates showing technicians meet this requirement.
- 5.3.1.2.3 Contractor will provide at a minimum, quarterly (4) site visits per year to service filters at pump stations, plus one (1) additional emergency on-call service. Schedule the maintenance services with the approval of the COR.
- 5.3.1.2.4 Provide the emergency service with 24 hours after notification.
- 5.3.1.2.5 Provide written service report to COR within 5 days of each visit, and alert COR of any recommended repairs above and beyond routine maintenance.
- 5.3.1.2.6 General Pump Filter Maintenance: Provide a preventive maintenance plan for maintenance of the filtration systems to the COR. Test and inspect the filtration systems based on manufacturer's printed O&M manuals, including but not limited to the tasks listed below. Perform tasks in accordance with

manufacturer's preventative maintenance schedule. Any discrepancies or unrecorded maintenance items shall be reported to the COR.

- 5.3.1.2.7 Centrifugal Filters:
- 5.3.1.2.8 Visual inspection of pump filter.
- 5.3.1.2.9 Open and close by-pass valves to exercise valves.
- 5.3.1.2.10 Clean mini filter.
- 5.3.1.2.11 Inspect plastic tubing.
- 5.3.1.2.12 Check flush valve for proper operation.
- 5.3.1.2.13 Check wire connections.
- 5.3.1.2.14 Clean exterior of equipment.
- 5.3.1.2.15 Provide written service report to COR within 5 business days of each visit.
- 5.3.1.2.16 Remove the main filter screen and check for wear and tear. Re-install.
- 5.3.1.2.17 Inspect dirt collector, flush valve, piston and differential pressure gauge.
- 5.3.1.2.18 Annually, inspect for wear and tear: cover seal; fine screen; dirt collection nozzles; air/water connections; O-rings; piston; dirt collector.
- 5.3.1.2.19 Alert COR of any recommended repairs above and beyond routine maintenance. Submit quote for repairs to COR.
- 5.3.1.2.20 Sand Media Filters:
- 5.3.1.2.21 Visual inspection of pump filtration system for leaking gaskets, gauge operation, hydraulic tubing integrity, and system pressure drops, wiring condition, paint condition
- 5.3.1.2.22 Check media depth yearly.
- 5.3.1.2.23 Clean water pickup assembly filter.
- 5.3.1.2.24 Inspect hydraulic line connections.
- 5.3.1.2.25 Inspect electrical connections and control box seals.
- 5.3.1.2.26 Lubricate backwash valve with general purpose water insoluble grease.
- 5.3.1.2.27 Inspect valve interior components (seals, diaphragm, shaft, etc.).
- 5.3.1.2.28 Check coupling gaskets for leaks.
- 5.3.1.2.29 Check system pressure differential.
- 5.3.1.2.30 Check backwash flow rate.
- 5.3.1.2.31 Check flow meter to assure proper flow rate.
- 5.3.1.2.32 Monitor duration of flush cycle.
- 5.3.1.2.33 Evaluate seasonal water quality fluctuations for possible settings adjustments.
- 5.3.1.2.34 Service downstream strainer.
- 5.3.1.2.35 Provide chlorine shock treatment.
- 5.3.1.2.36 Clean exterior of equipment.

5.3.1.3 PRESSURE REDUCING AND LAKE FILL VALVES

- 5.3.1.3.1 Provide a preventive maintenance plan for maintenance of all pressure reducing and lake fill valves based on manufacturer's Operations and Maintenance manuals. Prior to initiation of contract, submit a copy of this plan for COR approval. Any deviations from this plan shall be authorized by the COR. This service is designed to extend the life of the units and identify potential problems

before major breakdowns occur, reduce system down time, and provide reliable equipment operation.

- 5.3.1.3.2 All work must be performed by a qualified electrical and valve service technician in a mobile dispatched service truck. Prior to initiation of contract, provide the COR copies of documents and or certificates showing technicians meet the requirements.
- 5.3.1.3.3 Service the valves once per year, plus one additional emergency on-call service. Schedule the maintenance service with the approval of the COR.
- 5.3.1.3.4 Contractor must provide emergency service with 24 hours after notification.
- 5.3.1.3.5 Quarterly, exercise shut-off and diversion valves. Inspect for complete closure. Provide a report to the COR.
- 5.3.1.3.6 Provide written service report to COR within 5 days of each visit, and alert COR of any recommended repairs above and beyond routine maintenance.
- 5.3.1.3.7 Provide the following services on each of the valves:
- 5.3.1.3.8 Disassemble.
- 5.3.1.3.9 Clean.
- 5.3.1.3.10 Inspect main control valve.
- 5.3.1.3.11 Inspect pilot control.
- 5.3.1.3.12 Rebuild internal valve and replace diaphragm.
- 5.3.1.3.13 Rebuild pilot assembly.
- 5.3.1.3.14 Reassemble.
- 5.3.1.3.15 Adjust operating pressure.

5.3.1.4 WATER STORAGE TANK MAINTENANCE – Pump stations wet well

- 5.3.1.4.1 Annually provide a visual inspection of the exterior of water storage tank for corrosion, leaking gaskets, joints, welds, bolts, plate integrity, overflow and drain piping, roof vent, paint condition and vandalism.
- 5.3.1.4.2 Provide regular and routine maintenance on float valve to prevent overfilling of the tank and subsequent overflow of water from the storage tank.
- 5.3.1.4.3 Provide written report to COR within 5 days of each visit, and alert COR of any recommended repairs above and beyond routine maintenance.

5.3.1.5 WEATHER STATION MAINTENANCE

- 5.3.1.5.1 Provide routine maintenance for on-site weather station(s) per the Operations and Maintenance (O&M) Manual. Obtain a copy of the O&M Manual from the COR.
- 5.3.1.5.2 General Weather Station Maintenance:
- 5.3.1.5.3 Check sensor leads and cables for cracking, deterioration, proper routing, and strain relief. Replace sensor cables if required.
- 5.3.1.5.4 Check the tripod or tower for structural damage, proper alignment, and for level/plumb.
- 5.3.1.5.5 Desiccant – Enclosure humidity is monitored in the enclosure by an RH chip incorporated into the connector board. Change the desiccant packs when the enclosure RH exceeds 35%.

- 5.3.1.5.6 Monitor data values collected by the Weather Reach Server. Abnormal or out of range sensor values may indicate problems with the station.
- 5.3.1.5.7 Weekly visual inspection of the station to observe any apparent problems.
- 5.3.1.5.8 An occasional cleaning of the glass on the solar panel will improve its efficiency, if applicable
- 5.3.1.5.9 Sensor Maintenance – monthly
- 5.3.1.5.10 Check the Pyranometer for level and contamination. Gently clean, if needed.
- 5.3.1.5.11 Visually inspect the wind sensors and radiation shield.
- 5.3.1.5.12 Check the rain gauge for debris and level.
- 5.3.1.5.13 Do a visual/audio inspection of the anemometer at low wind speeds.
- 5.3.1.5.14 Check the filter cap of the temperature/humidity sensor for contamination.
- 5.3.1.5.15 6 months
- 5.3.1.5.16 Clean the temperature/humidity sensor filter cap.
- 5.3.1.5.17 Clean the Gill Radiation Shield.
- 5.3.1.5.18 Battery test.
- 5.3.1.5.19 Inspect the enclosure seal.
- 5.3.1.5.20 1 year:
- 5.3.1.5.21 Replace anemometer bearings, in some areas the bearings may be good for 2 years.
- 5.3.1.5.22 Calibrate the rain gauge.
- 5.3.1.5.23 Calibrate the HMP45C/HMP35C temperature / RH probe. Or check calibration of CS500 RH Probe; replace RH chip if necessary but at least every 2 years.
- 5.3.1.5.24 Check internal RH chip (MetData1 and ET101/106 only). Replace if >5% off or every 3 years.
- 5.3.1.5.25 Change the desiccant packs.
- 5.3.1.5.26 2 years:
- 5.3.1.5.27 Calibrate the solar radiation sensor.
- 5.3.1.5.28 Calibrate the temperature sensor.
- 5.3.1.5.29 Replace the wind vane potentiometer and bearings.
- 5.3.1.5.30 4 – 5 years:
- 5.3.1.5.31 Calibrate the datalogger; this must be done by the Manufacturer.

5.3.1.6 WEATHER SENSORS

- 5.3.1.6.1 Provide routine maintenance for the ET Gage, Tipping Rain Bucket, and Wind Gage per the manufacturer's printed instructions.
- 5.3.1.6.2 General Weather Sensor Maintenance:
- 5.3.1.6.3 Check sensor leads and cables for cracking, deterioration, proper routing, and strain relief. Replace sensor cables if required.
- 5.3.1.6.4 Weekly visual inspection of the gages to observe any apparent problems.
- 5.3.1.6.5 Sensor Maintenance – monthly
- 5.3.1.6.6 ET Gage: Fill the reservoir with distilled water.
- 5.3.1.6.7 Wind Gage: Visually inspect the wind gage; perform a visual/audio inspection of the anemometer at low wind speeds.

- 5.3.1.6.8 Tipping Rain Bucket: Remove debris from the rain bucket. Check bucket for plumbness and level.
- 5.3.1.6.9 6 months
- 5.3.1.6.10 ET Gage: Remove and clean the canvas per manufacturer's printed instructions.
- 5.3.1.6.11 Wind Gage: Check mounting clamps; clean exterior.
- 5.3.1.6.12 Tipping Rain Bucket: Check mounting clamps; clean interior and exterior of bucket.
- 5.3.1.6.13 1 year:
- 5.3.1.6.14 ET Gage: Clean ceramic evaporation plate per manufacturer's printed instructions.
- 5.3.1.6.15 Wind Gage: Check for plumbness and level.
- 5.3.1.6.16 Tipping Rain Bucket: Check for plumbness and level.
- 5.3.1.6.17 2 years:
- 5.3.1.6.18 ET Gage: Clean and recondition the ceramic evaporation plate per manufacturer's printed instructions.
- 5.3.1.6.19 3 – 5 years:
- 5.3.1.6.20 Wind Gage: Replace bearings.

5.3.1.7 BACKFLOW PREVENTION DEVICE

- 5.3.1.7.1 Provide yearly backflow testing and certification by a certified backflow prevention assembly tester for each backflow prevention device serving the site. Devices include both domestic water and irrigation-only backflow preventers. Affix a service record tag to each backflow serviced. Flush and clean wye-strainers screens on backflow assemblies yearly at time of testing.
- 5.3.1.7.2 Check backflow insulators are securely fitted around the devices. Tighten laces. Inform COR if insulators are worn and in need of replacement.
- 5.3.1.7.3 Check backflow enclosure for structural soundness. Tighten bolts connecting enclosure panels together, and bolts mounting the enclosure to the foundation.

5.3.1.8 MASTER VALVES

- 5.3.1.8.1 Exercise master valves and submaster valves/hydrometers quarterly to check for proper functioning. Provide a report to the COR in tabular form showing date of inspection and results for each master valve in the system as "pass" or "fail". A passing grade is a valve that is capable of being actuated from the irrigation controllers and closes and opens flow completely. Advise COR of any recommended repairs and provide quotes for parts and labor.
- 5.3.1.8.2 Test master valves for automatic closure upon exceeding flow threshold established in programming of central control system. Set a low flow test threshold in the programming and run an irrigation zone that exceeds that threshold. Note on the report to the COR the results for each master valve in the system as "pass" or "fail". A passing grade is a valve that closes automatically when the high flow threshold is exceeded.
- 5.3.1.8.3 Advise COR of any recommended repairs and provide quotes for parts and labor.

5.3.1.9 FLOW METERS

- 5.3.1.9.1 Check flow meters for communication of real time flow at satellite irrigation controllers and central irrigation computer. Provide a report to the COR in tabular form showing date of inspection and results for each flow meter to measure flow in the system as “pass” or “fail”. Advise COR of any recommended repairs and provide quotes for parts and labor
- 5.3.1.9.2 Recalibrate flow meters/hydrometers annually. Provide a service report to the COR.

5.3.1.10 BASKET STRAINERS

- 5.3.1.10.1 Quarterly, flush filter screen quarterly to remove heavy contaminants. Connect hose to outlet and direct flow onto non-landscaped area.
- 5.3.1.10.2 Yearly, remove and clean screen filters. Replace screen filters when worn. Advise COR of any recommended repairs and provide quotes for parts.

5.3.1.11 AUTOMATIC CONTROL VALVES

- 5.3.1.11.1 Exercise Automatic Control Valves (ACV) as part of submain pressure regulating assemblies quarterly to check for proper functioning. Provide a report to the COR in tabular form showing date of inspection and results for ACV in the system as “pass” or “fail”. A passing score is a valve that is capable of opening and closing in response to flow demand, and/or opens and closes completely when actuated from an irrigation controller.

5.3.1.12 PRESSURE REGULATING VALVES

- 5.3.1.12.1 Exercise pressure-regulating valves (PRV) quarterly to check for proper functioning. PRV's include valves which are part of irrigation mainline pressure regulating assemblies. Report upstream and downstream static and dynamic pressure readings. Provide a report to the COR in tabular form showing date of inspection and results of pressure readings for each PRV assembly.
- 5.3.1.12.2 Check remote control valves for presence/absence of pressure-regulating modules. Re-install manufacturer's optional pressure-regulating modules on remote control valves where they are missing or have been removed. Exercise pressure-regulating modules which are components of remote-control valves. Turn pressure adjustment screw until pressure reduction is visible either from pressure gauge or noticeable drop in radius of sprinkler heads. Provide a report to the COR in tabular form showing date of inspection and results for each PRV in the system as “pass” or “fail”. Advise COR numbers of valves needing pressure-regulating modules, any recommended repairs and provide quotes for parts.

5.3.1.13 COMBINATION VALVES/AIR-VAC VALVES

- 5.3.1.13.1 Observe combination valves (Air and Vacuum Release Valves) quarterly to check for proper functioning and leaks. Follow the manufacturer's printed instructions

for testing. Testing may require temporary installation of a shut-off valve on the drain outlet. A properly operating combination valve will allow air trapped in pipes to escape, eject a small amount of water and then form a water-tight seal. Provide a report to the COR in tabular form showing date of inspection and results for each combination in the system as “pass” or “fail”. Advise COR of any recommended repairs and provide quotes for parts and labor.

5.3.1.14 ISOLATION VALVES

- 5.3.1.14.1 Exercise isolation valves (Gate and Ball Valves) quarterly on irrigation mains, domestic water mains, and fire mains to check for proper functioning, and to remove built-up debris.
- 5.3.1.14.2 Exercise in accordance with valve manufacturer’s printed instructions and American Water Works Association (AWWA) standards. Obtain a copy of the O&M manuals from the COR.
- 5.3.1.14.3 Contact the local fire marshal for direction prior to exercising fire main valves.
- 5.3.1.14.4 Close valve completely and check for complete isolation of the mainline by attempting to obtain water from a downstream outlet such as a quick coupling valve or sprinkler.
- 5.3.1.14.5 Provide a report to the COR in tabular form showing date of inspection and results for each isolation valve in the system as “pass” or “fail”. Advise COR of any recommended repairs and provide quotes for parts and labor.
- 5.3.1.14.6 After testing and positive identification of the water source controlled by the valve, prepare surfaces and paint the cast-iron valve covers with respectively colored low-gloss enamel spray paint: Non-potable Purple for irrigation valves; Potable Blue for Domestic valves; and Yellow for Fire valves. (Note: Currently, not all valve covers may be painted the correct color.)

5.3.1.15 MAJOR IRRIGATION SYSTEM REPAIRS (NOT IN CONTRACT)

- 5.3.1.15.1 Repairs on pressure pipe and valves upstream of and including the master valves shall be considered “Construction” and will be repaired under a separate contractual agreement with either “the Contractor,” a different contractor, or with Government materials and/or labor, at the Government’s discretion. This typically includes water meters, service lines, backflow preventers, pressure-regulating valves, master valves, flow meters, hydrometers, isolation valves, vaults and valve box assemblies in roadways, mainline pipe and fittings, pipe restraints, irrigation controllers, electrical power lines, valve control wires, cables and conduits under paving.
- 5.3.1.15.2 Where broken pipe, fittings, control wires and irrigation valves require removal of hardscape elements (e.g., pavements, walls, footings, etc.), to make the repairs, itemize the work of removal and replacement of the hardscape element(s) separate from the irrigation repairs and respective equipment/parts. Quotes must include pricing for replacement paving materials to match the existing materials and finishes. The customary and reasonable excavation and backfill associated with the repair of the irrigation equipment must not be

included in the quote for hardscape element removal and replacement. Submit the quotes for competitive bidding to the Contracting Officer.

5.4 POND SERVICES

CLIN 0003 – Qty 12 Months

Subject to SCA and Commercial Provisions/Clauses

General Requirements:

- Irrigation Pond/Lake and Canal Maintenance
- Stormwater Pond and Wetland Maintenance

5.4.1 IRRIGATION POND/LAKE and CANAL MAINTENANCE

5.4.1.1 SCOPE

- 5.4.1.1.1 Maintain ponds, lakes and canals (including banks and shoals) free of aquatic vegetation, algae, pests and foreign objects which will detract from the appearance of the water features and the use of its water for landscape irrigation purposes. For purposes of this section, the terms “pond” and “lake” are used interchangeably, and may be used directly or indirectly for holding or transporting irrigation water.
- 5.4.1.1.2 Maintain pond aeration equipment.
- 5.4.1.1.3 Maintain pond fill lines, valves, and drains.
- 5.4.1.1.4 Maintain water in ponds at the appropriate level.
- 5.4.1.1.5 Reposition rip-rap stones to cover pond liner where exposed.

5.4.1.2 POND MAINTENANCE

- 5.4.1.2.1 Create a pond management plan by a licensed and trained aquatic biologist showing all maintenance activities and schedule of pond treatment applications throughout the year.
- 5.4.1.2.2 Provide annual testing of water for pH, total dissolved solids, dissolved oxygen, nitrate-nitrogen, alkalinity, aluminum, iron, manganese, phosphorus, sulfate, and hardness and E. coli. Water clarity levels will be evaluated in SECCI disk readings and NTU readings.
- 5.4.1.2.3 Tests must be conducted by an accredited laboratory, university, or agricultural extension in the state in which the pond is located. Test reports shall be accompanied with interpretation and recommendations for correction. Provide report to COR.
- 5.4.1.2.4 Identify all vascular weeds and algae growth found growing in the lakes/ponds. Utilize waste digesting bacteria to help breakdown organic build-ups and control odors. Utilize anti-foaming agents on an as needed basis.
- 5.4.1.2.5 Where high phosphorus levels are causing algal blooms, treat water to reduce availability of phosphorus.
- 5.4.1.2.6 Coordinate with fertilizer applications to restrict applications of fertilizers containing phosphorus within 50 feet of water entryways.
- 5.4.1.2.7 Treat water for control of aquatic weeds and algae.

- 5.4.1.2.8 Treat water for control of undesirable insects, with special attention to controlling vectors for Zika and West Nile viruses.
- 5.4.1.2.9 Aquatic pesticides must be applied by licensed pesticide applicators in the state of application. Copies of these licenses will be provided to the COR prior to initiation of contract.
- 5.4.1.2.10 Provide written pest control recommendations and SDS sheets for algaecides and herbicides used throughout the contract for COR review and approval.
- 5.4.1.2.11 Aquatic pesticides must be EPA approved and registered for use in the state of application.
- 5.4.1.2.12 Select algaecides and herbicides products for the control and reduction of excessive growth of aquatic submerged and emerged algae and/or weeds.
- 5.4.1.2.13 Discourage the use of the water bodies by waterfowl. Encourage a no feeding policy.
- 5.4.1.2.14 Remove trash, debris and other foreign objects from water bodies whether on the surface, suspended or submerged.
- 5.4.1.2.15 Do not use chemicals in the pond which will be harmful to turf and other landscape plants.
- 5.4.1.2.16 Lower pond water levels prior to treatments to prevent unwanted loss of chemicals from overflowing waters.
- 5.4.1.2.17 Clear intake and outfall structures of debris as needed especially after storm events.

5.4.1.3 POND AERATION EQUIPMENT MAINTENANCE

- 5.4.1.3.1 Provide a preventive maintenance plan for pond fountains/aeration equipment based on manufacturer's Operations and Maintenance manuals. Perform routine maintenance service on pond fountain/aeration systems by a qualified aeration equipment technician. Obtain a copy of the O&M manual from the COR.
- 5.4.1.3.2 Annually, clean the pond fountains. Remove the fountain assembly completely from the water to perform the cleaning and check for any damage and wear of the equipment.
- 5.4.1.3.3 Annually, disconnect the unit from the power source and physically inspect the aerator and underwater cable for any cuts, cracks or breaks as these may cause oil leaks or electrical shorts. Inspect and clean the pumping chamber components and screen.
- 5.4.1.3.4 Provide any needed repairs to connections and clean assemblies.
- 5.4.1.3.5 Provide written service report to COR after each visit and alert COR of any recommended repairs above and beyond routine maintenance. Submit quote for repairs to COR.
- 5.4.1.3.6 Check mooring/anchor lines after storm events. Secure units in place evenly distributed within the pond surface.
- 5.4.1.3.7 Perform a simple oil change every two years beginning in the Base Year of the contract. Manufacturer-approved oil must be used for this oil change for environmental and heat dissipation purposes.

- 5.4.1.3.8 Winterization: Units considered under the Aeration Line (e.g., Sunburst, Gemini and Saturn) can remain in the water during the winter but need to run a minimum of 12 hours per day and must run 24 hours per day when temperatures drop below 20° Fahrenheit or -7° Celsius. For units in locations with freezing weather, remove, clean, package and store in a secure location within the pump house before the pond freezes over.
- 5.4.1.3.9 Proper Storage: When storing units keep them upright, or if tilting to the side, be sure to keep the bulkhead facing up. Units must never be stored upside down.

5.4.1.4 POND SUBMERGED AERATION EQUIPMENT MAINTENANCE

- 5.4.1.4.1 Provide a preventive maintenance plan for subsurface pond aeration equipment based on manufacturer's Operations and Maintenance manuals. Perform routine maintenance service on pond aeration systems by a qualified aeration equipment technician. Obtain a copy of the O&M manual from the COR.
- 5.4.1.4.2 Annually, perform visual inspection of aeration mechanical system including air compressor, pressure gauges, check valves, pressure-reducing valve, air filters, air aftercooler, piping, timer and electrical controls for proper functioning.
- 5.4.1.4.3 Annually, test turn-over rate of diffuser modules to meet design flow as specified by Marine Biochemist (e.g., 2.5 SCFM per module (10 SCFM total.)
- 5.4.1.4.4 Check the intake filters and vanes quarterly and replace, if necessary, once per year at a minimum.
- 5.4.1.4.5 Annually, test pressure output from compressor to meet design pressure. Replace faulty piston rings, piston cup, gaskets, seals and leaf valves as part of routine maintenance service.
- 5.4.1.4.6 Annually perform visually inspection of check valve, distribution manifold piping, flow meters, and isolation valves serving the submerged diffuser module assemblies.
- 5.4.1.4.7 Flush debris from pumps using manufacturer's recommended flushing solvent when servicing the units.
- 5.4.1.4.8 Provide any needed repairs to connections and clean assemblies.
- 5.4.1.4.9 Provide written service report to COR after each visit and alert COR of any recommended repairs above and beyond routine maintenance. Submit quote for repairs to COR.

5.4.1.5 POND PUMPS, VALVES, FILL LINE, AND DRAIN MAINTENANCE

- 5.4.1.5.1 Perform routine maintenance on pond water make-up pumps, valves, fill lines, irrigation ditch head gates, overflow drains, channels and spillways.
- 5.4.1.5.2 Clear intake and outfall structures of debris as needed especially after storm events.
- 5.4.1.5.3 Quarterly, exercise shut-off, diversion valves, and head gates. Inspect for complete closure. Provide a report to the COR.

5.4.2 STORMWATER POND and WETLAND MAINTENANCE

5.4.2.1 SCOPE

5.4.2.1.1 Maintain Stormwater detention and retention ponds/basins in accordance with requirements of agencies having jurisdiction over these facilities.

Overflow/detention ponds associated with Irrigation Ponds/Lakes are also included under this Chapter. Manage stormwater ponds to maintain the stormwater detention/treatment function for which they were designed while allowing natural wetland vegetation to become established.

5.4.2.1.2 Open and close by-pass valves and operate lift pumps to lower water levels from detention and retention ponds/basins as approved by the COR and/or agencies having jurisdiction over these facilities. Assure that there is sufficient freeboard in stormwater facilities to allow on-site stormwater to drain to these structures prior to forecasted storm events.

5.4.2.1.3 Maintain Wetland Mitigation Areas free of non-native plant species and foreign objects which will compete with the objective to create self-sustaining wetland and buffer communities that provide similar functions to natural wetland systems. Preserve existing functions and protect from direct and indirect damage.

5.4.2.2 VEGETATION/DEBRIS CONTROL

5.4.2.2.1 Mow grasses growing within the basins 1 to 2 times per year as water levels allow (i.e., when little to no standing water is present).

5.4.2.2.2 Spot-treatment of non-native/invasive weeds two times per year with an herbicide approved for use around wetlands (Glyphosate product such as 'Aquamaster', 'Rodeo', or approved equal), or other herbicides as appropriate to species present.

5.4.2.2.3 Remove weed trees and shrubs and their root systems growing inside basins. Fill excavations with clean sand, or other COR-authorized fill material.

5.4.2.2.4 Monitoring of herbicide treatment success and re-treatment as necessary.

5.4.2.2.5 Trimming and/or pruning of wetland plant material annually if needed using line-trimmers, saws and pruners.

5.4.2.2.6 Treat for control of algae.

5.4.2.2.7 Remove trash and debris.

5.4.2.3 DRAINAGE STRUCTURE MAINTENANCE

5.4.2.3.1 Maintain pits, gunite ditches, sumps, retention and detention ponds/basins to prevent a breeding habitat for mosquitoes or other vectors.

5.4.2.3.2 Clean-out and maintain culverts, spillways, inflows, outflows and piping.

5.4.2.3.3 Clean-and maintain rock-lined swales/ concrete channels, gunite ditches, and outfalls free of sediment, weeds, trash and debris.

5.5 DRAINAGE SYSTEM MAINTENANCE

CLIN 0004 – Qty 12 Months

Subject to SCA and Commercial Provisions/Clauses

5.5.1 SCOPE

- 5.5.1.1 Maintain the surface/street drainage system by inspecting monthly and after every rainstorm and clearing and cleaning the grates and catch basins as required for proper drainage.
- 5.5.1.2 Remove standing water from gravesites and memorial areas.
- 5.5.1.3 Maintain rock dissipaters at outfalls by removal of sediment.
- 5.5.1.4 Maintain stormwater pond lift pump stations and drain lines.
- 5.5.1.5 Maintain crypt underdrain lift pump stations and drain lines.
- 5.5.1.6 Place and maintain erosion control measures (e.g., straw wattles, sandbags) in strategic locations to keep soil and bark mulch from washing onto roadways and into catch basins during rain events.

5.5.2 GENERAL REQUIREMENTS

- 5.5.2.1 Clear culverts and drain lines of debris annually.
- 5.5.2.2 Remove covers/grates for drainage structures and clean catch basins and trench drains of debris annually. Clean sediment traps if present. Replace traps, grates, and re-secure covers.
- 5.5.2.3 Clean concrete gutter/terrace drains of dirt and debris monthly.
- 5.5.2.4 Clear drain lines in gravel beds at flower strips in columbaria courts annually.
- 5.5.2.5 Clean sediments at rock outfalls as needed to increase capacity for sediment capture. Excavate rock, remove sediment, and replace rock.

5.5.3 STORM DRAIN LIFT PUMPS MAINTENANCE

- 5.5.3.1 Perform routine maintenance on the pond lift submersible pumps at each stormwater basins. Inspect and provide routine maintenance on pump station controls, valves, fill lines, overflow drains, sumps, channels and spillways.
- 5.5.3.2 Provide two yearly service calls. Schedule one service call in the late fall prior to winter storms.
- 5.5.3.3 Test for proper operation and provide written service report to COR after each visit and alert COR of any recommended repairs. Submit quote for repairs to COR.
- 5.5.3.4 Provide two yearly service calls to provide routine maintenance on lift pump stations serving crypt underdrains. Inspect float switch and sump pumps. Schedule one service call in the late fall prior to winter storms. Test for proper operation and provide written service report to COR after each visit and alert COR of any recommended repairs. Submit quote for repairs to COR.

5.6 TRASH & DEBRIS REMOVAL

CLIN 0005 – Qty 12 Months

Subject to SCA and Commercial Provisions/Clauses

5.6.1 SCOPE

- 5.6.1.1 Maintain all the cemetery grounds and turf free of trash and debris; each day and to include weekends and holidays.

- 5.6.1.2 To include weekends and holidays. Work consists of collecting and removing all trash, debris, fallen leaves, needles, seed pods and branches, dead and unsightly flowers from the cemetery grounds, driveways, parking areas, and areas within the public right-of-way between the cemetery proper and edge of pavement at least weekly, and usually in conjunction with the mowing cycle.
- 5.6.1.3 To include weekends and holidays. Work includes emptying cemetery trash receptacles each day, weekends and holidays, and regular floral pickup at gravesites and columbaria each day. Floral arrangement must be treated in accordance with National Cemetery Administration Floral Regulations. Random inspections will be conducted by the COR.
- 5.6.1.4 Debris piles, equipment, tools and supplies must be removed at the conclusion of each task or at the end of each day.
- 5.6.1.5 All roads, driveways, walkways, shelters and burial sections must be free of grounds maintenance debris by the end of the day.
- 5.6.1.6 All trash collection points are screened from the public view.
- 5.6.1.7 Remove non-conforming gravesite decorations/commemorative items. Any items collected from gravesites that may be deemed of monetary or clear sentimental value will be placed in bags, tagged with date and location found (e.g., headstone number) and stored in a cemetery-approved holding location for 30 days. Visitors inquiring about items of value left on graves will be directed to this holding site.

5.6.2 GENERAL REQUIREMENTS

- 5.6.2.1 Cemetery area includes all of land within the property lines, areas outside the walls and fences, including the areas within the public rights-of way to the edge of public roads, and any debris collecting within the gutters of public roads.
- 5.6.2.2 Definition: Trash & Debris are defined as any item, material or foreign object not permanently attached to or planted within cemetery grounds and boundaries. Items include, but are not limited to leaves, needles, flowers, seed-pods, twigs, branches of all sizes, feces, paper products, cigarette butts, gum, glass and metal products, plastic and any other synthetic items, gravel, asphalt, concrete, loose rock and stones over two inches (2") in diameter, and soils that are a result of interment operations.
- 5.6.2.3 Trash & Debris Removal: In addition to trash and debris removal each day, weekends, and holidays, trash & debris must be removed from all areas in conjunction with each mowing cycle. Trash & debris removal must also include clearing of all roads/walks with a power leaf blower as necessary to clean the street / walkways of clippings, small debris and leaves.
- 5.6.2.4 Also included is trash & debris found within the trash receptacles located throughout Cemetery grounds which will be collected each day, weekends, and holidays throughout the year.
- 5.6.2.5 Green Waste Removal: The Contractor must be responsible for the proper collection, removal and disposal of all debris resulting from tree and shrub pruning operations. All tree limbs, branches, wood chips, bush/shrub/hedge clippings and

other vegetative debris must be removed from cemetery grounds the same day the work is performed and be disposed of in a legal manner.

5.6.3 PROCEDURES

- 5.6.3.1 Each day, weekends, and holidays inspect all areas of the cemetery and ensure that there is no accumulation of debris in any area.
- 5.6.3.2 Provide the necessary labor and suitable conveyance each day, weekends, and holidays for pickup of debris from cemetery grounds.
- 5.6.3.3 Each day, weekends, and holidays fallen tree limbs of all sizes must be removed. Leaves/needles and twigs must be hand raked, vacuumed or blown by walk-behind push type machines from interment areas into the roadways, and then collected and properly deposited into waste receptacles. Do not move debris into planting beds, woodland/wetland areas, and rock mulch beds. Remove trash & debris from planting beds and mulch beds (e.g., bark mulch, decomposed granite, paths fines, gravel).
- 5.6.3.4 In addition to daily, weekends, and holidays trash and debris removal, all trash, debris, contents of trash cans, dead or unsightly flowers and fallen tree limbs must be removed from cemetery areas in conjunction with each mowing cycle.
- 5.6.3.5 Walkways, driveways, roads, and parking areas must be swept following mowing activities.
- 5.6.3.6 Floral Pick-up: Collect and dispose of all grave decorations according to the cemetery floral policy. (See Appendix A for RNC's floral policy). Remove, clean and replace flower cones into designated receptacles. Floral cones must be neatly stacked upside down to prevent water from accumulating in them. Schedule general floral pickup from gravesites as follows:
- 5.6.3.7 Remove unsightly cut flowers weekly in conjunction with each mowing cycle.
- 5.6.3.8 Remove unsightly cut flowers on a twice-monthly basis during the non-mowing season.
- 5.6.3.9 Remove and tag with location all non-conforming gravesite decorations (e.g., balloons, wind ornaments, solar lights, etc.), and Christmas trees and deliver to location as approved by the COR. All keepsake/mementos must be kept in designated area for 30 days as approved by the COR.
- 5.6.3.10 Annual Ceremonies Clean-up: Clean-up trash and gravesite decorations after special memorial ceremonies. Remove wreaths and American flags placed on gravesites as approved by the COR. Remove flags placed on gravesites outside of holidays when needed for Grounds Maintenance or when the flags become unserviceable.
- 5.6.3.11 Collect and dispose of all grave decorations and clean and re-stock all flower cones. Schedule general floral pickup from gravesites in accordance with the Cemetery's posted Floral Policy. Post the pickup date on the sign located on the entry drive.
- 5.6.3.12 Storm Clean-Up (wind, rain, hail, snow, ice): Check and clean up the cemetery on the next working day following a storm event unless the extent of the storm prompts civil defense authorities to declare emergency movement only. Should this occur, clean-up must be done as soon as emergency restrictions are lifted.

- 5.6.3.13** In conjunction with each mowing cycle, all trash, debris, contents of trash cans, grave decorations, dead or unsightly flowers and fallen tree limbs must be removed from cemetery areas. Organic waste will be put in the soil areas. Trash will be put in the dumpsters.

6. APPLICABLE PUBLICATIONS

- 6.1** Applicable Publications (Current Editions) The Contractor shall comply with various standards, directives, and other VA, NCA, and Riverside National Cemetery publications in addition to industry standards that are applicable at the time of job performance. The Contractor is responsible to stay abreast of updates and changes. Links are provided where available below.
- 6.2** Interment Area Layout, [VA Directive 3120](#)
- 6.3** Integrated Pest Management at VA National Cemeteries, [VA Directive 3410](#)
- 6.4** Integrated Pest Management at VA National Cemeteries, [NCA Handbook 3410](#)
- 6.5** Organization Assessment and Improvement (OAI) Program NCA Directive [NCA 0330](#)
- 6.6** NCA Environmental Management Program NCA Directive [NCA 0057](#)

7. ATTACHMENT/TECHNICAL EXHIBIT LISTING

- 7.1** Attachment 1/Technical Exhibit 1 – Quality Assurance Surveillance Plan (QASP)
- 7.2** Attachment 2/Technical Exhibit 2 – Deliverables Schedule
- 7.3** Attachment 3/Technical Exhibit 3 – Estimated Workload Data for Service Contract Act (SCA) Elements
- 7.4** Attachment 4 – Attachment A – Riverside National Cemetery Site Map
- 7.5** Attachment 5 – Attachment B – Contractor’s Employee Statement of Compliance
- 7.6** Attachment 6 – Attachment C – Pesticide Application Data Sheet
- 7.7** Attachment 7 – Attachment D – Vertebrate Pest Inspection Sheet
- 7.8** Attachment 8 – Attachment E – Riverside National Cemetery Floral Policy and Cemetery Regulations

TECHNICAL EXHIBIT 1

Quality Assurance Surveillance Plan ** QASP

The Contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success and may impact payment and/or CPARS.

Performance Objective	Standard	Performance Threshold	Methods of Surveillance
SP# 1 The Contractor shall provide a detailed grounds maintenance management plan (GMP) in accordance with PWS 4.1.2 and 5.1.	The Contractor provided GMP shows detailed daily, weekly, monthly, and annual tasks and is received within the first 30 workdays of the contract and updated as necessary.	100% Correction(s) required within one work week to provide acceptable report.	Review by COR TEAM.
SP # 2 The Contractor shall provide deliverables in accordance with PWS requirements and Technical Exhibit 2.	Reports are submitted on time and provide the contracted details.	Information is detailed and provides relevant/ actionable data for planning and quality assurance. Correction and resubmittal within 10 workdays is allowable, however tasks requiring prior approval may not proceed.	Random review by COR TEAM.
SP # 3 The Contractor shall maintain turf. PWS 5.2.	Turf is maintained within proper height for its area. Sod does not need to be replaced. Sod is healthy and looks well maintained. PWS 5.2. requirements are met.	90% Contractor shall provide an action plan to bring area into acceptance within one workday with corrections completed as approved by COR. Repeated deficiencies may result in meetings, QC Updates, CDR, contractual correction.	Monthly inspection of random turf areas throughout the cemetery.
SP # 4 The Contractor shall maintain lakes, ponds, drainage, and storm water systems. PWS 5.4.1.	Water storage and drainage systems are cleared of trash and operating optimally. No standing water is observable on markers, roads, or other areas. PWS 5.5 and 5.7 requirements are met.	95% Contractor shall perform/ reperform to bring area(s) into acceptance within two workdays. Repeated deficiencies may result in meetings, QC Updates, CDR, contractual correction.	Monthly inspection of random water features throughout the cemetery and 100% inspection following storms and/or flooding
SP # 5 The Contractor shall clean remove trash, including floral arrangements and unauthorized grave adornments. PWS 5.6.	Trash and debris are removed promptly ensuring the national cemetery is free of clutter and unauthorized items contrary to operations. PWS 5.6 and PWS 5.7 requirements are met.	97% Contractor shall perform/ reperform to bring area(s) into acceptance the same day. Repeated deficiencies may result in meetings, QC	Monthly inspection of random areas throughout the cemetery.

		Updates, CDR, contractual correction.	
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TECHNICAL EXHIBIT 2

DELIVERABLES SCHEDULE

The Contractor may provide email, PDF, TIF, JPG, PNG, WORD, and EXCEL documents. No zipped files or links to outside sources or storage locations are permitted without prior COR TEAM approval.

Item	Deliverable	Frequency	Qty	Medium/Format	Submit To
1.	Quality Control Plan (QCP). PWS 1.7.1.1, 1.7.1.11 quality standards throughout PWS	With the proposal in draft form. A formal QCP shall be delivered within 30 days after contract award and within five (5) working days following each update.	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov and contracting officer
2.	Grounds Maintenance Plan PWS 4.1.2 and 5.1	With the proposal in draft form. A formal QCP shall be delivered within 30 days after contract award and within five (5) working days following each update.	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov and contracting officer
3.	Personnel List PWS 1.7.1.10	Within ten (10) workdays after contract award	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov)
4.	Certification/Specialized work licenses. PWS 1.7.1.15	Upon award, at time of each option, whenever a new certification/ license is issued	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov and Contracting officer
5.	List of tools and equipment PWS 4.1.15 and 4.1.18	Within 10 workdays after contract award and updated as needed	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov

Item	Deliverable	Frequency	Qty	Medium/Format	Submit To
6.	Manufacturer's product sheets and instructions PWS 5.2.2.12	Prior to application	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov
7.	One-half (1/2) cubic-foot sample of compost, and certification letter PWS 5.1.2.10	Prior to supplying the compost, soil amendments and fertilizers	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov Pacific District Agronomist
8.	Laboratory analysis of proposed soil amendments PWS 5.1.2.11	Prior to supplying the compost, soil amendments and fertilizers	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov Pacific District Agronomist
9.	Composition and laboratory analysis of fertilizer PWS 5.1.2.12	Prior to supplying the compost, soil amendments and fertilizers	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov Pacific District Agronomist
10.	Cemetery Site Plan PWS 5.2.12.44	Weekly	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov
11.	Irrigation Pump Station preventive maintenance plan PWS 5.3.1.1	Prior to initiation of contract	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov
12.	Qualified electrical and pump service technician certificate PWS 5.3.1.1.2	Prior to initiation of contract	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov
13.	Preventive maintenance plan for maintenance of all pressure reducing and lake fill valves PWS 5.3.1.3.1	Prior to initiation of contract	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov
14.	Work completion report for the current week. PWS 4.1.3 and 4.1.4.	Weekly no later than 3:00 p.m. on the final workday of each week.	1	Electronic	lincoln.sii@va.gov and

Item	Deliverable	Frequency	Qty	Medium/Format	Submit To
					terry.cole2@va.gov
15.	Detailed grounds management plan (GMP). PWS 4.1.2 and 5.1.	With proposal (draft); Final version within 30 workdays of contract award and updated as needed	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov and Contracting Officer
16.	Comprehensive pond operation and management plan. PWS 4.1.2.	With proposal, within 30 workdays after contract award, prior to changes.	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov Contracting Officer
17.	Water test results. PWS 4.1.2.2	Within 15 workdays of May and November testing.	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov
18.	Pond fountain service report. PWS 5.4.1.3	Within 15 workdays of May and November routine maintenance.	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov
19.	Pond aeration mechanical system report. PWS 5.4.1.4.1	Within 15 workdays of annual routine maintenance.	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov
20.	Pond water make-up pumps and related equipment. PWS 5.4.1.5.1	Within 15 workdays of quarterly routine maintenance.	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov
21.	Annual soil test report. PWS 5.2.2.7 and 5.2.5	Each spring prior to fertilizer purchases.	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov Pacific District Agronomist
22.	Notice of completion for fertilizer applications. PWS 5.2.6.1	Within five (5) workdays following application.	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov Pacific District Agronomist

Item	Deliverable	Frequency	Qty	Medium/Format	Submit To
23.	Initial vertebrate damage report. PWS 5.2.9.4	Initial report within 10 workdays of contract award.	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov
24.	Recurring weekly vertebrate damage repair report. PWS 5.2.9.5	Weekly	1	Electronic	lincoln.sii@va.gov and terry.cole2@va.gov

TECHNICAL EXHIBIT 3

Estimated Workload Data for Service Contract Act (SCA) CLINS

(information located on supplement A)

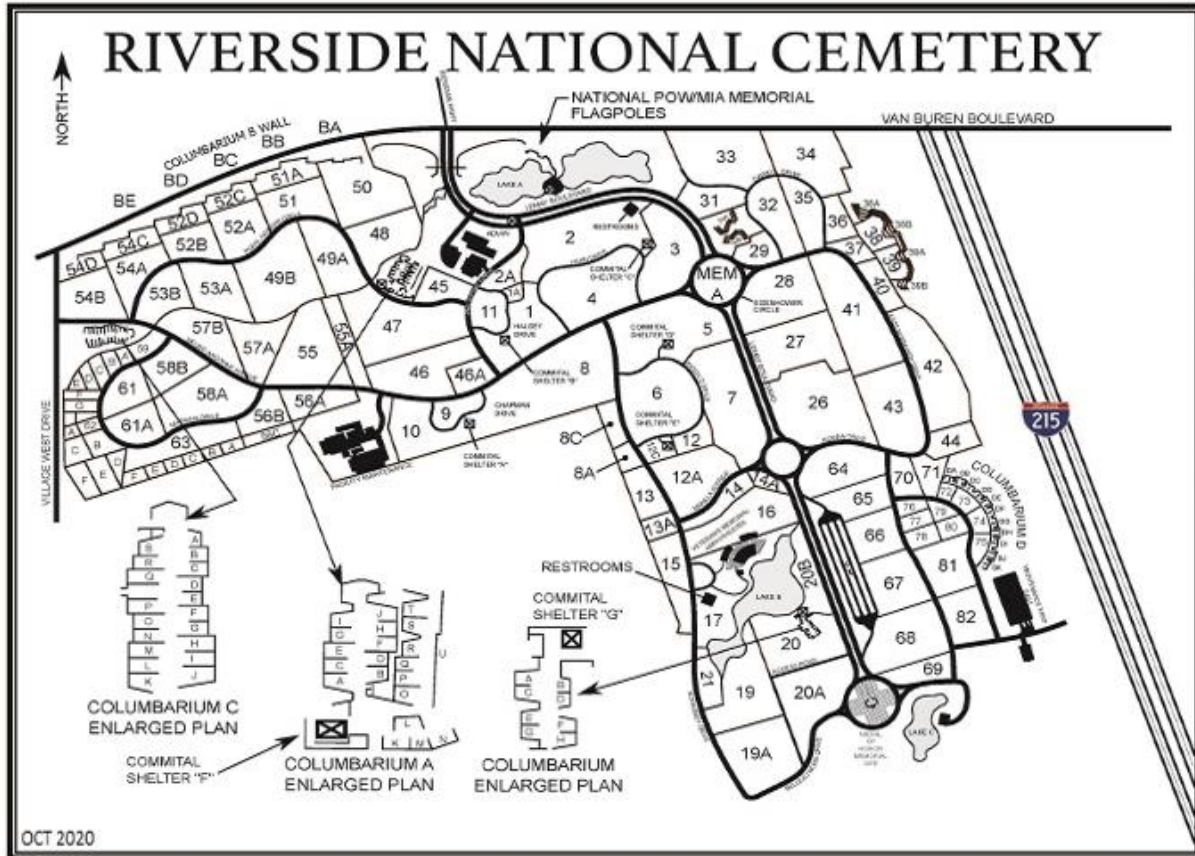
Site Summary:

Classification	Approximate Area/Quantity*
Total Site Area	1236.8 Acres
Total Developed Cemetery	315.8 Acres
Interment Section Area	290
Curbs (Edging)	21 Miles
Walks (Edging)	4 Miles
Headstones (Flats)	196,000
Irrigated Turf	300
Brush Clearing Area	605 Acres
Landscape Buffer Areas	50 Acres

Lakes (Irrigation)	10.5 Acres
Ponds (Landscape)	0.6 Acre
Stormwater Pond	1 Acre
Canals (Gunitite)	10,000 Lineal Feet
Drainage Ditches	1,500 Lineal Feet

A. Attachment A

ATTACHMENT A
RIVERSIDE NATIONAL CEMETERY SITE MAP



B. Attachment B

ATTACHMENT B

CONTRACTOR'S EMPLOYEE STATEMENT OF COMPLIANCE

EMPLOYEE NAME: _____

POSITION/TITLE: _____

DATE: _____

Please check the appropriate blank.

_____ New Employee, New Contractor

_____ Annual Confirmation for current Employees or Contractor(s) (**Due on each Contract year or immediately after NTP.**)**FOR ALL EMPLOYEES**

I have been briefed and understand the following guidance:

INITIALS

_____ The National Cemetery Administration honors veterans with a final resting place and lasting memorial that commemorate their service to our Nation. National Cemeteries are National Shrines. Therefore, the standards for management, maintenance, appearance and operational procedures have been established by the National Cemetery Administration to reflect this Nations' concern and respect for those interred there. For this reason, my strict adherence to the Performance Work Statement, Performance Work Requirements Summary and Guidance Specifications must be required and must be essential.

_____ I will remain aware of the remains buried in the grounds where work is being performed. The utmost care must be given to these remains and the headstones and flat grave markers that mark those gravesites and memorialize the service of individuals.

_____ I will not walk, stand, lean, sit or jump on headstones, markers, or monuments. Nor will I drive over them.

_____ I will not place or lean tools, equipment, or other items on headstones, markers, or monuments at any time.

_____ I have been briefed on the approved methods and tools to remove headstones and markers from their sockets in accordance with the Contract Specifications. I will use the tools and methods approved by the Contracting Officer Representative (COR) to lift headstones and markers out of the ground in order to avoid damage; pick axes are not an acceptable tool.

_____ I will not place headstones or markers on dirt piles or mud once they are removed from their sockets; in order to show appropriate respect towards the families visiting the gravesites and the remains that are buried, I will ensure headstones and markers are carefully stored on each associated gravesite and protected from damage or soiling, in accordance with Contract Specifications.

_____ I understand that the Contractor must be responsible for replacing damaged headstones and markers and for restoring turf damaged during performance of this work.

_____ Should any on-site activity, incident, emergency, or disaster result in exposure and/or damage to any remains, container for remains (i.e., casket or urn), or outer burial container, I will IMMEDIATELY notify the Cemetery Director, the COR and/or the Contracting Officer; I will take immediate steps to protect and render safe any exposed remains; and stop any further work until the Cemetery Director provides the Contractor's Supervisor guidance regarding disposition of the remains and permission to proceed.

SIGNATURE BLOCK

Signature

Printed Name

Date

IF THIS STATEMENT IS THE EMPLOYEE'S ANNUAL COMPLIANCE STATEMENT, THIS COMPLIANCE STATEMENT MUST BE RETURNED TO THE COR BY NOVEMBER 1 OR AFTER NTP.

AS TO STATEMENTS OR COMMITMENTS OF FUTURE ACTIONS, THIS COMPLIANCE STATEMENT COVERS THE PERIOD FROM OCTOBER 1 OF THE CALENDAR YEAR DURING WHICH THIS COMPLIANCE STATEMENT IS DUE THROUGH SEPTEMBER 30 OF THE NEXT CALENDAR YEAR.

C. Attachment C

ATTACHMENT C PESTICIDE APPLICATION DATA SHEET

	Date:	Applicator:	
APPLICATION SITE		Location:	
	Size of Treatment Area:	Plant Age and Condition:	
	Description (Turf, Bed etc.):	Soil Conditions:	
	Surrounding Sensitive Areas:		
	Previous Pesticides Used:		
PEST PROBLEM	Primary Pest:	Damage Observed:	
	Other Pests Present:	Location of Damage:	
	Beneficials Present:		
	Severity of Pest Problem:		
PESTICIDE(S) USED	Pesticide(s): Formulation:	Rate:	Total Amount Used:
	(1)		
	(2)		
	(3)		
	Adjuvants Type:	Amount:	Total Gallons of Diluted Spray Used:
	Surfactant Type:	Amount:	
APPLICATION	Date(s) of Application:	Weather Conditions	
		Temperature:	
	Equipment used:	Cloud Cover:	
		Wind Speed:	
	Equipment Calibrated By:	Wind Direction:	
		Rain:	
		Travel Speed:	
		Total Hours for Application:	
	Persons Notified or Spoken to Regarding Application:		
	(1)		
	(2)		
	(3)		
	FOLLOW UP	Effectiveness of Application:	Beneficials Present:
Injury to Non-Target Plants or Surfaces:			
COMMENTS			
Signature & Date			

[illegible]

E. Attachment E

ATTACHMENT E

RIVERSIDE NATIONAL CEMETERY FLORAL POLICY AND CEMETERY REGULATIONS

RIVERSIDE NATIONAL CEMETERY
DEPARTMENT OF VETERANS AFFAIRS
NATIONAL CEMETERY ADMINISTRATION

POLICY 901-23-04 EMP
June 13, 2023

FLORAL POLICY AND CEMETERY REGULATIONS
--

PURPOSE

The purpose of this Standard Operating Procedure (SOP) is to outline the procedures to be followed by the visiting public as well as Riverside National Cemetery (RNC) personnel.

SCOPE

The standards and procedures as set forth herein are applicable to all visiting guests and employees. Every effort will be made to follow and adhere to the National Cemetery Administration (NCA) Directive 3425.

1. RESPONSIBILITY

All employees are responsible for ensuring that the standards and procedures as set forth herein are followed and reviewed annually.

2. PROCEDURES

- a. RNC's floral regulations will be displayed throughout the cemetery on signage, explained within our kiosk, and reproduced and made available to the public at the public information center and administration building.
- b. A copy of the floral policy and cemetery regulations will also be provided to the next-of-kin or the designated representative along with other cemetery information at the time of interment.

1. Floral Policy:

- a. RNC welcomes fresh-cut flowers throughout the year and provides plastic flower vases for gravesite display. Potted plants and artificial floral arrangements are not

permitted. (**Holiday exceptions exist; see Section 4.b.1.f below**). To preserve the dignity of the cemetery, Flags no more than 24" in height (include but not limited to US and Branch of Service) and fresh-cut flowers and artificial arrangement, when permitted, 24" or less are the only items allowed.

b. Plastic flower vases will be maintained in various locations throughout the cemetery. All plastic flower vases may be reused provided they are clean and are in good repair. All damaged plastic flower vases will be replaced as needed.

c. On the day of interment, fresh cut flowers and sprays may be placed at or on gravesites without the use of cemetery supplied floral containers. Cemetery Directors may exercise direction in the timing of the removal of these items.

d. At Columbaria, visitors may place floral arrangements at the bottom of a niche column. To ensure space for other visitors, floral arrangements will be limited to one per niche.

e. The Foreman and/or their designate will be responsible for overseeing that there are sufficient supplies of plastic flower vases available and that the storage containers and plastic flower vases are properly maintained.

f. **Holiday exceptions-** Seasonal Adornments for strongly held beliefs, such as wreaths, potted poinsettias and other seasonal items may be placed on graves from the **15th of December through the 15th of January**. During the season the cemetery's decorating procedure allows for the following floral arrangements: Wreaths up to 20 inches in diameter, potted plants no more than 24 inches tall from the base, trees no more than 24 inches tall from the base. The potted plants and trees are allowed only if they are not permanent and are decorated with unbreakable ornaments. RNC does not allow Grave blankets due to damage to the turf.

2. Removal, Holding and Disposal of floral items

Floral and other items placed in a Department of Veterans Affairs (VA) national cemetery are under the custodianship of VA and are therefore governed by rules for

disposal of federal property. Cemetery personnel will remove, hold, and dispose of items left at gravesites as outlined in the NCA Directive 3425.

a. **Removal:**

(1) Prohibited items include artificial floral arrangements outside of designated holidays, commemorative items, balloons, pinwheels, wind chimes, glass, breakable items, votives, vigil lights, candles, statues, shepherd's hooks, stuffed animals, garden stakes, permanent in-ground plantings, non-government supplied floral containers, offensive items or those deemed inconsistent with the cemetery setting, weapons of any kind, ammunition, and explosives are not allowed and will be removed.

(2) All items to include flags and withered, faded, or unsightly flowers will be removed on a weekly basis or upon discovery by cemetery personnel or contractors. Floral pick-up will be conducted weekly in accordance with "Weekly Floral Pick-up Schedule" or when arrangements have become unsightly in accordance with NCA Directive 3425.

(3) Cemetery staff or contractors will immediately remove items deemed inappropriate or unsafe.

(4) Cemetery staff have the right to remove any item from a gravesite for cemetery operations.

(5) Excessive grave adornments that cause damage to the underlying turf will be removed.

(6) No item or object may be attached to the headstone or placed on top of the headstone, flat marker, or niche cover. Headstones, markers, and niche covers are federal property. Altering headstone, markers, or niches by marking with paint, marker, lipstick, stickers, or any other means is prohibited.

(7) RNC assumes no responsibility for items left on graves. Due to the open nature of the grounds, we cannot guarantee against theft, vandalism, or the effects of nature, including damage by wildlife.

b. Holding:

(1) As a courtesy, personal items, removed prohibited items and artificial floral arrangements that are in good condition will be tagged and stored in an inconspicuous holding area for a period of not less than 30 days. During that time cemetery personnel will assist families who request to retrieve those personal items in accordance with NCA Directive 3425.

(2) Please inquire with RNC's Grounds Department Supervisor for retrieval of removed items by leaving a voicemail message at (951) 214-4357 or email RNCADMIN@VA.GOV.

c. Disposal:

(1) Items that are not in good condition will not be placed in the holding area but will be disposed of immediately without notice. Personal items removed from gravesites shall be disposed of consistent with the rules governing the disposal of Federal property. Cash found at gravesites will be deposited into the cemetery's general gift fund.

d. Rules of Behavior:

(1) Encroachment of adjacent gravesites by means of fencing, gates, EZ-Ups, umbrellas, or similar items are prohibited.

(2) Preparing food using gas grills and or charcoal grills is prohibited.

(3) Removal of any items from any gravesite besides your own personal items at RNC is prohibited.

(4) RNC management expects all persons to always conduct themselves with respect and dignity at all times in accordance with the VA code of conduct 38 C.F.R. §1.218.

REFERENCES:

a. Federal Property and Administrative Services Act of 1949, as amended (40 U.S.C. Ch. 1 § 101, et seq.).

b. 41 C.F.R. §102-41.85, Voluntarily Abandoned Personal Property.

c. 41 C.F.R. §102-41.125, Disposition of Seized, Forfeited, Voluntarily Abandoned, And Unclaimed Personal Property.

d. NCA Operational Standards and Measures, Version 5.1, July 1, 2014.

e. VA Handbook 7345, Sale, Abandonment, or Destruction of Personal Property, March 8, 1996.

f. 38 C.F.R. §1.218, Security and Law Enforcement at VA Facilities.

g. NCA Directive 3425

DEFINITIONS:

a. **Floral Arrangement:** Floral and plant matter, real or artificial, and the container used to hold those items.

b. **Floral Container:** Containers provided by a VA national cemetery to hold floral arrangements.

c. **Commemorative Items:** Include but not limited too; hazardous materials, signs, metal, toys, and non-US flags.

d. **Grave Blanket:** A blanket of intertwined branches or man-made material in the shape of a blanket used as an alternative to flowers during winter months.

e. **Gravesite:** A burial location in a national cemetery; inclusive of all burial types (casketed, in-ground cremains, and columbaria).

f. **Personal Items:** Refers to any item left on gravesites by visitors, such as pictures, floral arrangements, coins, and other mementos, that may be of personal or sentimental value.

g. **Vigil Light:** A candle or small light kept burning before a shrine or gravesite.

h. **Voluntarily Abandoned Property:** Personal property abandoned to any Federal agency in a way that immediately vests title to the property in the Government. There must be written or circumstantial evidence that the property was intentionally or voluntarily abandoned, such as placement of the property at a gravesite. This evidence should be clear that the property was not simply lost by the owner.

5. **EFFECTIVE AND RECISSION DATE:** This SOP is effective immediately and remains in effect until rescinded.

6. **REVIEW DATE:** Annually.

Executive Director

Keith Allen, Director

Reviewed October 1, 2022

- END -

Section 2 - Contract Clauses

52.252-2 Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov/browse/index/far (FAR)

www.va.gov/oal/library/vaar/index.asp (VAAR)

[Insert one or more Internet addresses]

(End of clause)

Clause	Title	Fill-ins
52.204-13	System for Award Management Maintenance (Oct 2018)	
52.204-18	Commercial and Government Entity Code Maintenance (Aug 2020)	
52.223-5	Pollution Prevention and Right-to-Know Information (May 2024)	
52.223-10	Waste Reduction Program (May 2024)	
52.228-5	Insurance-Work on a Government Installation (Jan 1997)	
52.232-18	Availability of Funds (Apr 1984)	

52.212-4 Contract Terms and Conditions-Commercial Products and Commercial Services (Nov 2023)

(a) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post-acceptance rights--

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (*e.g.*, use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) *Disputes.* This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at Federal Acquisition Regulation (FAR) 52.233-1, Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) *Definitions.* The clause at FAR 52.202-1, Definitions, is incorporated herein by reference.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the

Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) *Invoice.*

(1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include--

(i) Name and address of the Contractor;

(ii) Invoice date and number;

(iii) Contract number, line item number and, if applicable, the order number;

(iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;

(v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;

(vi) Terms of any discount for prompt payment offered;

(vii) Name and address of official to whom payment is to be sent;

(viii) Name, title, and phone number of person to notify in event of defective invoice; and

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (*e.g.*, 52.232-33, Payment by Electronic Funds Transfer--System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer--Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(2) Invoices will be handled in accordance with the Prompt Payment Act (31 U.S.C. 3903) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR Part 1315.

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment.--*

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR Part 1315.

(3) *Electronic Funds Transfer (EFT).* If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(4) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(5) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall--

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the--

(A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109 , which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by 33.211 if--

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on--

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR 32.608-2 in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

- (1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or
- (2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty.* The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Other compliances.* The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

(r) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.

(s) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services.
- (2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
- (3) The clause at 52.212-5.
- (4) Addenda to this solicitation or contract, including any license agreements for computer software.
- (5) Solicitation provisions if this is a solicitation.
- (6) Other paragraphs of this clause.
- (7) The Standard Form 1449.

(8) Other documents, exhibits, and attachments.

(9) The specification.

(t) [Reserved]

(u) *Unauthorized Obligations*

(1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (*e.g.*, "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) *Incorporation by reference.* The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

52.216-18 Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 09/01/2025 through 08/31/2026 [*insert dates*].

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations (Oct 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$8,000.00 [*insert dollar figure or quantity*], the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor--

(1) Any order for a single item in excess of \$750,000.00 *[insert dollar figure or quantity]*;

(2) Any order for a combination of items in excess of \$3,000,000.00 *[insert dollar figure or quantity]*; or

(3) A series of orders from the same ordering office within 10 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 5 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity (Oct 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after 08/30/2027 *[insert date]*.

(End of clause)

52.217-8 Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 10 *[insert the period of time within which the Contracting Officer may exercise the option]*.

(End of clause)

52.217-9 Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 *[insert the period of time within which the Contracting Officer may exercise the option]*; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days *[60 days unless a different number of days is inserted]* before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five years and six months (months)(years).

(End of clause)

52.232-19 Availability of Funds for the Next Fiscal Year (Apr 1984)

Funds are not presently available for performance under this contract beyond 09/30/2025. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond 09/30/2025, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

852.201-70 CONTRACTING OFFICER'S REPRESENTATIVE (DEC 2022)

The Contracting Officer reserves the right to designate representatives to act for him/her in furnishing technical guidance and advice or generally monitor the work to be performed under this contract. Such designation will be in writing and will define the scope and limitation of the designee's authority. A copy of the designation letter shall be furnished to the Contractor.

(End of clause)

852.203-70 COMMERCIAL ADVERTISING (MAY 2018)

The Contractor shall not make reference in its commercial advertising to Department of Veterans Affairs contracts in a manner that states or implies the Department of Veterans Affairs approves or endorses the Contractor's products or services or considers the Contractor's products or services superior to other products or services.

(End of clause)

852.219-73 VA NOTICE OF TOTAL SET-ASIDE FOR VERIFIED SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESSES (NOV 2022)

(a) *Definition.* For the Department of Veterans Affairs, "*Service-disabled Veteran-owned small business concern or SDVOSB*":

(1) Means a small business concern-

(i) Not less than 51 percent of which is owned by one or more service-disabled Veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled Veterans or eligible surviving spouses (see VAAR 802.101, Surviving Spouse definition);

(ii) The management and daily business operations of which are controlled by one or more service-disabled Veterans (or eligible surviving spouses) or, in the case of a service-disabled Veteran with permanent and severe disability, the spouse or permanent caregiver of such Veteran;

(iii) The business meets Federal small business size standards for the applicable North American Industry Classification System (NAICS) code identified in the solicitation document;

(iv) The business has been verified for ownership and control pursuant to 38 CFR part 74 and is listed in VA's Vendor Information Pages (VIP) database at <https://www.vetbiz.va.gov/vip/>; and

(v) The business will comply with VAAR subpart 819.70 and Small Business Administration (SBA) regulations regarding small business size and government contracting programs at 13 CFR parts 121 and 125, provided that any reference therein to a service-disabled veteran-owned small business concern or SDVO SBC, is to be construed to apply to a VA verified and VIP-listed SDVOSB, unless otherwise stated in this clause.

(2) The term “Service-disabled Veteran” means a Veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

(3) The term “small business concern” has the meaning given that term under section 3 of the Small Business Act (15 U.S.C. 632).

(4) The term “small business concern owned and controlled by Veterans with service-connected disabilities” has the meaning given the term “small business concern owned and controlled by service-disabled veterans” under section 3(q)(2) of the Small Business Act (15 U.S.C. 632(q)(2)), except that for a VA contract the firm must be listed in the VIP database (see paragraph (a)(1)(iv) of this clause).

(b) *General.* (1) Offers are solicited only from VIP-listed SDVOSBs. Offers received from entities that are not VIP-listed SDVOSBs at the time of offer shall not be considered.

(2) Any award resulting from this solicitation shall be made to a VIP-listed SDVOSB who is eligible at the time of submission of offer(s) and at the time of award.

(3) The requirements in this clause apply to any contract, order or subcontract where the firm receives a benefit or preference from its designation as an SDVOSB, including set-asides, sole source awards, and evaluation preferences.

(c) *Representation.* Pursuant to 38 U.S.C. 8127(e), only VIP-listed SDVOSBs are considered eligible to receive award of a resulting contract. By submitting an offer, the prospective contractor represents that it is an eligible SDVOSB as defined in this clause, 38 CFR part 74, and VAAR subpart 819.70.

(d) *Agreement.* When awarded a contract action, including orders under multiple-award contracts, an SDVOSB agrees that in the performance of the contract, the SDVOSB shall comply with requirements in VAAR subpart 819.70 and SBA regulations on small business size and government contracting programs at 13 CFR part 121 and part 125, including the non-manufacturer rule and limitations on subcontracting requirements in 13 CFR 121.406(b) and 13 CFR 125.6. Unless otherwise stated in this clause, a requirement in 13 CFR parts 121 and 125 that applies to an SDVO SBC, is to be construed to also apply to a VIP-listed SDVOSB. For the purpose of limitations on subcontracting, only VIP-listed SDVOSBs (including independent contractors) shall be considered eligible and/or “similarly situated” (i.e., a firm that has the same small business program status as the prime contractor). An otherwise eligible firm further agrees to comply with the required certification requirements in this solicitation (see 852.219-75 or 852.219-76 as applicable). These requirements are summarized as follows:

(1) *Services.* In the case of a contract for services (except construction), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance to firms that are not VIP-listed SDVOSBs (excluding direct costs to the extent they are not the principal purpose of the acquisition and the SDVOSB/VOSB does not provide the service, such as airline travel, cloud computing services, or mass media purchases). When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract.

(2) *Supplies/products.* (i) In the case of a contract for supplies or products (other than from a non-manufacturer of such supplies), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not VIP-listed SDVOSBs. When a contract includes both supply and services, the 50 percent limitation shall apply only to the supply portion of the contract.

(ii) In the case of a contract for supplies from a non-manufacturer, the SDVOSB prime contractor will supply the product of a domestic small business manufacturer or processor, unless a waiver as described in 13 CFR 121.406(b)(5) has been granted. Refer to 13 CFR 125.6(a)(2)(ii) for guidance pertaining to multiple item procurements.

(3) *General construction.* In the case of a contract for general construction, the SDVOSB prime contractor will not pay more than 85% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not VIP-listed SDVOSBs.

(4) *Special trade construction contractors.* In the case of a contract for special trade contractors, no more than 75% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, may be paid to firms that are not VIP-listed SDVOSBs.

(5) *Subcontracting.* An SDVOSB must meet the NAICS size standard assigned by the prime contractor and be listed in VIP to count as similarly situated. Any work that a first tier VIP-listed SDVOSB subcontractor further subcontracts will count towards the percent of subcontract amount that cannot be exceeded. For supply or construction contracts, the cost of materials is excluded and not considered to be subcontracted. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the

portion of the contract with the preponderance of the expenditure upon which the assigned NAICS is based. For information and more specific requirements, refer to 13 CFR 125.6.

(e) *Required limitations on subcontracting compliance measurement period.* An SDVOSB shall comply with the limitations on subcontracting as follows:

[Contracting Officer check as appropriate.]

☒ By the end of the base term of the contract or order, and then by the end of each subsequent option period; or

☐ By the end of the performance period for each order issued under the contract.

(f) *Joint ventures.* A joint venture may be considered eligible as an SDVOSB if the joint venture is listed in VIP and complies with the requirements in 13 CFR 125.18(b), provided that any requirement therein that applies to an SDVO SBC is to be construed to apply to a VIP-listed SDVOSB. A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (d) of this clause will be performed by the aggregate of the joint venture participants.

(g) *Precedence.* The VA Veterans First Contracting Program, as defined in VAAR 802.101, subpart 819.70, and this clause, takes precedence over any inconsistencies between the requirements of the SBA Program for SDVO SBCs, and the VA Veterans First Contracting Program.

(h) *Misrepresentation.* Pursuant to 38 USC 8127(g), any business concern, including all its principals, that is determined by VA to have willfully and intentionally misrepresented a company's SDVOSB status is subject to debarment from contracting with the Department for a period of not less than five years (see VAAR 809.406-2 Causes for Debarment).

(End of clause)

852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING-CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (NOV 2022)

(a) Pursuant to 38 U.S.C. 8127(k)(2), the offeror certifies that-

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows: *[Contracting Officer check the appropriate box below based on the predominant NAICS code assigned to the instant acquisition as set forth in FAR 19.102.]*

(i) ☒ *Services.* In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not VIP-listed SDVOSBs as set forth in 852.219-73 or VOSBs as set forth in 852.219-74. Any work that a similarly situated VIP-listed subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) ☐ *General construction.* In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not VIP-listed SDVOSBs as set forth in 852.219-73 or VOSBs as set forth in 852.219-74. Any work that a similarly situated VIP-listed subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) ☐ *Special trade construction contractors.* In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not VIP-listed SDVOSBs as set forth in 852.219-73 or VOSBs as set forth in 852.219-74. Any work that a similarly situated subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

- (i) Referral to the VA Suspension and Debarment Committee;
- (ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and
- (iii) Prosecution for violating section 1001 of title 18.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification:

I hereby certify that if awarded the contract, _____ will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of

_____.

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____

(End of clause)

852.222-71 (DEV) COMPLIANCE WITH EXECUTIVE ORDER 13899 (APR 2025) (DEVIATION APR 2025)

(a) The contractor shall comply with Executive Order 13899, Combating Anti-Semitism, pursuant to Title VI of the Civil Rights Act of 1964 (Title VI), 42 U.S.C. 2000d et seq.

(b) The contractor shall timely disclose, in writing, to the Contracting Officer, whenever, in connection with the award, performance, or closeout of this contract or any subcontract thereunder, the Contractor has credible evidence that a principle, employee, agent, or subcontractor of the Contractor has committed a violation under Executive Order 13899, Combating Anti-Semitism pursuant to the Civil Rights Act of 1964 (Title VI), 42 U.S.C. 2000d et seq.

(c) The contractor shall include the terms and conditions of this clause in every subcontract or purchase order so that these terms will be binding on every subcontractor or vendor.

End of clause.

852.232-72 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018)

(a) Definitions. As used in this clause-

(1) Contract financing payment has the meaning given in FAR 32.001.

(2) Designated agency office means the office designated by the purchase order, agreement, or contract to first receive and review invoices. This office can be contractually designated as the receiving entity. This office may be different from the office issuing the payment;

(3) Electronic form means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, e-mail, and scanned documents are not acceptable electronic forms for submission of payment requests;

(4) Invoice payment has the meaning given in FAR 32.001; and

(5) Payment request means any request for contract financing payment or invoice payment submitted by the Contractor under this contract.

(b) Electronic payment requests. Except as provided in paragraph (e) of this clause, the Contractor shall submit payment requests in electronic form. Purchases paid with a Government-wide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) Data transmission. A Contractor must ensure that the data transmission method and format are through one of the following:

(1) VA's Electronic Invoice Presentment and Payment System at the current website address provided in the contract.

(2) Any system that conforms to the X12 electronic data interchange (EDI) formats established by the Accredited Standards Center (ASC) and chartered by the American National Standards Institute (ANSI).

(d) Invoice requirements. Invoices shall comply with FAR 32.905.

(e) Exceptions. If, based on one of the circumstances below, the Contracting Officer directs that payment requests be made by mail, the Contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. Submission of payment requests by mail may be required for—

(1) Awards made to foreign vendors for work performed outside the United States;

(2) Classified contracts or purchases when electronic submission and processing of payment requests could compromise the safeguarding of classified or privacy information;

(3) Contracts awarded by contracting officers in the conduct of emergency operations, such as responses to national emergencies;

(4) Solicitations or contracts in which the designated agency office is a VA entity other than the VA Financial Services Center in Austin, Texas; or

(5) Solicitations or contracts in which the VA designated agency office does not have electronic invoicing capability as described above.

(End of clause)

852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)

The Contracting Officer reserves the right to designate an Administrative Contracting Officer (ACO) for the purpose of performing certain tasks/duties in the administration of the contract. Such designation will be in writing through an ACO Letter of Delegation and will identify the responsibilities and limitations of the ACO. A copy of the ACO Letter of Delegation shall be furnished to the Contractor.

(End of clause)

52.245-1 Government Property (Sep 2021)

(a) *Definitions.* As used in this clause--

"Cannibalize" means to remove parts from Government property for use or for installation on other Government property.

"Contractor-acquired property" means property acquired, fabricated, or otherwise provided by the Contractor for performing a contract, and to which the Government has title.

"Contractor inventory" means--

(1) Any property acquired by and in the possession of a Contractor or subcontractor under a contract for which title is vested in the Government and which exceeds the amounts needed to complete full performance under the entire contract;

(2) Any property that the Government is obligated or has the option to take over under any type of contract, *e.g.*, as a result either of any changes in the specifications or plans thereunder or of the termination of the contract (or subcontract thereunder), before completion of the work, for the convenience or at the option of the Government; and

(3) Government-furnished property that exceeds the amounts needed to complete full performance under the entire contract.

"Contractor's managerial personnel" means the Contractor's directors, officers, managers, superintendents, or equivalent representatives who have supervision or direction of--

(1) All or substantially all of the Contractor's business;

(2) All or substantially all of the Contractor's operation at any one plant or separate location; or

(3) A separate and complete major industrial operation.

(a) "Demilitarization" means rendering a product unusable for, and not restorable to, the purpose for which it was designed or is customarily used.

"Discrepancies incident to shipment" means any differences (*e.g.*, count or condition) between the items documented to have been shipped and items actually received.

"Equipment" means a tangible item that is functionally complete for its intended purpose, durable, nonexpendable, and needed for the performance of a contract. Equipment is not intended for sale, and does not ordinarily lose its identity or become a component part of another article when put into use. Equipment does not include material, real property, special test equipment or special tooling.

"Government-furnished property" means property in the possession of, or directly acquired by, the Government and subsequently furnished to the Contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair, maintenance, overhaul, or modification. Government-furnished property also includes contractor-acquired property if the contractor-acquired property is a deliverable under a cost contract when accepted by the Government for continued use under the contract.

"Government property" means all property owned or leased by the Government. Government property includes both Government-furnished and Contractor-acquired property. Government property includes material, equipment, special tooling, special test equipment, and real property. Government property does not include intellectual property and software.

"Loss of Government property" means unintended, unforeseen or accidental loss, damage or destruction to Government property that reduces the Government's expected economic benefits of the property. Loss of Government property does not include purposeful destructive testing, obsolescence, normal wear and tear or manufacturing defects. Loss of Government property includes, but is not limited to--

(1) Items that cannot be found after a reasonable search;

(2) Theft;

(3) Damage resulting in unexpected harm to property requiring repair to restore the item to usable condition; or

(4) Destruction resulting from incidents that render the item useless for its intended purpose or beyond economical repair.

"Material" means property that may be consumed or expended during the performance of a contract, component parts of a higher assembly, or items that lose their individual identity through incorporation into an end item. Material does not include equipment, special tooling, special test equipment or real property.

"Nonseverable" means property that cannot be removed after construction or installation without substantial loss of value or damage to the installed property or to the premises where installed.

"Precious metals" means silver, gold, platinum, palladium, iridium, osmium, rhodium, and ruthenium.

"Production scrap" means unusable material resulting from production, engineering, operations and maintenance, repair, and research and development contract activities. Production scrap may have value when re-melted or reprocessed, *e.g.*, textile and metal clippings, borings, and faulty castings and forgings.

"Property" means all tangible property, both real and personal.

"Property Administrator" means an authorized representative of the Contracting Officer appointed in accordance with agency procedures, responsible for administering the contract requirements and obligations relating to Government property in the possession of a Contractor.

"Property records" means the records created and maintained by the contractor in support of its stewardship responsibilities for the management of Government property.

"Provide" means to furnish, as in Government-furnished property, or to acquire, as in contractor-acquired property.

"Real property" See Federal Management Regulation 102-71.20 (41 CFR 102-71.20).

"Sensitive property" means property potentially dangerous to the public safety or security if stolen, lost, or misplaced, or that shall be subject to exceptional physical security, protection, control, and accountability. Examples include weapons, ammunition, explosives, controlled substances, radioactive materials, hazardous materials or wastes, or precious metals.

"Unit acquisition cost" means--

(1) For Government-furnished property, the dollar value assigned by the Government and identified in the contract; and

(2) For contractor-acquired property, the cost derived from the Contractor's records that reflect consistently applied generally accepted accounting principles.

(b) Property management.

(1) The Contractor shall have a system of internal controls to manage (control, use, preserve, protect, repair, and maintain) Government property in its possession. The system shall be adequate to satisfy the requirements of this clause. In doing so, the Contractor shall initiate and maintain the processes, systems, procedures, records, and methodologies necessary for effective and efficient control of Government property. The Contractor shall disclose any significant changes to its property management system to the Property Administrator prior to implementation of the changes. The Contractor may employ customary commercial practices, voluntary consensus standards, or industry-leading practices and standards that provide effective and efficient Government property management that are necessary and appropriate for the performance of this contract (except where inconsistent with law or regulation).

(2) The Contractor's responsibility extends from the initial acquisition and receipt of property, through stewardship, custody, and use until formally relieved of responsibility by authorized means, including delivery, consumption, expending, sale (as surplus property), or other disposition, or via a completed investigation, evaluation, and final determination for lost property. This requirement applies to all Government property under the Contractor's accountability, stewardship, possession or control, including its vendors or subcontractors (see paragraph (f)(1)(v) of this clause).

(3) The Contractor shall include the requirements of this clause in all subcontracts under which Government property is acquired or furnished for subcontract performance.

(4) The Contractor shall establish and maintain procedures necessary to assess its property management system effectiveness and shall perform periodic internal reviews, surveillances, self assessments, or audits. Significant findings or results of such reviews and audits pertaining to Government property shall be made available to the Property Administrator.

(c) Use of Government property.

(1) The Contractor shall use Government property, either furnished or acquired under this contract, only for performing this contract, unless otherwise provided for in this contract or approved by the Contracting Officer.

(2) Modifications or alterations of Government property are prohibited, unless they are--

(i) Reasonable and necessary due to the scope of work under this contract or its terms and conditions;

(ii) Required for normal maintenance; or

(iii) Otherwise authorized by the Contracting Officer.

(3) The Contractor shall not cannibalize Government property unless otherwise provided for in this contract or approved by the Contracting Officer.

(d) Government-furnished property.

(1) The Government shall deliver to the Contractor the Government-furnished property described in this contract. The Government shall furnish related data and information needed for the intended use of the property. The warranties of suitability of use and timely delivery of Government-furnished property do not apply to property acquired or fabricated by the Contractor as contractor-acquired property and subsequently transferred to another contract with this Contractor.

(2) The delivery and/or performance dates specified in this contract are based upon the expectation that the Government-furnished property will be suitable for contract performance and will be delivered to the Contractor by the dates stated in the contract.

(i) If the property is not delivered to the Contractor by the dates stated in the contract, the Contracting Officer shall, upon the Contractor's timely written request, consider an equitable adjustment to the contract.

(ii) In the event property is received by the Contractor, or for Government-furnished property after receipt and installation, in a condition not suitable for its intended use, the Contracting Officer shall, upon the Contractor's timely written request, advise the Contractor on a course of action to remedy the problem. Such action may include repairing, replacing, modifying, returning, or otherwise disposing of the property at the Government's expense. Upon completion of the required action(s), the Contracting Officer shall consider an equitable adjustment to the contract (see also paragraph (f)(1)(ii)(A) of this clause).

(iii) The Government may, at its option, furnish property in an "as-is" condition. The Contractor will be given the opportunity to inspect such property prior to the property being provided. In such cases, the Government makes no warranty with respect to the serviceability and/or suitability of the property for contract performance. Any repairs, replacement, and/or refurbishment shall be at the Contractor's expense.

(3)(i) The Contracting Officer may by written notice, at any time--

(A) Increase or decrease the amount of Government-furnished property under this contract;

(B) Substitute other Government-furnished property for the property previously furnished, to be furnished, or to be acquired by the Contractor for the Government under this contract; or

(C) Withdraw authority to use property.

(ii) Upon completion of any action(s) under paragraph (d)(3)(i) of this clause, and the Contractor's timely written request, the Contracting Officer shall consider an equitable adjustment to the contract.

(e) Title to Government property.

(1) All Government-furnished property and all property acquired by the Contractor, title to which vests in the Government under this paragraph (collectively referred to as "Government property"), is subject to the provisions of this clause. The Government shall retain title to all Government-furnished property. Title to Government property shall not be affected by its incorporation into or attachment to any property not owned by the Government, nor shall Government property become a fixture or lose its identity as personal property by being attached to any real property.

(2) Title vests in the Government for all property acquired or fabricated by the Contractor in accordance with the financing provisions or other specific requirements for passage of title in the contract. Under fixed price type contracts, in the absence of financing provisions or other specific requirements for passage of title in the contract, the Contractor retains title to all property acquired by the Contractor for use on the contract, except for property identified as a deliverable end item. If a deliverable item is to be retained by the Contractor for use after inspection and acceptance by the Government, it shall be made accountable to the contract through a contract modification listing the item as Government-furnished property.

(3) *Title under Cost-Reimbursement or Time-and-Material Contracts or Cost-Reimbursable line items under Fixed-Price contracts.*

(i) Title to all property purchased by the Contractor for which the Contractor is entitled to be reimbursed as a direct item of cost under this contract shall pass to and vest in the Government upon the vendor's delivery of such property.

(ii) Title to all other property, the cost of which is reimbursable to the Contractor, shall pass to and vest in the Government upon--

(A) Issuance of the property for use in contract performance;

(B) Commencement of processing of the property for use in contract performance; or

(C) Reimbursement of the cost of the property by the Government, whichever occurs first.

(f) *Contractor plans and systems.*

(1) Contractors shall establish and implement property management plans, systems, and procedures at the contract, program, site or entity level to enable the following outcomes:

(i) *Acquisition of Property.* The Contractor shall document that all property was acquired consistent with its engineering, production planning, and property control operations.

(ii) *Receipt of Government Property.* The Contractor shall receive Government property and document the receipt, record the information necessary to meet the record requirements of paragraph (f)(1)(iii)(A)(1) through (5) of this clause, identify as Government owned in a manner appropriate to the type of property (*e.g.*, stamp, tag, mark, or other identification), and manage any discrepancies incident to shipment.

(A) *Government-furnished property.* The Contractor shall furnish a written statement to the Property Administrator containing all relevant facts, such as cause or condition and a recommended course(s) of action, if overages, shortages, or damages and/or other discrepancies are discovered upon receipt of Government-furnished property.

(B) *Contractor-acquired property.* The Contractor shall take all actions necessary to adjust for overages, shortages, damage and/or other discrepancies discovered upon receipt, in shipment of Contractor-acquired property from a vendor or supplier, so as to ensure the proper allocability and allowability of associated costs.

(iii) *Records of Government property.* The Contractor shall create and maintain records of all Government property accountable to the contract, including Government-furnished and Contractor-acquired property.

(A) Property records shall enable a complete, current, auditable record of all transactions and shall, unless otherwise approved by the Property Administrator, contain the following:

(1) The name, part number and description, National Stock Number (if needed for additional item identification tracking and/or disposition), and other data elements as necessary and required in accordance with the terms and conditions of the contract.

(2) Quantity received (or fabricated), issued, and balance-on-hand.

(3) Unit acquisition cost.

(4) Unique-item identifier or equivalent (if available and necessary for individual item tracking).

(5) Unit of measure.

(6) Accountable contract number or equivalent code designation.

(7) Location.

(8) Disposition.

(9) Posting reference and date of transaction.

(10) Date placed in service (if required in accordance with the terms and conditions of the contract).

(B) *Use of a Receipt and Issue System for Government Material.* When approved by the Property Administrator, the Contractor may maintain, in lieu of formal property records, a file of appropriately cross-referenced documents evidencing receipt, issue, and use of material that is issued for immediate consumption.

(iv) *Physical inventory.* The Contractor shall periodically perform, record, and disclose physical inventory results. A final physical inventory shall be performed upon contract completion or termination. The Property Administrator may waive this final inventory requirement, depending on the circumstances (e.g., overall reliability of the Contractor's system or the property is to be transferred to a follow-on contract).

(v) *Subcontractor control.*

(A) The Contractor shall award subcontracts that clearly identify items to be provided and the extent of any restrictions or limitations on their use. The Contractor shall ensure appropriate flow down of contract terms and conditions (e.g., extent of liability for loss of Government property).

(B) The Contractor shall assure its subcontracts are properly administered and reviews are periodically performed to determine the adequacy of the subcontractor's property management system.

(vi) *Reports.* The Contractor shall have a process to create and provide reports of discrepancies, loss of Government property, physical inventory results, audits and self-assessments, corrective actions, and other property-related reports as directed by the Contracting Officer.

(vii) *Relief of stewardship responsibility and liability.* The Contractor shall have a process to enable the prompt recognition, investigation, disclosure and reporting of loss of Government property, including losses that occur at subcontractor or alternate site locations.

(A) This process shall include the corrective actions necessary to prevent recurrence.

(B) Unless otherwise directed by the Property Administrator, the Contractor shall investigate and report to the Government all incidents of property loss as soon as the facts become known. Such reports shall, at a minimum, contain the following information:

(1) Date of incident (if known).

(2) The data elements required under (f)(1)(iii)(A).

(3) Quantity.

(4) Accountable contract number.

(5) A statement indicating current or future need.

(6) Unit acquisition cost, or if applicable, estimated sales proceeds, estimated repair or replacement costs.

(7) All known interests in commingled material of which includes Government material.

(8) Cause and corrective action taken or to be taken to prevent recurrence.

(9) A statement that the Government will receive compensation covering the loss of Government property, in the event the Contractor was or will be reimbursed or compensated.

(10) Copies of all supporting documentation.

(11) Last known location.

(12) A statement that the property did or did not contain sensitive, export controlled, hazardous, or toxic material, and that the appropriate agencies and authorities were notified.

(C) Unless the contract provides otherwise, the Contractor shall be relieved of stewardship responsibility and liability for property when--

(1) Such property is consumed or expended, reasonably and properly, or otherwise accounted for, in the performance of the contract, including reasonable inventory adjustments of material as determined by the Property Administrator;

(2) Property Administrator grants relief of responsibility and liability for loss of Government property;

(3) Property is delivered or shipped from the Contractor's plant, under Government instructions, except when shipment is to a subcontractor or other location of the Contractor; or

(4) Property is disposed of in accordance with paragraphs (j) and (k) of this clause.

(viii) *Utilizing Government property.*

(A) The Contractor shall utilize, consume, move, and store Government Property only as authorized under this contract. The Contractor shall promptly disclose and report Government property in its possession that is excess to contract performance.

(B) Unless otherwise authorized in this contract or by the Property Administrator the Contractor shall not commingle Government material with material not owned by the Government.

(ix) *Maintenance.* The Contractor shall properly maintain Government property. The Contractor's maintenance program shall enable the identification, disclosure, and performance of normal and routine preventative maintenance and repair. The Contractor shall disclose and report to the Property Administrator the need for replacement and/or capital rehabilitation.

(x) *Property closeout.* The Contractor shall promptly perform and report to the Property Administrator contract property closeout, to include reporting, investigating and securing closure of all loss of Government property cases; physically inventorying all property upon termination or completion of this contract; and disposing of items at the time they are determined to be excess to contractual needs.

(2) The Contractor shall establish and maintain Government accounting source data, as may be required by this contract, particularly in the areas of recognition of acquisitions, loss of Government property, and disposition of material and equipment.

(g) *Systems analysis.*

(1) The Government shall have access to the Contractor's premises and all Government property, at reasonable times, for the purposes of reviewing, inspecting and evaluating the Contractor's property management plan(s), systems, procedures, records, and supporting documentation that pertains to Government property. This access includes all site locations and, with the Contractor's consent, all subcontractor premises.

(2) Records of Government property shall be readily available to authorized Government personnel and shall be appropriately safeguarded.

(3) Should it be determined by the Government that the Contractor's (or subcontractor's) property management practices are inadequate or not acceptable for the effective management and control of Government property under this contract, or present an undue risk to the Government, the Contractor shall prepare a corrective action plan when requested by the Property Administer and take all necessary corrective actions as specified by the schedule within the corrective action plan.

(h) *Contractor Liability for Government Property.*

(1) Unless otherwise provided for in the contract, the Contractor shall not be liable for loss of Government property furnished or acquired under this contract, except when any one of the following applies--

(i) The risk is covered by insurance or the Contractor is otherwise reimbursed (to the extent of such insurance or reimbursement). The allowability of insurance costs shall be determined in accordance with 31.205-19.

(ii) Loss of Government property that is the result of willful misconduct or lack of good faith on the part of the Contractor's managerial personnel.

(iii) The Contracting Officer has, in writing, revoked the Government's assumption of risk for loss of Government property due to a determination under paragraph (g) of this clause that the Contractor's property management practices are inadequate, and/or present an undue risk to the Government, and the Contractor failed to take timely corrective action. If the Contractor can establish by clear and convincing evidence that the loss of Government property occurred while the Contractor had adequate property management practices or the loss did not result from the Contractor's failure to maintain adequate property management practices, the Contractor shall not be held liable.

(2) The Contractor shall take all reasonable actions necessary to protect the property from further loss. The Contractor shall separate the damaged and undamaged property, place all the affected property in the best possible order, and take such other action as the Property Administrator directs.

(3) The Contractor shall do nothing to prejudice the Government's rights to recover against third parties for any loss of Government property.

(4) The Contractor shall reimburse the Government for loss of Government property, to the extent that the Contractor is financially liable for such loss, as directed by the Contracting Officer.

(5) Upon the request of the Contracting Officer, the Contractor shall, at the Government's expense, furnish to the Government all reasonable assistance and cooperation, including the prosecution of suit and the execution of instruments of assignment in favor of the Government in obtaining recovery.

(i) *Equitable adjustment.* Equitable adjustments under this clause shall be made in accordance with the procedures of the Changes clause. However, the Government shall not be liable for breach of contract for the following:

(1) Any delay in delivery of Government-furnished property.

(2) Delivery of Government-furnished property in a condition not suitable for its intended use.

(3) An increase, decrease, or substitution of Government-furnished property.

(4) Failure to repair or replace Government property for which the Government is responsible.

(j) *Contractor inventory disposal.* Except as otherwise provided for in this contract, the Contractor shall not dispose of Contractor inventory until authorized to do so by the Plant Clearance Officer or authorizing official.

(1) *Predisposal requirements.*

(i) If the Contractor determines that the property has the potential to fulfill requirements under other contracts, the Contractor, in consultation with the Property Administrator, shall request that the Contracting Officer transfer the property to the contract in question, or provide authorization for use, as appropriate. In lieu of transferring the property, the Contracting Officer may authorize the Contractor to credit the costs of Contractor-acquired property (material only) to the losing contract, and debit the gaining contract with the corresponding cost, when such material is needed for use on another contract. Property no longer needed shall be considered contractor inventory.

(ii) For any remaining Contractor-acquired property, the Contractor may purchase the property at the unit acquisition cost if desired or make reasonable efforts to return unused property to the appropriate supplier at fair market value (less, if applicable, a reasonable restocking fee that is consistent with the supplier's customary practices.)

(2) *Inventory disposal schedules.*

(i) Absent separate contract terms and conditions for property disposition, and provided the property was not reutilized, transferred, or otherwise disposed of, the Contractor, as directed by the Plant Clearance Officer or authorizing official, shall use Standard Form 1428, Inventory Disposal Schedule or electronic equivalent, to identify and report--

(A) Government-furnished property that is no longer required for performance of this contract;

(B) Contractor-acquired property, to which the Government has obtained title under paragraph (e) of this clause, which is no longer required for performance of that contract; and

(C) Termination inventory.

(ii) The Contractor may annotate inventory disposal schedules to identify property the Contractor wishes to purchase from the Government, in the event that the property is offered for sale.

(iii) Separate inventory disposal schedules are required for aircraft in any condition, flight safety critical aircraft parts, and other items as directed by the Plant Clearance Officer.

(iv) The Contractor shall provide the information required by FAR 52.245-1(f)(1)(iii) along with the following:

(A) Any additional information that may facilitate understanding of the property's intended use.

(B) For work-in-progress, the estimated percentage of completion.

(C) For precious metals in raw or bulk form, the type of metal and estimated weight.

(D) For hazardous material or property contaminated with hazardous material, the type of hazardous material.

(E) For metals in mill product form, the form, shape, treatment, hardness, temper, specification (commercial or Government) and dimensions (thickness, width and length).

(v) Property with the same description, condition code, and reporting location may be grouped in a single line item.

(vi) Scrap should be reported by "lot" along with metal content, estimated weight and estimated value.

(3) *Submission requirements.*

(i) The Contractor shall submit inventory disposal schedules to the Plant Clearance Officer no later than--

(A) 30 days following the Contractor's determination that a property item is no longer required for performance of this contract;

(B) 60 days, or such longer period as may be approved by the Plant Clearance Officer, following completion of contract deliveries or performance; or

(C) 120 days, or such longer period as may be approved by the Termination Contracting Officer, following contract termination in whole or in part.

(ii) Unless the Plant Clearance Officer determines otherwise, the Contractor need not identify or report production scrap on inventory disposal schedules, and may process and dispose of production scrap in accordance with its own internal scrap procedures. The processing and disposal of other types of Government-owned scrap will be conducted in accordance with the terms and conditions of the contract or Plant Clearance Officer direction, as appropriate.

(4) *Corrections.* The Plant Clearance Officer may--

(i) Reject a schedule for cause (*e.g.*, contains errors, determined to be inaccurate); and

(ii) Require the Contractor to correct an inventory disposal schedule.

(5) *Postsubmission adjustments.* The Contractor shall notify the Plant Clearance Officer at least 10 working days in advance of its intent to remove an item from an approved inventory disposal schedule. Upon approval of the Plant Clearance Officer, or upon expiration of the notice period, the Contractor may make the necessary adjustments to the inventory schedule.

(6) *Storage.*

(i) The Contractor shall store the property identified on an inventory disposal schedule pending receipt of disposal instructions. The Government's failure to furnish disposal instructions within 120 days following acceptance of an inventory disposal schedule may entitle the Contractor to an equitable adjustment for costs incurred to store such property on or after the 121st day.

(ii) The Contractor shall obtain the Plant Clearance Officer's approval to remove property from the premises where the property is currently located prior to receipt of final disposition instructions. If approval is granted, any costs incurred by the Contractor to transport or store the property shall not increase the price or fee of any Government contract. The storage area shall be appropriate for assuring the property's physical safety and suitability for use. Approval does not relieve the Contractor of any liability for such property under this contract.

(7) Disposition instructions.

(i) The Contractor shall prepare for shipment, deliver f.o.b. origin, or dispose of Contractor inventory as directed by the Plant Clearance Officer. Unless otherwise directed by the Contracting Officer or by the Plant Clearance Officer, the Contractor shall remove and destroy any markings identifying the property as U.S. Government-owned property prior to its disposal.

(ii) The Contracting Officer may require the Contractor to demilitarize the property prior to shipment or disposal. In such cases, the Contractor may be entitled to an equitable adjustment under paragraph (i) of this clause.

(8) Disposal proceeds. As directed by the Contracting Officer, the Contractor shall credit the net proceeds from the disposal of Contractor inventory to the contract, or to the Treasury of the United States as miscellaneous receipts.

(9) Subcontractor inventory disposal schedules. The Contractor shall require its Subcontractors to submit inventory disposal schedules to the Contractor in accordance with the requirements of paragraph (j)(3) of this clause.

(k) Abandonment of Government property.

(1) The Government shall not abandon sensitive property or termination inventory without the Contractor's written consent.

(2) The Government, upon notice to the Contractor, may abandon any nonsensitive property in place, at which time all obligations of the Government regarding such property shall cease.

(3) Absent contract terms and conditions to the contrary, the Government may abandon parts removed and replaced from property as a result of normal maintenance actions, or removed from property as a result of the repair, maintenance, overhaul, or modification process.

(4) The Government has no obligation to restore or rehabilitate the Contractor's premises under any circumstances; however, if Government-furnished property is withdrawn or is unsuitable for the intended use, or if other Government property is substituted, then the equitable adjustment under paragraph (i) of this clause may properly include restoration or rehabilitation costs.

(l) Communication. All communications under this clause shall be in writing.

(m) Contracts outside the United States. If this contract is to be performed outside of the United States and its outlying areas, the words "Government" and "Government-furnished" (wherever they appear in this clause) shall be construed as "United States Government" and "United States Government-furnished," respectively.

(End of clause)

52.212-5 (DEV) Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services (JAN 2025) (DEVIATION FEB 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004)(Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

X (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

X (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

___ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

X (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community--see FAR 3.900(a).

X (5) 52.204-10, Reporting Executive Compensation and 3-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

___ (6) [Reserved].

___ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

X (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

X (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

___ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).

___ (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

___ (ii) Alternate I (Dec 2023) of 52.204-30.

X (12) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).

X (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

___ (14) [Reserved].

___ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

___ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

___ (17) [Reserved]

___ (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

___ (ii) Alternate I (Mar 2020) of 52.219-6.

___ (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

___ (ii) Alternate I (Mar 2020) of 52.219-7.

___ (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)).

___ (21)(i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

___ (ii) Alternate I (Nov 2016) of 52.219-9.

___ (iii) Alternate II (Nov 2016) of 52.219-9.

___ (iv) Alternate III (Jun 2020) of 52.219-9.

___ (v) Alternate IV (Jan 2025) of 52.219-9.

___ (22)(i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

___ (ii) Alternate I (Mar 2020) of 52.219-13.

___ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

___ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

X (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

X (26)(i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).

___ (ii) Alternate I (Mar 2020) of 52.219-28.

___ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

___ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

___ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

___ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).

X (31) 52.222-3, Convict Labor (Jun 2003) (E.O. 11755).

___ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025) (E.O. 13126).

___ (33) [Reserved].

___ (34) [Reserved].

___ (35)(i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

___ (ii) Alternate I (Jul 2014) of 52.222-35.

___ (36)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

___ (ii) Alternate I (Jul 2014) of 52.222-36.

___ (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

___ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

X (39)(i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

___ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

___ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

___ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c) (3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, *et seq.*).

___ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, *et seq.*).

___ (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, *et seq.*).

___ (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, *et seq.*).

X (46) 52.223-23, Sustainable Products and Services (May 2024) (DEVIATION FEB 2025) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

___ (47)(i) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

___ (ii) Alternate I (Jan 2017) of 52.224-3.

___ (48)(i) 52.225-1, Buy American--Supplies (Oct 2022) (41 U.S.C. chapter 83).

___ (ii) Alternate I (Oct 2022) of 52.225-1.

X (49)(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (Nov 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

___ (ii) Alternate I [Reserved].

___ (iii) Alternate II (Jan 2025) of 52.225-3.

___ (iv) Alternate III (Feb 2024) of 52.225-3.

___ (v) Alternate IV (Oct 2022) of 52.225-3.

___ (50) 52.225-5, Trade Agreements (Nov 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).

X (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

__ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

__ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

__ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

X (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

__ (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).

__ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

__ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

X (59) 52.232-33, Payment by Electronic Funds Transfer--System for Award Management (Oct 2018) (31 U.S.C. 3332).

__ (60) 52.232-34, Payment by Electronic Funds Transfer--Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

__ (61) 52.232-36, Payment by 3 Party (May 2014) (31 U.S.C. 3332).

__ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

X (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

__ (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017)(15 U.S.C. 637(d)(13)).

__ (65)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

__ (ii) Alternate I (Apr 2003) of 52.247-64.

__ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

X (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

__ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

X (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

__ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

__ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (May 2014) (41 U.S.C. chapter 67).

__ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (May 2014) (41 U.S.C. chapter 67).

X (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

X (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

__ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

__ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract and does not contain the clause at 52.215-2, Audit and Records--Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause--

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved].

(x) [Reserved].

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212)

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi) (A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

Section 3 - Documents, Exhibits, or Attachments

Title	Dates	Number of Pages
RIVERSIDE NC PriceSched FY25 07242025.xlsx	07/24/2025	

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director		Wage Determination No.: 2015-5629 Revision No.: 27 Date Of Last Revision: 07/08/2025
Division of Wage Determinations		

Note: Contracts subject to the Service Contract Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658.

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022:	Executive Order 14026 generally applies to the contract. The contractor must pay all covered workers at least \$17.75 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.
If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022:	Executive Order 13658 generally applies to the contract. The contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.

The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under the Executive Orders is available at www.dol.gov/whd/govcontracts.

State: California

Area: California Counties of Riverside, San Bernardino

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		19.89
01012 - Accounting Clerk II		22.32
01013 - Accounting Clerk III		24.97
01020 - Administrative Assistant		36.74
01035 - Court Reporter		51.68
01041 - Customer Service Representative I		17.81
01042 - Customer Service Representative II		19.44
01043 - Customer Service Representative III		21.82
01051 - Data Entry Operator I		19.50
01052 - Data Entry Operator II		21.28
01060 - Dispatcher, Motor Vehicle		23.57
01070 - Document Preparation Clerk		21.55
01090 - Duplicating Machine Operator		21.55
01111 - General Clerk I		17.92
01112 - General Clerk II		19.56
01113 - General Clerk III		21.95

01120 - Housing Referral Assistant	26.95
01141 - Messenger Courier	19.37
01191 - Order Clerk I	19.55
01192 - Order Clerk II	21.34
01261 - Personnel Assistant (Employment) I	22.38
01262 - Personnel Assistant (Employment) II	25.03
01263 - Personnel Assistant (Employment) III	27.90
01270 - Production Control Clerk	26.62
01290 - Rental Clerk	18.66
01300 - Scheduler, Maintenance	21.62
01311 - Secretary I	21.62
01312 - Secretary II	24.18
01313 - Secretary III	26.95
01320 - Service Order Dispatcher	21.07
01410 - Supply Technician	36.74
01420 - Survey Worker	23.30
01460 - Switchboard Operator/Receptionist	18.75
01531 - Travel Clerk I	18.89
01532 - Travel Clerk II	21.20
01533 - Travel Clerk III	23.71
01611 - Word Processor I	19.39
01612 - Word Processor II	21.77
01613 - Word Processor III	24.35
05000 - Automotive Service Occupations	
05005 - Automobile Body Repairer, Fiberglass	30.14
05010 - Automotive Electrician	28.92
05040 - Automotive Glass Installer	27.02
05070 - Automotive Worker	27.02
05110 - Mobile Equipment Servicer	23.09
05130 - Motor Equipment Metal Mechanic	30.57
05160 - Motor Equipment Metal Worker	27.02
05190 - Motor Vehicle Mechanic	30.57
05220 - Motor Vehicle Mechanic Helper	21.55
05250 - Motor Vehicle Upholstery Worker	25.09
05280 - Motor Vehicle Wrecker	27.02
05310 - Painter, Automotive	28.92
05340 - Radiator Repair Specialist	27.02
05370 - Tire Repairer	17.81
05400 - Transmission Repair Specialist	30.57
07000 - Food Preparation And Service Occupations	
07010 - Baker	18.50
07041 - Cook I	21.25
07042 - Cook II	24.86
07070 - Dishwasher	17.10***
07130 - Food Service Worker	18.26
07210 - Meat Cutter	19.91
07260 - Waiter/Waitress	16.52***
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	22.80
09040 - Furniture Handler	14.14***
09080 - Furniture Refinisher	21.55
09090 - Furniture Refinisher Helper	16.06***
09110 - Furniture Repairer, Minor	18.70
09130 - Upholsterer	22.03
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	17.19***
11060 - Elevator Operator	18.32
11090 - Gardener	22.59
11122 - Housekeeping Aide	18.32
11150 - Janitor	18.32
11210 - Laborer, Grounds Maintenance	19.27
11240 - Maid or Houseman	18.28
11260 - Pruner	18.39
11270 - Tractor Operator	21.08
11330 - Trail Maintenance Worker	19.27

11360 - Window Cleaner	19.19
12000 - Health Occupations	
12010 - Ambulance Driver	20.81
12011 - Breath Alcohol Technician	32.60
12012 - Certified Occupational Therapist Assistant	38.11
12015 - Certified Physical Therapist Assistant	38.58
12020 - Dental Assistant	23.57
12025 - Dental Hygienist	52.42
12030 - EKG Technician	36.85
12035 - Electroneurodiagnostic Technologist	36.85
12040 - Emergency Medical Technician	20.81
12071 - Licensed Practical Nurse I	29.14
12072 - Licensed Practical Nurse II	32.60
12073 - Licensed Practical Nurse III	36.33
12100 - Medical Assistant	20.54
12130 - Medical Laboratory Technician	30.67
12160 - Medical Record Clerk	22.99
12190 - Medical Record Technician	25.71
12195 - Medical Transcriptionist	22.89
12210 - Nuclear Medicine Technologist	64.85
12221 - Nursing Assistant I	15.68***
12222 - Nursing Assistant II	17.64***
12223 - Nursing Assistant III	19.25
12224 - Nursing Assistant IV	21.61
12235 - Optical Dispenser	26.99
12236 - Optical Technician	24.11
12250 - Pharmacy Technician	23.46
12280 - Phlebotomist	24.28
12305 - Radiologic Technologist	49.03
12311 - Registered Nurse I	35.27
12312 - Registered Nurse II	43.14
12313 - Registered Nurse II, Specialist	43.14
12314 - Registered Nurse III	52.20
12315 - Registered Nurse III, Anesthetist	52.20
12316 - Registered Nurse IV	62.58
12317 - Scheduler (Drug and Alcohol Testing)	40.38
12320 - Substance Abuse Treatment Counselor	29.26
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	26.28
13012 - Exhibits Specialist II	32.56
13013 - Exhibits Specialist III	40.02
13041 - Illustrator I	28.69
13042 - Illustrator II	35.54
13043 - Illustrator III	43.47
13047 - Librarian	36.82
13050 - Library Aide/Clerk	19.46
13054 - Library Information Technology Systems Administrator	33.24
13058 - Library Technician	26.55
13061 - Media Specialist I	23.99
13062 - Media Specialist II	26.84
13063 - Media Specialist III	29.91
13071 - Photographer I	20.21
13072 - Photographer II	22.61
13073 - Photographer III	28.00
13074 - Photographer IV	34.24
13075 - Photographer V	41.43
13090 - Technical Order Library Clerk	24.43
13110 - Video Teleconference Technician	28.13
14000 - Information Technology Occupations	
14041 - Computer Operator I	23.96
14042 - Computer Operator II	26.80
14043 - Computer Operator III	29.90
14044 - Computer Operator IV	33.24
14045 - Computer Operator V	36.81

14071 - Computer Programmer I	(see 1)	
14072 - Computer Programmer II	(see 1)	
14073 - Computer Programmer III	(see 1)	
14074 - Computer Programmer IV	(see 1)	
14101 - Computer Systems Analyst I	(see 1)	
14102 - Computer Systems Analyst II	(see 1)	
14103 - Computer Systems Analyst III	(see 1)	
14150 - Peripheral Equipment Operator		23.96
14160 - Personal Computer Support Technician		33.24
14170 - System Support Specialist		36.81
15000 - Instructional Occupations		
15010 - Aircrew Training Devices Instructor (Non-Rated)		38.20
15020 - Aircrew Training Devices Instructor (Rated)		46.23
15030 - Air Crew Training Devices Instructor (Pilot)		55.41
15050 - Computer Based Training Specialist / Instructor		38.20
15060 - Educational Technologist		53.91
15070 - Flight Instructor (Pilot)		55.41
15080 - Graphic Artist		29.83
15085 - Maintenance Test Pilot, Fixed, Jet/Prop		55.17
15086 - Maintenance Test Pilot, Rotary Wing		55.17
15088 - Non-Maintenance Test/Co-Pilot		55.17
15090 - Technical Instructor		25.33
15095 - Technical Instructor/Course Developer		30.98
15110 - Test Proctor		20.44
15120 - Tutor		20.44
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations		
16010 - Assembler		18.59
16030 - Counter Attendant		18.59
16040 - Dry Cleaner		21.25
16070 - Finisher, Flatwork, Machine		18.59
16090 - Presser, Hand		18.59
16110 - Presser, Machine, Drycleaning		18.59
16130 - Presser, Machine, Shirts		18.59
16160 - Presser, Machine, Wearing Apparel, Laundry		18.59
16190 - Sewing Machine Operator		22.12
16220 - Tailor		23.01
16250 - Washer, Machine		19.48
19000 - Machine Tool Operation And Repair Occupations		
19010 - Machine-Tool Operator (Tool Room)		26.08
19040 - Tool And Die Maker		31.13
21000 - Materials Handling And Packing Occupations		
21020 - Forklift Operator		24.76
21030 - Material Coordinator		26.62
21040 - Material Expediter		26.62
21050 - Material Handling Laborer		21.62
21071 - Order Filler		20.36
21080 - Production Line Worker (Food Processing)		24.76
21110 - Shipping Packer		18.85
21130 - Shipping/Receiving Clerk		18.85
21140 - Store Worker I		20.30
21150 - Stock Clerk		23.34
21210 - Tools And Parts Attendant		24.76
21410 - Warehouse Specialist		24.76
23000 - Mechanics And Maintenance And Repair Occupations		
23010 - Aerospace Structural Welder		40.79
23019 - Aircraft Logs and Records Technician		31.90
23021 - Aircraft Mechanic I		38.86
23022 - Aircraft Mechanic II		40.79
23023 - Aircraft Mechanic III		42.35
23040 - Aircraft Mechanic Helper		27.39
23050 - Aircraft, Painter		36.76
23060 - Aircraft Servicer		31.90
23070 - Aircraft Survival Flight Equipment Technician		36.76
23080 - Aircraft Worker		34.34
23091 - Aircrew Life Support Equipment (ALSE) Mechanic		34.34

I	
23092 - Aircrew Life Support Equipment (ALSE) Mechanic	38.86
II	
23110 - Appliance Mechanic	25.14
23120 - Bicycle Repairer	21.32
23125 - Cable Splicer	53.29
23130 - Carpenter, Maintenance	31.28
23140 - Carpet Layer	25.73
23160 - Electrician, Maintenance	35.56
23181 - Electronics Technician Maintenance I	32.61
23182 - Electronics Technician Maintenance II	34.91
23183 - Electronics Technician Maintenance III	36.90
23260 - Fabric Worker	28.71
23290 - Fire Alarm System Mechanic	30.51
23310 - Fire Extinguisher Repairer	26.42
23311 - Fuel Distribution System Mechanic	39.04
23312 - Fuel Distribution System Operator	29.49
23370 - General Maintenance Worker	26.16
23380 - Ground Support Equipment Mechanic	38.86
23381 - Ground Support Equipment Servicer	31.90
23382 - Ground Support Equipment Worker	34.34
23391 - Gunsmith I	26.42
23392 - Gunsmith II	30.91
23393 - Gunsmith III	34.97
23410 - Heating, Ventilation And Air-Conditioning Mechanic	29.83
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	32.07
23430 - Heavy Equipment Mechanic	34.34
23440 - Heavy Equipment Operator	39.51
23460 - Instrument Mechanic	40.96
23465 - Laboratory/Shelter Mechanic	33.08
23470 - Laborer	21.62
23510 - Locksmith	29.17
23530 - Machinery Maintenance Mechanic	33.60
23550 - Machinist, Maintenance	24.78
23580 - Maintenance Trades Helper	19.70
23591 - Metrology Technician I	40.96
23592 - Metrology Technician II	42.99
23593 - Metrology Technician III	44.64
23640 - Millwright	32.96
23710 - Office Appliance Repairer	22.67
23760 - Painter, Maintenance	23.43
23790 - Pipefitter, Maintenance	31.32
23810 - Plumber, Maintenance	29.63
23820 - Pneudraulic Systems Mechanic	34.97
23850 - Rigger	34.56
23870 - Scale Mechanic	30.91
23890 - Sheet-Metal Worker, Maintenance	34.39
23910 - Small Engine Mechanic	23.72
23931 - Telecommunications Mechanic I	33.99
23932 - Telecommunications Mechanic II	35.68
23950 - Telephone Lineman	35.92
23960 - Welder, Combination, Maintenance	24.12
23965 - Well Driller	37.50
23970 - Woodcraft Worker	34.97
23980 - Woodworker	26.42
24000 - Personal Needs Occupations	
24550 - Case Manager	22.77
24570 - Child Care Attendant	18.00
24580 - Child Care Center Clerk	22.45
24610 - Chore Aide	16.00***
24620 - Family Readiness And Support Services Coordinator	22.77
24630 - Homemaker	22.77

25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	37.90
25040 - Sewage Plant Operator	39.66
25070 - Stationary Engineer	37.90
25190 - Ventilation Equipment Tender	26.06
25210 - Water Treatment Plant Operator	39.66
27000 - Protective Service Occupations	
27004 - Alarm Monitor	35.52
27007 - Baggage Inspector	18.31
27008 - Corrections Officer	45.04
27010 - Court Security Officer	40.61
27030 - Detection Dog Handler	20.48
27040 - Detention Officer	45.04
27070 - Firefighter	36.17
27101 - Guard I	18.31
27102 - Guard II	20.48
27131 - Police Officer I	46.22
27132 - Police Officer II	51.37
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	19.18
28042 - Carnival Equipment Repairer	20.56
28043 - Carnival Worker	16.41***
28210 - Gate Attendant/Gate Tender	21.29
28310 - Lifeguard	17.75
28350 - Park Attendant (Aide)	23.81
28510 - Recreation Aide/Health Facility Attendant	17.38***
28515 - Recreation Specialist	29.50
28630 - Sports Official	18.97
28690 - Swimming Pool Operator	24.05
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	32.91
29020 - Hatch Tender	32.91
29030 - Line Handler	32.91
29041 - Stevedore I	30.57
29042 - Stevedore II	35.23
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	53.71
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	37.04
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	40.79
30021 - Archeological Technician I	24.64
30022 - Archeological Technician II	27.72
30023 - Archeological Technician III	34.21
30030 - Cartographic Technician	34.35
30040 - Civil Engineering Technician	37.91
30051 - Cryogenic Technician I	34.20
30052 - Cryogenic Technician II	37.77
30061 - Drafter/CAD Operator I	24.64
30062 - Drafter/CAD Operator II	27.72
30063 - Drafter/CAD Operator III	30.79
30064 - Drafter/CAD Operator IV	37.88
30081 - Engineering Technician I	20.57
30082 - Engineering Technician II	23.09
30083 - Engineering Technician III	25.82
30084 - Engineering Technician IV	31.99
30085 - Engineering Technician V	39.12
30086 - Engineering Technician VI	47.33
30090 - Environmental Technician	26.89
30095 - Evidence Control Specialist	30.89
30210 - Laboratory Technician	23.86
30221 - Latent Fingerprint Technician I	34.82
30222 - Latent Fingerprint Technician II	38.46
30240 - Mathematical Technician	41.04
30361 - Paralegal/Legal Assistant I	23.85
30362 - Paralegal/Legal Assistant II	29.56
30363 - Paralegal/Legal Assistant III	36.15

30364 - Paralegal/Legal Assistant IV	43.73
30375 - Petroleum Supply Specialist	37.77
30390 - Photo-Optics Technician	33.63
30395 - Radiation Control Technician	37.77
30461 - Technical Writer I	30.27
30462 - Technical Writer II	37.03
30463 - Technical Writer III	44.79
30491 - Unexploded Ordnance (UXO) Technician I	34.14
30492 - Unexploded Ordnance (UXO) Technician II	41.30
30493 - Unexploded Ordnance (UXO) Technician III	49.50
30494 - Unexploded (UXO) Safety Escort	34.14
30495 - Unexploded (UXO) Sweep Personnel	34.14
30501 - Weather Forecaster I	34.20
30502 - Weather Forecaster II	41.61
30620 - Weather Observer, Combined Upper Air Or	(see 2) 30.79
Surface Programs	
30621 - Weather Observer, Senior	(see 2) 33.39
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	41.30
31020 - Bus Aide	20.88
31030 - Bus Driver	28.19
31043 - Driver Courier	19.99
31260 - Parking and Lot Attendant	16.72***
31290 - Shuttle Bus Driver	18.74
31310 - Taxi Driver	14.93***
31361 - Truckdriver, Light	21.42
31362 - Truckdriver, Medium	23.27
31363 - Truckdriver, Heavy	29.17
31364 - Truckdriver, Tractor-Trailer	29.17
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	20.14
99030 - Cashier	16.85***
99050 - Desk Clerk	17.73***
99095 - Embalmer	33.96
99130 - Flight Follower	34.14
99251 - Laboratory Animal Caretaker I	18.45
99252 - Laboratory Animal Caretaker II	19.77
99260 - Marketing Analyst	34.47
99310 - Mortician	33.96
99410 - Pest Controller	22.07
99510 - Photofinishing Worker	22.64
99710 - Recycling Laborer	30.28
99711 - Recycling Specialist	36.94
99730 - Refuse Collector	28.90
99810 - Sales Clerk	17.13***
99820 - School Crossing Guard	19.83
99830 - Survey Party Chief	42.89
99831 - Surveying Aide	22.67
99832 - Surveying Technician	31.00
99840 - Vending Machine Attendant	18.57
99841 - Vending Machine Repairer	23.28
99842 - Vending Machine Repairer Helper	18.57

***Workers in this classification may be entitled to a higher minimum wage under Executive Order 14026 (\$17.75 per hour) or 13658 (\$13.30 per hour). Please see the Note at the top of the wage determination for more information. Please also note that the minimum wage requirements of Executive Order 14026 and 13658 are not currently being enforced as to contracts or contract-like instruments entered into with the federal government in connection with seasonal recreational services or seasonal recreational equipment rental for the general public on federal lands. The minimum wage requirements of Executive Order 14026 also are not currently being

enforced as to any contract or subcontract to which the states of Texas, Louisiana, or Mississippi, including their agencies, are a party.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

** HAZARDOUS PAY DIFFERENTIAL **

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

** UNIFORM ALLOWANCE **

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to

this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."

Section 4 - Solicitation Provisions

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov/browse/index/far (FAR)
www.va.gov/oal/library/vaar/index.asp (VAAR)

[Insert one or more Internet addresses]

(End of provision)

Provision	Title	Fill-ins
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services (Sep 2023)	
52.204-7	System for Award Management (Nov 2024)	
52.204-16	Commercial and Government Entity Code Reporting (Aug 2020)	

52.217-5 Evaluation of Options (July 1990)

Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

52.233-2 Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from NATIONAL CEMETERY ADMIN (786).

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

852.233-70 PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION (OCT 2018)

(a) Any protest filed by an interested party shall–

(1) Include the name, address, fax number, and telephone number of the protester;

(2) Identify the solicitation and/or contract number;

(3) Include an original signed by the protester or the protester's representative and at least one copy;

(4) Set forth a detailed statement of the legal and factual grounds of the protest, including a description of resulting prejudice to the protester, and provide copies of relevant documents;

- (5) Specifically request a ruling of the individual upon whom the protest is served;
 - (6) State the form of relief requested; and
 - (7) Provide all information establishing the timeliness of the protest.
- (b) Failure to comply with the above may result in dismissal of the protest without further consideration.
- (c) Bidders/offerors and Contracting Officers are encouraged to use alternative dispute resolution (ADR) procedures to resolve protests at any stage in the protest process. If ADR is used, the Department of Veterans Affairs will not furnish any documentation in an ADR proceeding beyond what is allowed by the Federal Acquisition Regulation.
- (End of provision)

52.212-3 (DEV) Offeror Representations and Certifications-Commercial Products and Commercial Services (MAY 2024)
(DEVIATION FEB 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision--

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved 3-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service--

- (1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or
- (2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except--

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;

- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate--

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

Sensitive technology--

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically--
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern--

- (1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
- (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran, as used in this definition*, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that--

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a 3 party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned--

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern--

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

Women-owned small business concern means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved 3-party certifier in accordance with 13 CFR 127.300.

(b)(1) *Annual Representations and Certifications.* Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing the SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs _____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.]

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b) (1)(ii). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that--

(i) It ___ is, ___ is not a small business concern; or

(ii) It ___ is, ___ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(2) *Veteran-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ___ is, ___ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ___ is, ___ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ___ is, ___ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, that it ___ is, ___ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ___ is, ___ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(i) It ___ is, ___ is not a WOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; or

(ii) It ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each WOSB concern eligible under the WOSB Program participating in the joint venture shall provide representation of its WOSB status.

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(i) It ___ is, ___ is not an EDWOSB concern, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; or

(ii) It ___ is, ___ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each EDWOSB concern participating in the joint venture shall provide representation of its EDWOSB status.

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ___ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or 3-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that--

(i) It ___ is, ___ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ___ is, ___ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) [Reserved]

(e) *Certification Regarding Payments to Influence Federal Transactions (31 U.S.C. 1352).* (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL,

Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American--Supplies, is included in this solicitation.)

(1)(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. _____.

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)(1) *Buy American--Free Trade Agreements--Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act, is included in this solicitation.)

(i)(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line item No.	Country of origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line item No.

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line item No.	Country of origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(4) *Trade Agreements Certificate.* (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line item No.	Country of origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals--

(1) ___ Are, ___ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ___ Have, ___ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ___ Are, ___ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ___ Have, ___ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds \$3,500 for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax

because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for *Listed End Products (Executive Order 13126)*. [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products.*

Listed end product	Listed countries of origin
_____	_____
_____	_____
_____	_____

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

☐ (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

☐ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly--

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

☐ (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that--

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2) (ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) Certain services as described in FAR 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that--

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies--

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

___ TIN: _____.

___ TIN has been applied for.

___ TIN is not required because:

___ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

___ Offeror is an agency or instrumentality of a foreign government;

___ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

___ Sole proprietorship;

___ Partnership;

___ Corporate entity (not tax-exempt);

___ Corporate entity (tax-exempt);

___ Government entity (Federal, State, or local);

___ Foreign government;

___ International organization per 26 CFR 1.6049-4;

___ Other _____.

(5) *Common parent.*

___ Offeror is not owned or controlled by a common parent;

___ Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that--

(i) It ___ is, ___ is not an inverted domestic corporation; and

(ii) It ___ is, ___ is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at *CISADA106@state.gov*.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror--

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if--

(i) This solicitation includes a trade agreements certification (*e.g.*, 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation.

(1) The Offeror represents that it ___ has or ___ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code:

_____.

Immediate owner legal name:

_____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ___ Yes or ___ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code:

_____.

Highest-level owner legal name:

_____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that--

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that--

(i) It is ___ is not ___ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ___ is not ___ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ___ is or ___ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code:

_____ (or mark "Unknown")

Predecessor legal name:

_____ (Do not use a "doing business as" name)

(s) [Reserved].

(t) [Reserved].

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that--

(i) It ___ does, ___ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ___ does, ___ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.225-2 Buy American Certificate (Oct 2022)

(a)(1) The Offeror certifies that each end product, except those listed in paragraph (b) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c) of this provision contains a critical component.

(2) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(3) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(4) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," and "foreign end product" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(b) Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(c) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.

(End of provision)

852.233-71 ALTERNATE PROTEST PROCEDURE (OCT 2018)

(a) As an alternative to filing a protest with the Contracting Officer, an interested party may file a protest by mail or electronically with: Executive Director, Office of Acquisition and Logistics, Risk Management and Compliance Service (003A2C), Department of Veterans Affairs, 810 Vermont Avenue, NW, Washington, DC 20420 or Email: EDProtests@va.gov.

(b) The protest will not be considered if the interested party has a protest on the same or similar issue(s) pending with the Contracting Officer.

(End of provision)

52.201-1 Acquisition 360: Voluntary Survey (Sep 2023)

(a) All actual and potential offerors are encouraged to provide feedback on the preaward and debriefing processes, as applicable. Feedback may be provided to agencies up to 45 days after award. The feedback is anonymous, unless the participant self-identifies in the survey. Actual and potential offerors can participate in the survey by selecting the following link: <https://www.acquisition.gov/360>.

(b) The Contracting Officer will not review the information provided until after contract award and will not consider it in the award decision. The survey is voluntary and does not convey any protections, rights, or grounds for protest. It creates a way for actual and potential offerors to provide the Government constructive feedback about the preaward and debriefing processes, as applicable, used for a specific acquisition.

(End of provision)

52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(A) **BASIS OF AWARD:** This procurement is being conducted pursuant to FAR Part 15 procedures. The Government intends to award a contract resulting from this solicitation to the responsible offeror who offers the lowest price, whose quoted price is found to be fair and reasonable, and whose quote is found to be technically acceptable when considering the non-price evaluation factors described below. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced or if the proposed price for the basic requirement or any option exceeds the amount of funding available for any of those requirements. **Offerors who fail to meet any technical acceptability evaluation factors below will not be eligible to receive contract award.**

Technical Acceptability Evaluation Factors:

Sub-Factor 1: In 10 pages or less,

- Proposed lawn maintenance schedule, including additional weekend/holiday cleaning requirements.

Sub-Factor 2: In 10 pages or less,

- Provide your technical description of the methods utilized to Lawn, ponds, and lakes of the cemetery.

Sub-Factor 3: In 15 pages or less,

- A list of proposed equipment and supplies to be used in the performance of the required work in PWS.

Note: proposal information provided beyond the stated page limits above will not be evaluated or considered a part of the proposal.

(B) **EVALUATION PROCESS:** Offers will be evaluated in the following manner. The lowest-priced offer will be identified. If the proposed price is found to be fair and reasonable, the offer will be evaluated to determine if the offer takes exception with any of the requirements for this procurement specified in the solicitation. If the offer does not take exception with any of the requirements for this procurement, the Contracting Officer/technical evaluation team will then determine if the first lowest-priced offeror is technically acceptable using the technical evaluation factors applicable to this procurement. If a contract award cannot be made to the first lowest-priced offeror, the Contracting Officer will evaluate the next lowest-priced offer following the procedures described above. This process will continue until a contract award can be made, or the Contracting Officer determines that no contract award can be made. The Government intends to evaluate offers and award a contract without discussions with offerors. However, the Government reserves the right to conduct discussions at any time if determined by the contracting officer to be in the Government's interest.

(C) **Price:** Price analysis will be used to determine that the prices are fair and reasonable in accordance with FAR Subpart 15.404-1(b).

(D) **Options:** The Government will evaluate proposals for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that a proposal is unacceptable if the option prices are significantly unbalanced or if the proposed price for the basic requirement or any option exceeds the amount of funding available for any of those requirements. Evaluation of options shall not obligate the Government to exercise the option(s).

(End of provision)

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM

E.1 ADDENDUM TO FAR 52.212-1 – INSTRUCTIONS TO OFFERORS – COMMERCIAL ITEMS

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation.

- A. GENERAL INSTRUCTIONS:** This section provides general guidance for preparing the proposal, as well as specific instructions on the format and content of the proposal. The Offeror's proposal must include all data and information requested and must be submitted in accordance with these instructions. Any Offeror who submits an incomplete package may have its proposal considered to be unacceptable and removed from consideration for contract award. The offer shall be compliant with the requirements as stated in the Solicitation. Non-compliance with the instructions to the Solicitation may result in an unfavorable proposal evaluation and may be grounds to eliminate the proposal from consideration for contract award.

Offeror should thoroughly review the specifications and become familiar with the requirement prior to submitting a proposal. Failure to understand the contract requirements shall not relieve the successful Offeror from performing in accordance with the strict meaning and intent of the specifications.

Submission of Offerors. Offeror must complete and return a complete package of all items required prior to the time specified in the Solicitation to be considered for award.

Please review the following items before submitting your proposal:

- ☐ Have you completed and sign the 1449?
- ☐ Have you completed the Price Schedule (RIVERSIDE NC_PriceSched_FY25_07242025)?
- ☐ Have you acknowledged any amendment (s), if applicable?
- ☐ Have you included the requested information required for responding to the Technical Acceptability Factors?

- B. TYPE OF ACQUISITION:** This acquisition is a competitive solicitation. Award will be made to the Lowest Priced Offeror that meets the Technical Acceptability Evaluation Factors in accordance with the requirements. A single award may be made in response to this solicitation.
- C. PERIOD OF ACCEPTANCE OF OFFERS:** The Offeror agrees to hold prices in its offer firm for a period of sixty (60) calendar days from the closing date of the solicitation.
- D. POST-AWARD/PRE-PERFORMANCE CONFERENCE:** A post-award/pre-performance conference will be scheduled by the Contracting Officer (CO) and held prior to the commencement of any work. The Offeror and/or their duly authorized representative(s) is/are required to attend the post-award/pre-performance conference. The CO and COR shall meet with the Contractor to discuss details of the contract, the Guards sites and schedules, emergency contact information, handbook, and any other information pertinent to the performance of the contract.
- E. POINTS OF CONTACT (POC):** Written requests for clarification, questions, and/or concerns may be sent to the following:

Ralph Crum
Contracting Officer

Ralph.Crum@va.gov

F. PRE-PROPOSAL CONFERENCE / SITE VISIT

A Pre-Proposal Conference and Site Visit will be held at the Riverside National Cemetery, 22495 Van Buren Blvd, Riverside, CA 92518.

Pre-Proposal Conference will be held in the Cemetery Admin Office on **July 29, 2025, at 930AM** Pacific Standard Time (PST).

Due to the room size limitations, Offerors are encouraged to notify the Contracting Officer of their plan to attend. Notification should include Company Name, Address, Names of Attendees, and Phone No. Attendance Notification should be received by the Contracting Officer and COR via e-mail ralph.crum@va.gov and Lincoln.Sii@va.gov no later than **July 28, 2025, at 3PM PST**.

Any questions must be submitted via email by **July 31, 2025, 5:00 PM PST** to: Ralph.Crum@va.gov. All questions shall be addressed via an amendment to the Solicitation.

Safety and Privacy Concerns: Participants should dress in comfortable clothing suited for indoor and outdoor conditions. Closed-toe shoes are encouraged for safety reasons.

NOTE 1: Questions raised during the site visit must be written and will be provided to the Contracting Officer for dissemination to all potential bidders. All questions raised after the site visit must be provided to the Contracting Officer in writing.

G. PROPOSAL SUBMISSION INSTRUCTIONS:

Submission via email to: Ralph.Crum@va.gov
Subject line: 36C78625R50104 Company Name
Submission deadline: **August 25, 2025, 3:00 PM PST**

Do not make any changes to the files or the format of the files of the Solicitation and any attachments. Offerors who make any changes without prior written consent from the CO may be eliminated from further consideration.

- It is the Offeror's responsibility to ensure that documents are complete, and submission is viewable/readable and arrives to the CO/CS by the date and time required.
- Please complete both the price schedule in the solicitation document as well as the **Price Schedule (RIVERSIDE NC_PriceSched_FY25_07242025) (attachment)**. Please enter your proposed unit prices in column K. A formula will calculate the extended price in column M as well as the totals. Stated period of performance stated on spreadsheet will vary based on date of award.
- Any questions must be submitted via email by **July 31, 2025, 5:00 PM PST** to: Ralph.Crum@va.gov. All questions shall be addressed via an amendment to the Solicitation.
- If any required documents are omitted with submission, the offer may be precluded from further consideration.

(End of Addendum to 52.212-1)

E.2 52.212-2 EVALUATION – COMMERCIAL ITEMS (OCT 2014)

(A) BASIS OF AWARD: This procurement is being conducted pursuant to FAR Part 15 procedures.

The Government intends to award a contract resulting from this solicitation to the responsible offeror who offers the lowest price, whose quoted price is found to be fair and reasonable, and whose quote is found to be technically acceptable when considering the non-price evaluation factors described below. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced or if the proposed price for the basic requirement or any option exceeds the amount of funding available for any of those requirements. **Offerors who fail to meet any technical acceptability evaluation factors below will not be eligible to receive contract award.**

Technical Acceptability Evaluation Factors:

Sub-Factor 1: In 10 pages or less,

- Proposed lawn maintenance schedule, including additional weekend/holiday cleaning requirements.

Sub-Factor 2: In 10 pages or less,

- Provide your technical description of the methods utilized to Lawn, ponds, and lakes of the cemetery.

Sub-Factor 3: In 15 pages or less,

- A list of proposed equipment and supplies to be used in the performance of the required work in the PWS.

Note: proposal information provided beyond the stated page limits above will not be evaluated or considered a part of the proposal.

(B) EVALUATION PROCESS: Offers will be evaluated in the following manner. The lowest-priced offer will be identified. If the proposed price is found to be fair and reasonable, the offer will be evaluated to determine if the offer takes exception with any of the requirements for this procurement specified in the solicitation. If the offer does not take exception with any of the requirements for this procurement, the Contracting Officer/technical evaluation team will then determine if the first lowest-priced offeror is technically acceptable using the technical evaluation factors applicable to this procurement. If a contract award cannot be made to the first lowest-priced offeror, the Contracting Officer will evaluate the next lowest-priced offer following the procedures described above. This process will continue until a contract award can be made, or the Contracting Officer determines that no contract award can be made. The Government intends to evaluate offers and award a contract without discussions with offerors. However, the Government reserves the right to conduct discussions at any time if determined by the contracting officer to be in the Government's interest.

(C) OPTIONS: The Government will evaluate quotes for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that a quote is unacceptable if the option prices are significantly unbalanced or if the proposed price for the basic requirement or any option exceeds the amount of funding available for any of those requirements. Evaluation of options shall not obligate the Government to exercise the option(s).

(End of provision)

